

RAS Prelims 2026 · Handwritten Class Notes

Indian Constitution, Political System and Governance

*Chapter-by-chapter notes in coaching-lecture style —
concept first, then the facts, with flow charts, mind
maps, previous-year callouts and current-affairs links.*

IP01 *Making of the Constitution, Preamble, Salient Features, Sources*

IP02 *Citizenship and Fundamental Rights*

IP03 *Directive Principles and Fundamental Duties*

IP04 *Union Executive: President, Vice-President, PM and Council of Ministers*

IP05 *Parliament and the Legislative Process*

IP06 *Judiciary: Supreme Court, High Courts and Judicial Review*

IP07 *Centre-State Relations, Emergency, Schedules and Amendments*

IP08 *Local Government: Rural and Urban*

IP09 *Constitutional, Statutory and Executive Bodies*

IP10 *Governance: Public Policy, Citizen Charter, Social Audit, Grievance Redressal,
RPSC RAS & RTS Preliminary Examination · 6 December 2026 · 150 questions · 200 marks · 1/3
RTI
negative marking*

IP01

Making of the Constitution, Preamble, Salient Features, Sources

About 2-3 questions a paper out of Indian Polity's 10-11. The Constituent Assembly committees-and-chairpersons matching has come in 2018, 2021, 2023 and 2024 - four papers in a row. The 42nd Amendment's three Preamble words came in 2021. Learn the tables cold.

How the Constitution was made, who made it, and where each idea came from. RPSC does not ask you to discuss this chapter - it asks you to match a committee to its chairman, a country to a borrowed feature, a Schedule to its subject and a date to an event. It is a memory chapter, and it is fully bankable.

Making of the Constitution

Assembly - the basics

- Idea: M. N. Roy, 1934
- Set up under Cabinet Mission Plan, Nov 1946
- Strength 389, then 299 after Partition
- Indirect election by provincial assemblies, PR with single transferable vote

The people

- Sachchidananda Sinha - temporary President
- Rajendra Prasad - permanent President, 11 Dec 1946
- B. N. Rau - Constitutional Adviser
- Ambedkar - Chairman, Drafting Committee
- Prem Behari Narain Raizada - calligrapher

Dates that get asked

- 9 Dec 1946 first sitting
- 13 Dec 1946 Objectives Resolution moved
- 22 Jan 1947 adopted
- 29 Aug 1947 Drafting Committee
- 26 Nov 1949 adopted
- 24 Jan 1950 last session
- 26 Jan 1950 commencement

Preamble

- Sovereign Socialist Secular Democratic Republic
- Justice, Liberty, Equality, Fraternity
- 42nd Amendment 1976 - Socialist, Secular, Integrity
- Berubari 1960 vs Kesavananda 1973

Sources

- Britain - parliamentary system, writs
- USA - FRs, judicial review
- Ireland - DPSPs
- Canada - strong Centre, residuary powers
- Govt Act 1935 - the bulk of the structure

Shape of the document

- Originally 395 Articles, 22 Parts, 8 Schedules
- Now about 448 Articles, 25 Parts, 12 Schedules
- Art. 1 - Union of States
- Arts. 1-4 - territory and reorganisation

Where the Assembly came from - the idea and the arithmetic

A Constituent Assembly means a body of Indians sitting down to write their own Constitution, not a document handed over by London. That demand has a clear paternity. M. N. Roy, a pioneer of the communist movement in India, first put the idea forward in 1934. The Congress made it an official demand in 1935. The British conceded it in principle in the August Offer of 1940. It was finally given shape by the Cabinet Mission Plan of 1946.

The Assembly was constituted in November 1946. Note carefully how the members got there. They were not directly elected by the people. Provincial legislative assemblies elected them, by proportional representation with a single transferable vote. So it was an indirectly elected body - that is the standard criticism, and it is also a standard question.

- Total strength as planned: 389.
- 296 from British India = 292 from the provinces + 4 from the chief commissioners' provinces, one of which was Ajmer-Merwara.
- 93 seats for the princely states.
- Roughly one seat for every million of population.
- Provincial seats were divided among Muslim, Sikh and General communities.
- After Partition the strength came down to 299.

TRAP

Do not say the Constituent Assembly was set up under the Government of India Act, 1935. It was set up under the Cabinet Mission Plan, 1946. The 1935 Act is a source of the Constitution's content, not the authority for the Assembly.

Who ran the Assembly - office-bearers you must be able to name

The first sitting was on 9 December 1946. Dr. Sachchidananda Sinha, the oldest member, presided as temporary or provisional President. Two days later, on 11 December 1946, Dr. Rajendra Prasad was elected the permanent President. Remember both names and both roles - RPSC swaps them.

Behind the Assembly sat a small professional staff. B. N. Rau, the Constitutional Adviser, prepared the initial draft in October 1947 on which the

Drafting Committee then worked. That is the man to name when a question says 'Constitutional Adviser'.

Person to role – learn this as a list of pairs

Person	Role in the Constituent Assembly
Dr. Sachchidananda Sinha	Temporary (provisional) President, first sitting 9 Dec 1946
Dr. Rajendra Prasad	Permanent President, elected 11 Dec 1946
H. C. Mukherjee and V. T. Krishnamachari	Vice-Presidents of the Assembly
Dr. B. R. Ambedkar	Chairman, Drafting Committee
B. N. Rau	Constitutional Adviser; prepared the initial draft, Oct 1947
H. V. R. Iyengar	Secretary to the Assembly
S. N. Mukherjee	Chief Draftsman
Prem Behari Narain Raizada	Handwrote the manuscript in flowing italic calligraphy
Nandalal Bose, Beohar Rammanohar Sinha	Decorated and illuminated the manuscript (Shantiniketan)

- V. T. Krishnamachari represented Jaipur in the Assembly – a Rajasthan link worth remembering.
- He later became Deputy Chairman of the Planning Commission.
- The Objectives Resolution was moved by Jawaharlal Nehru on 13 December 1946.
- It was adopted on 22 January 1947 and became the basis of the Preamble.
- Ambedkar was never President or Chairman of the Assembly – he chaired only the Drafting Committee, so an option reading 'Ambedkar was elected permanent Chairman of the Constituent Assembly' is wrong.

The committees and their chairpersons - the most repeated table in this chapter

The Assembly worked through committees. RPSC has turned this into a matching question again and again - 2018, 2021, 2023 and 2024. Do not try to learn twenty-two committee names. Learn them in blocks by chairman. Nehru took the Union-side committees, Patel took the provincial and rights side, Rajendra Prasad took the housekeeping committees, Ambedkar took drafting.

Major committees to chairpersons

Committee	Chairperson
Union Powers Committee	Jawaharlal Nehru
Union Constitution Committee	Jawaharlal Nehru
States Committee (negotiating with the States)	Jawaharlal Nehru
Provincial Constitution Committee	Sardar Vallabhbhai Patel
Advisory Committee on Fundamental Rights, Minorities and Tribal and Excluded Areas	Sardar Vallabhbhai Patel
Steering Committee	Dr. Rajendra Prasad
Rules of Procedure Committee	Dr. Rajendra Prasad
Finance and Staff Committee	Dr. Rajendra Prasad
Ad hoc Committee on the National Flag	Dr. Rajendra Prasad
Drafting Committee	Dr. B. R. Ambedkar

Minor committees and the sub-committees under Patel's Advisory Committee

Committee / Sub-committee	Chairperson
Credentials Committee	Alladi Krishnaswami Ayyar

<i>Committee / Sub-committee</i>	<i>Chairperson</i>
<i>House Committee</i>	<i>B. Pattabhi Sitaramayya</i>
<i>Committee on Chief Commissioners' Provinces</i>	<i>B. Pattabhi Sitaramayya</i>
<i>Order of Business Committee</i>	<i>K. M. Munshi</i>
<i>Committee on the Functions of the Constituent Assembly</i>	<i>G. V. Mavalankar</i>
<i>Press Gallery Committee</i>	<i>Usha Nath Sen</i>
<i>Sub-committee on Fundamental Rights</i>	<i>J. B. Kripalani</i>
<i>Sub-committee on Minorities</i>	<i>H. C. Mukherjee</i>
<i>Sub-committee on North-East Frontier Tribal Areas and Assam Excluded Areas</i>	<i>Gopinath Bardoloi</i>
<i>Sub-committee on Excluded and Partially Excluded Areas (other than Assam)</i>	<i>A. V. Thakkar</i>

ASKED IN RAS

Asked in RAS Pre 2021 and again in 2024 - match the committee to its chairman: Union Powers Committee - Nehru; Provincial Constitution Committee - Patel; Steering Committee - Rajendra Prasad; Drafting Committee - Ambedkar. The same four pairs, twice.

ASKED IN RAS

Asked in RAS Pre 2023 - the minor committees: Order of Business Committee - K. M. Munshi; Credentials Committee - Alladi Krishnaswami Ayyar; Committee on the Functions of the Constituent Assembly - G. V. Mavalankar; House Committee - B. Pattabhi Sitaramayya.

- *Sitaramayya is the one man with two committees - House, and Chief Commissioners' Provinces.*
- *The Advisory Committee on Fundamental Rights was Patel's; its Fundamental Rights SUB-committee was Kripalani's. Parent body and sub-committee, two*

different chairmen.

- Every sub-committee in the second table reported to Patel's Advisory Committee.

The Drafting Committee - seven names

The Drafting Committee was set up on 29 August 1947, three weeks after Independence, with seven members under Ambedkar. It produced the Draft Constitution published in February 1948 and submitted to the President of the Assembly on 21 February 1948. Two members changed during its life - learn the replacements, because that is exactly what gets asked.

- Dr. B. R. Ambedkar - Chairman.
- N. Gopalaswami Ayyangar.
- Alladi Krishnaswami Ayyar.
- K. M. Munshi.
- Syed Mohammad Saadullah.
- N. Madhava Rau - replaced B. L. Mitter.
- T. T. Krishnamachari - replaced D. P. Khaitan, who died in 1948.

ASKED IN RAS

Asked in RAS Pre 2018, twice over. One question asked which statements about the Drafting Committee are correct - constituted 29 August 1947, Ambedkar as chairman, Alladi Krishnaswami Ayyar and K. M. Munshi as members: all three correct. Another asked who was NOT a member - the answer was Jawaharlal Nehru.

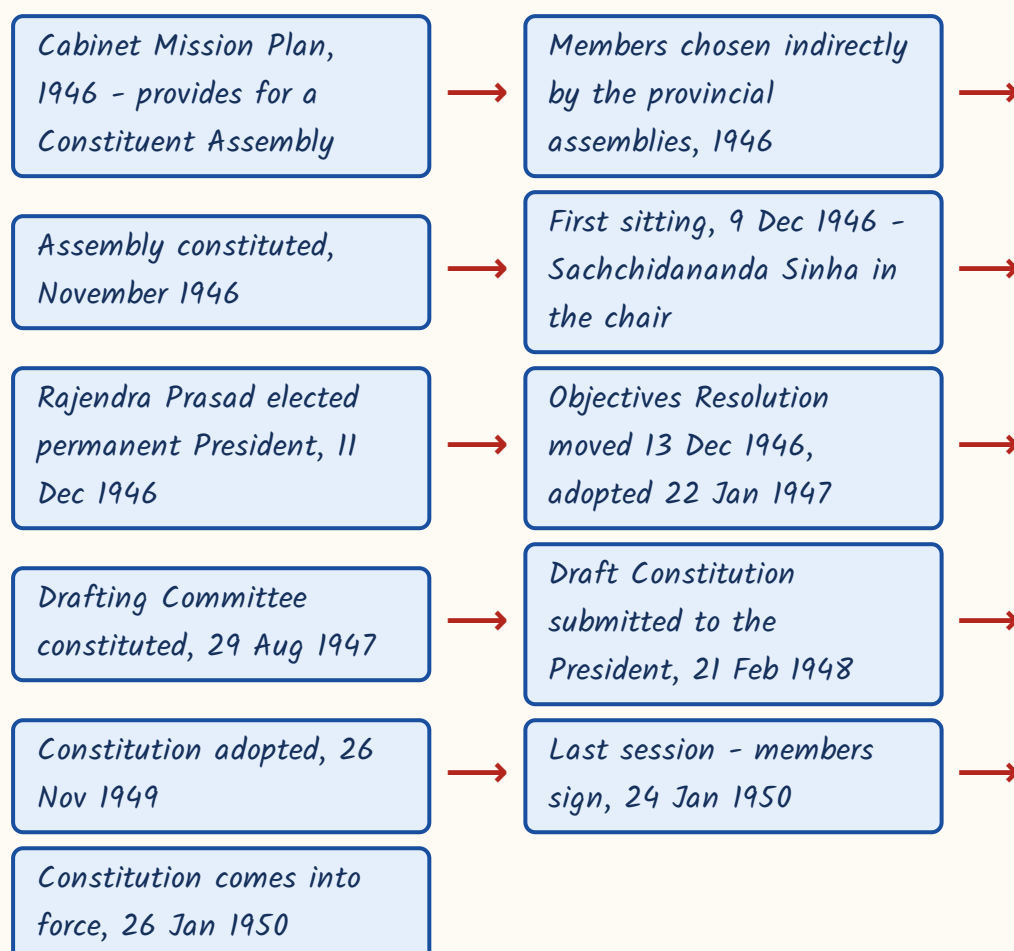
YAAD RAKHO

Yaad rakho the two substitutions as a pair: 'Mitter out, Madhava Rau in; Khaitan out, T. T. Krishnamachari in.' Nehru and Patel were never on the Drafting Committee.

From the Cabinet Mission to 26 January 1950 - the chronology

RAS asks chronological-ordering questions in about 3 per cent of the paper, and this chapter is a favourite hunting ground. Fix the sequence once, in order, and any ordering question becomes free marks.

The full timeline



- 11 sessions in all, spread over 165 days.
- 114 of those days went on considering the Draft Constitution.

- Total time taken: 2 years, 11 months and 18 days.
- At the last session on 24 January 1950 the members signed the Constitution and Dr. Rajendra Prasad was elected the first President of India.
- 26 January was chosen because Purna Swaraj Day had been observed on that date since 1930.

26 November 1949 vs 26 January 1950 - do not merge these two

26 November 1949	26 January 1950
Constitution ADOPTED by the Constituent Assembly	Constitution came into FORCE (commencement)
The date written into the Preamble itself	The date we celebrate as Republic Day
Observed as Constitution Day / Samvidhan Divas since 2015	Purna Swaraj Day since 1930 - that is why it was picked
Articles 5-9 on citizenship and a few other provisions took effect at once	The rest of the Constitution took effect

ASKED IN RAS

Asked in RAS Pre 2023 - the Constituent Assembly held its last session, at which the members signed the Constitution, on 24 January 1950. Not 26 November 1949, not 26 January 1950.

The Preamble - the words, and what the 42nd Amendment did to them

The Preamble is the introduction to the Constitution and it grew directly out of Nehru's Objectives Resolution. Two things get asked from it: the exact keywords, and the amendment history. Nothing else.

- Nature of the State: Sovereign, Socialist, Secular, Democratic, Republic.

- Justice - social, economic and political.
- Liberty - of thought, expression, belief, faith and worship.
- Equality - of status and of opportunity.
- Fraternity - assuring the dignity of the individual and the unity and integrity of the Nation.
- The Preamble records the date of adoption as 26 November 1949.

ASKED IN RAS

Asked in RAS Pre 2021 - the words 'Socialist', 'Secular' and 'Integrity' were inserted into the Preamble by the 42nd Amendment Act, 1976. That is the only amendment to the Preamble to date.

YAAD RAKHO

Yaad rakho - S-S-I for the 42nd Amendment: Socialist, Secular, Integrity. 'Socialist' and 'Secular' went into the description of the State; 'Integrity' went into the Fraternity clause, which now reads 'unity and integrity of the Nation'.

Is the Preamble part of the Constitution? The court's position moved

Berubari Union case, 1960
- the Preamble is NOT a part of the Constitution

Kesavananda Bharati, 1973
- the Preamble IS a part of the Constitution and is amendable, but not so as to damage the basic structure

LIC of India case, 1995 -
reaffirms that the Preamble is a part of the Constitution

TRAP

The Preamble is not enforceable in a court and it is not a source of power for the Government or of any limitation on it. It is used only as an aid to interpretation. Any option calling it 'a source of legislative power' is wrong.

CURRENT LINK

Current link, as of September 2026: on 25 November 2024 the Supreme Court in *Dr. Balram Singh v. Union of India* dismissed petitions seeking removal of 'Socialist' and 'Secular' from the Preamble, holding that Parliament's amending power under Article 368 extends to the Preamble and that these words have acquired settled Indian meanings. The political debate around the two words has continued since - expect a statement-based question.

Sources - which country gave us what

Almost nothing in the Constitution was invented from nothing. The framers studied about sixty constitutions and picked what worked. RPSC asks this as country-to-feature matching or as a 'which pair is NOT correctly matched' question. Learn it as a table, not as prose.

Source country to borrowed feature

Source	What we took from it
Government of India Act, 1935	Federal scheme, office of Governor, judiciary, public service commissions, emergency provisions - the single largest source
Britain	Parliamentary government, rule of law, single citizenship, prerogative writs, bicameralism, cabinet system
USA	Fundamental Rights, judicial review, independence of the judiciary, impeachment of the President, post of Vice-President

Source	What we took from it
Ireland	Directive Principles, nomination of members to the Rajya Sabha, method of election of the President
Canada	Federation with a strong Centre, residuary powers with the Union, appointment of Governors, advisory jurisdiction of the Supreme Court
Australia	Concurrent List, joint sitting of the two Houses, freedom of trade, commerce and intercourse
Weimar Germany	Suspension of Fundamental Rights during an emergency
Japan	The expression 'procedure established by law' in Article 21
USSR	Fundamental Duties, and the ideal of justice - social, economic and political - in the Preamble
France	Republic, and the ideals of liberty, equality and fraternity
South Africa	Procedure for amendment of the Constitution, and election of Rajya Sabha members

TRAP

Three pairs RPSC loves to plant wrong. Fundamental DUTIES came from the USSR, not the USA - the USA gave Fundamental RIGHTS. Directive Principles came from Ireland, not the USSR. 'Procedure established by law' is Japan; 'due process of law' is the American phrase we deliberately did not take.

- Ireland had itself borrowed the Directive Principles idea from Spain.
- Single citizenship is British; the USA has dual citizenship.
- Both amendment procedure and Rajya Sabha election come from South Africa - one card, two facts.

Salient features, Union of States, and the shape of the document

Now the physical description of the Constitution and its opening Articles. These give one-liner questions almost every year - counts of Articles, Parts and Schedules, and the wording of Article 1.

- As originally enacted: 395 Articles, 22 Parts, 8 Schedules.
- At present: about 448 Articles, 25 Parts and 12 Schedules.
- It is the lengthiest written constitution in the world.
- Other salient features: a blend of rigidity and flexibility, federal in form with a unitary bias, parliamentary government, integrated and independent judiciary, single citizenship, universal adult franchise, three-tier government after the 73rd and 74th Amendments.

Articles 1 to 4 - territory and reorganisation

- Art. 1 - 'India, that is Bharat, shall be a Union of States.' The phrase is Union of States, not Federation of States.
- Art. 2 - admission or establishment of NEW States (states not already part of India).
- Art. 3 - formation of new States and alteration of areas, boundaries or names of EXISTING States.
- Art. 4 - laws made under Articles 2 and 3 are not deemed to be amendments under Article 368, so a simple majority suffices.

The twelve Schedules and their subjects

Schedule	Subject
First	States and Union Territories
Second	Emoluments and allowances of officials such as the President, Governors, judges
Third	Forms of oaths and affirmations
Fourth	Allocation of Rajya Sabha seats to States and UTs
Fifth	Administration of Scheduled Areas and Scheduled Tribes
Sixth	Tribal areas of Assam, Meghalaya, Tripura and Mizoram

Schedule	Subject
Seventh	Union, State and Concurrent Lists
Eighth	Languages recognised by the Constitution - 22 at present
Ninth	Laws immune from challenge - added by the 1st Amendment, 1951
Tenth	Anti-defection provisions - 52nd Amendment, 1985
Eleventh	Panchayats, 29 subjects - 73rd Amendment
Twelfth	Municipalities, 18 subjects - 74th Amendment

- Seventh Schedule as originally enacted: Union List 97 subjects, State List 66, Concurrent List 47.
- Eighth Schedule: Sindhi was added by the 21st Amendment (1967).
- Bodo, Dogri, Maithili and Santhali were added by the 92nd Amendment (2003), taking the count to 22.
- Eleventh Schedule = panchayats, 29 subjects. Twelfth = municipalities, 18 subjects. RPSC plants 'Twelfth Schedule - anti-defection' as a wrong pair; anti-defection is the Tenth Schedule.

REVISION RECAP

1. Idea of a Constituent Assembly - M. N. Roy 1934; Congress demand 1935; conceded in the August Offer 1940; delivered by the Cabinet Mission Plan 1946.
2. Strength 389 (296 British India + 93 princely states), 299 after Partition; indirectly elected by provincial assemblies through PR with a single transferable vote.
3. 9 Dec 1946 first sitting under Sachchidananda Sinha; 11 Dec 1946 Rajendra Prasad becomes permanent President.
4. B. N. Rau Constitutional Adviser, H. V. R. Iyengar Secretary, S. N. Mukherjee Chief Draftsman.
5. Objectives Resolution - moved by Nehru 13 Dec 1946, adopted 22 Jan 1947; it became the Preamble.
6. Nehru chaired Union Powers, Union Constitution and States Committees; Patel the Provincial Constitution Committee and the Advisory Committee on FRs and Minorities.
7. Rajendra Prasad chaired Steering, Rules of Procedure, Finance and Staff, and the Ad hoc Committee on the National Flag.

8. Munshi - Order of Business; Alladi - Credentials; Mavalankar - Functions of the Assembly; Sitaramayya - House and Chief Commissioners' Provinces.
9. Kripalani headed the Fundamental Rights sub-committee, H. C. Mukherjee the Minorities sub-committee, Bardoloi the North-East tribal areas, Thakkar the other excluded areas.
10. Drafting Committee: 29 Aug 1947, seven members; Madhava Rau replaced B. L. Mitter and T. T. Krishnamachari replaced D. P. Khaitan.
11. 11 sessions, 165 days, 114 days on the draft; total 2 years 11 months 18 days.
12. Adopted 26 Nov 1949 (Constitution Day since 2015), signed 24 Jan 1950, in force 26 Jan 1950.
13. Manuscript handwritten by Prem Behari Narain Raizada, decorated by Nandalal Bose and Beohar Rammanohar Sinha.
14. Preamble words: Sovereign, Socialist, Secular, Democratic, Republic + Justice, Liberty, Equality, Fraternity.
15. 42nd Amendment 1976 is the only amendment to the Preamble - it added Socialist, Secular and Integrity.
16. Berubari 1960 - Preamble not part of the Constitution; Kesavananda 1973 - it is, and it is amendable within basic structure limits.
17. Ireland gave the DPSPs; USSR gave the Fundamental Duties; Japan gave 'procedure established by law'; Weimar Germany gave suspension of FRs in an emergency.
18. Gol Act 1935 is the largest single source - federal scheme, Governor, judiciary, PSCs, emergency provisions.
19. Originally 395 Articles, 22 Parts, 8 Schedules; now roughly 448 Articles, 25 Parts, 12 Schedules.
20. Art. 1 Union of States; Art. 2 new States admitted; Art. 3 existing States altered; Art. 4 no Art. 368 amendment needed.

IP02

Citizenship and Fundamental Rights

The biggest single chapter in Indian Polity - 3-4 questions a paper is normal. Article 21's judicial expansion has come in 2018, 2023 and 2024; the citizens-only versus all-persons distinction in 2016, 2024 and again inside statement sets in 2024. Article numbers must be exact or the question is lost.

Part II gives you citizenship, Part III gives you the Fundamental Rights - Articles 12 to 35, what Ambedkar's colleagues called the Magna Carta of India. This is the densest Article-numbering chapter in the whole Polity syllabus, and RPSC tests it exactly that way: which Article, which writ, which case, which amendment.

Citizenship and Fundamental Rights

Citizenship - Part II, Arts. 5-11

- Art. 5 at commencement
- Art. 6 migrants from Pakistan
- Art. 7 migrants to Pakistan
- Art. 11 Parliament's power
- Single citizenship only

Citizenship Act 1955

- 5 modes of acquisition, 3 of loss
- Amendments 1986, 1992, 2003, 2005, 2015, 2019
- 2015 - PIO merged into OCI
- CAA 2019 - cut-off 31 Dec 2014, 5-year naturalisation

Equality (14-18)

- 14 equality before law
- 15 no discrimination
- 16 public employment
- 17 untouchability abolished
- 18 titles abolished

Freedom (19-22)

- 19 six freedoms
- 20 ex post facto, double jeopardy, self-incrimination
- 21 life and personal liberty; 21A education 6-14
- 22 arrest and preventive detention

23-30

- 23 forced labour, 24 child labour
- 25-28 religion
- 29 culture, 30 minority institutions

Remedies (32-35)

- 32 - the soul of the Constitution
- 5 writs
- 33 armed forces
- 34 martial law
- 35 only Parliament legislates

Article 21 case line

- Gopalan 1950 - narrow
- Maneka Gandhi 1978 - fair, just, reasonable
- Olga Tellis 1985 livelihood
- Puttaswamy 2017 privacy

Citizenship - Part II, Articles 5 to 11, and the Citizenship Act, 1955

Part II does one narrow job. It decides who was an Indian citizen on 26 January 1950, when the country had just been split and people were moving in both directions across a new border. It does not lay down permanent citizenship law. That job it hands to Parliament under Article 11.

Articles 5-11 at a glance

Article	What it deals with
Art. 5	Citizenship at the commencement of the Constitution
Art. 6	Rights of citizenship of persons who migrated to India from Pakistan
Art. 7	Rights of citizenship of persons who migrated to Pakistan
Art. 8	Rights of citizenship of persons of Indian origin residing outside India
Art. 9	Voluntary acquisition of foreign citizenship ends Indian citizenship
Art. 10	Continuance of the rights of citizenship
Art. 11	Parliament's power to regulate the right of citizenship by law

- India has single citizenship only - there is no separate citizenship of a State.
- Contrast the USA, which has dual citizenship, federal and state.
- Articles 5 to 9 came into force on 26 November 1949 itself, ahead of the rest of the Constitution.
- Article 9 is automatic - take a foreign passport voluntarily and you cease to be an Indian citizen.

TRAP

Article 11 is the one that empowers Parliament to make citizenship law. Students routinely tick Article 5. Article 5 only fixes who was a citizen on the day the Constitution began.

Parliament used its Article 11 power to pass the Citizenship Act, 1955. Learn the five ways in and the three ways out. Then learn what each amendment changed - RPSC asks the amendment year, not the section number.

- Five modes of acquisition: by birth, by descent, by registration, by naturalisation, and by incorporation of territory.

- Marriage is NOT a separate mode - a foreign spouse comes in through registration. This is a standard wrong option.
 - Three modes of loss: renunciation, termination and deprivation.
 - Amendments to the Act: 1986, 1992, 2003, 2005, 2015 and 2019.
 - 1992 amendment - citizenship by descent allowed through the mother, not only the father.
 - 2003 amendment - defined the term 'illegal migrant'.
 - 2015 amendment - merged the PIO card scheme into the OCI card scheme.
-
- CAA 2019 covers Hindus, Sikhs, Buddhists, Jains, Parsis and Christians - six communities.
 - From Afghanistan, Bangladesh and Pakistan - three countries.
 - Who entered India on or before 31 December 2014 - that is the cut-off date.
 - Naturalisation period for them cut from eleven years to five years.
 - An OCI cardholder is not a citizen: no voting right, no public office, no agricultural land.

CURRENT LINK

Current link, as of September 2026: the CAA Rules were notified on 11 March 2024 and the first certificates of citizenship under the Act were granted in May 2024. The Supreme Court declined to stay the Rules, and the batch of more than 200 petitions challenging the Act's constitutional validity was listed for final hearing in 2026 - check the latest position before the exam.

The frame of Part III, and the Article-to-right table for Articles

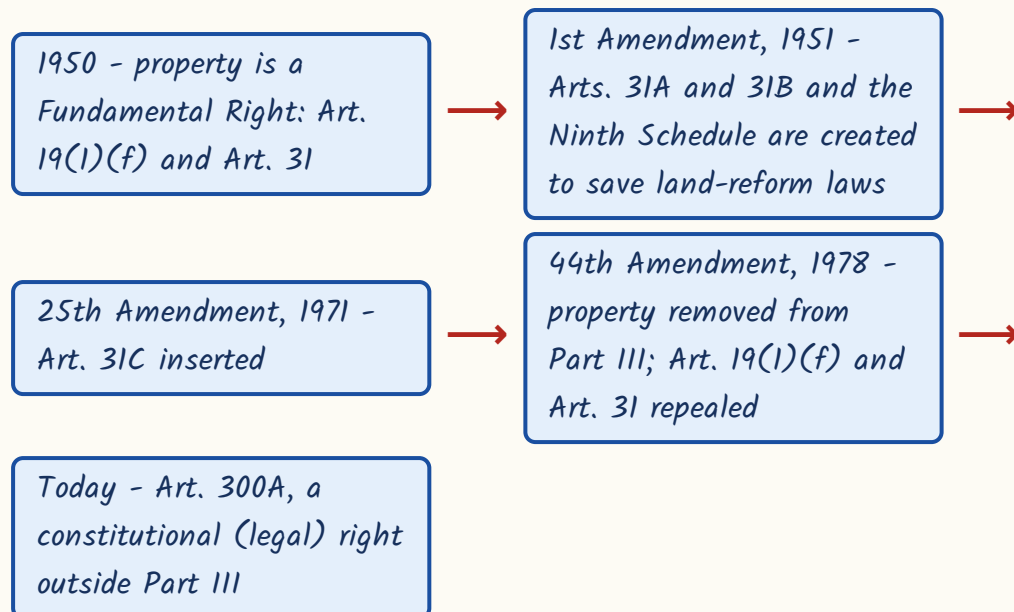
12 to 35

Fundamental Rights sit in Part III, Articles 12 to 35. They are called the Magna Carta of India. They are enforceable against the State, so before you can use them you must know what 'State' means - and that is Article 12's job. Article 13 then supplies the weapon: any law that clashes with a Fundamental Right is void.

- Art. 12 defines 'State' as: the Government and Parliament of India; the Government and legislature of each State; all local authorities; and all other authorities within India or under the control of the Government of India.
- 'Local authorities' covers municipalities, panchayats, district boards, improvement trusts.
- 'Other authorities' has been read by the courts to cover statutory and non-statutory bodies substantially controlled or financed by government.
- Art. 13 - all laws inconsistent with Fundamental Rights are void. This is the express textual basis of judicial review.
- Art. 13(4), inserted by the 24th Amendment Act, 1971, keeps constitutional amendments outside the reach of Article 13.

There were originally seven Fundamental Rights. Today there are six. The right to property went out of Part III through the 44th Amendment Act, 1978 and now sits in Article 300A as a plain constitutional or legal right - you can still enforce it, but not by moving the Supreme Court under Article 32.

The journey of the right to property - a favourite one-liner



ASKED IN RAS

Asked in RAS Pre 2021 - the right to property was removed from the list of Fundamental Rights by the 44th Amendment Act, 1978. Not the 42nd, not the 43rd. And its present home is Article 300A.

The Article-to-right table, Articles 12 to 35 - learn it in two halves

Articles 12 to 24

Article	Right / provision
Art. 12	Definition of 'State'
Art. 13	Laws inconsistent with Fundamental Rights are void - judicial review
Art. 14	Equality before the law and equal protection of the laws
Art. 15	Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth
Art. 16	Equality of opportunity in matters of public employment
Art. 17	Abolition of untouchability
Art. 18	Abolition of titles
Art. 19	The six freedoms
Art. 20	Protection in respect of conviction for offences

Article	Right / provision
Art. 21	Protection of life and personal liberty
Art. 21A	Free and compulsory education for children aged 6-14 years
Art. 22	Protection against arrest and detention in certain cases
Art. 23	Prohibition of traffic in human beings, begar and forced labour
Art. 24	Prohibition of employment of children below 14 in factories, mines and hazardous work

Articles 25 to 35

Article	Right / provision
Art. 25	Freedom of conscience and free profession, practice and propagation of religion
Art. 26	Freedom to manage religious affairs
Art. 27	Freedom from taxation for the promotion of any particular religion
Art. 28	Freedom from religious instruction in wholly State-funded educational institutions
Art. 29	Protection of the language, script and culture of any section of citizens
Art. 30	Right of minorities to establish and administer educational institutions of their choice
Arts. 31A, 31B, 31C	Saving of certain laws; Art. 31B protects laws placed in the Ninth Schedule
Art. 32	Right to constitutional remedies - the five writs
Art. 33	Parliament may restrict the Fundamental Rights of the armed forces and analogous services
Art. 34	Restriction on Fundamental Rights while martial law is in force in any area
Art. 35	Only Parliament may make laws on certain Fundamental Rights matters

TRAP

Article 17 is untouchability, Article 18 is titles. RPSC offers 'Article 18 - abolition of untouchability' as a wrong pair every second year. Also remember Article 18 exempts military and academic distinctions, and national awards such as the Bharat Ratna were upheld in *Balaji Raghavan v. Union of India* (1996).

Right to Equality - Articles 14 to 18, and the reservation clauses

Article 14 has two limbs and they come from two different traditions. 'Equality before the law' is British and negative - no one is above the law. 'Equal protection of the laws' is American and positive - like should be treated alike. Article 14 covers all persons, not just citizens; Articles 15 and 16 are for citizens only.

- Art. 15 forbids discrimination on five grounds only: religion, race, caste, sex, place of birth. Descent is not one of them.
- Art. 16 guarantees equality of opportunity in public employment.
- Art. 17 abolishes untouchability - enforced through the Protection of Civil Rights Act, 1955 (originally the Untouchability (Offences) Act, 1955).
- Art. 17 is one of the very few rights enforceable against private individuals too.

Which amendment inserted which reservation clause

Clause	Inserted by	Subject
Art. 15(4)	1st Amendment, 1951	Special provision for socially and educationally backward classes, SCs and STs
Art. 15(5)	93rd Amendment, 2005	Reservation in private educational institutions

Clause	Inserted by	Subject
Arts. 15(6) and 16(6)	103rd Amendment, 2019	Reservation for the economically weaker sections (EWS)
Art. 16(4A)	77th Amendment, 1995	Reservation in promotion for SCs and STs
Art. 16(4B)	81st Amendment, 2000	Carrying forward of backlog vacancies

Right to Freedom - Articles 19 to 22

Article 19 today guarantees six freedoms, not seven. The seventh - to acquire, hold and dispose of property - was deleted along with the rest of the property right by the 44th Amendment, 1978. Every one of the six is available only to citizens, and every one carries a 'reasonable restrictions' clause.

- 19(1)(a) speech and expression.
- 19(1)(b) assembly peaceably and without arms.
- 19(1)(c) association or unions - and co-operative societies, which the 97th Amendment, 2011 added here.
- 19(1)(d) movement throughout the territory of India.
- 19(1)(e) residence and settlement in any part of India.
- 19(1)(g) profession, occupation, trade or business.
- Note there is no 19(1)(f) any more - that was property.

Article 20 protects an accused person. Three protections: no ex post facto criminal law, no double jeopardy, no compulsion to be a witness against oneself. Article 20(2) is the double jeopardy clause - the one RPSC names directly.

- Art. 22 rights on arrest: to be told the grounds of arrest, to consult and be defended by a lawyer of choice, and to be produced before the nearest

magistrate within 24 hours excluding journey time.

- These do not apply to enemy aliens or to persons held under preventive detention.
- Preventive detention beyond three months requires the opinion of an advisory board.
- Articles 20 and 21 cannot be suspended even during a National Emergency - the 44th Amendment, 1978 made that permanent after the 1975-77 experience.

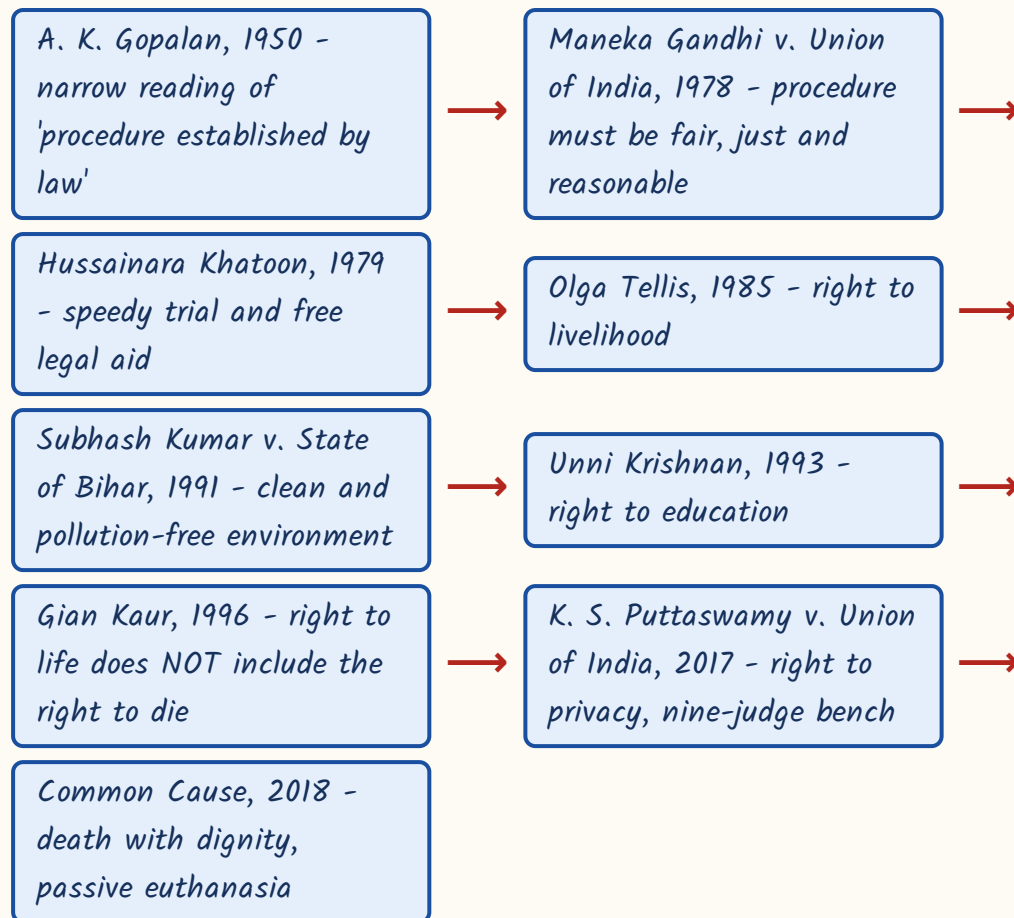
TRAP

Two numbers get swapped constantly. Twenty-four HOURS is the limit for producing an arrested person before a magistrate; three MONTHS is the limit for preventive detention without an advisory board's opinion. And Article 24's child labour age is fourteen years, not eighteen.

Article 21 - the Article that grew, and how it grew

Article 21 reads in one line: no person shall be deprived of his life or personal liberty except according to procedure established by law. In 1950 the Supreme Court read that literally in *A. K. Gopalan* - if Parliament laid down a procedure, that was the end of the matter. In 1978 *Maneka Gandhi* turned it around: the procedure must itself be fair, just and reasonable. Everything after 1978 in Indian rights law flows from that one shift.

The judicial expansion of Article 21 – learn the order, ordering questions are asked



ASKED IN RAS

Asked in RAS Pre 2018 and again in 2023 - in which case did the Supreme Court hold that the 'procedure established by law' under Article 21 must be fair, just and reasonable? Maneka Gandhi v. Union of India.

ASKED IN RAS

Asked in RAS Pre 2024 - the right to privacy was declared a Fundamental Right flowing from Article 21 in K. S. Puttaswamy v. Union of India (2017). And in RAS Pre 2023 a statement set turned on Gian Kaur: the right to life does NOT include the right to die - that statement is false and it was planted as the wrong option.

ASKED IN RAS

Asked in RAS Pre 2023 as a matching set - Vishaka v. State of Rajasthan: guidelines against sexual harassment of women at the workplace; Maneka Gandhi: fair, just and reasonable procedure; Puttaswamy: right to privacy; Olga Tellis: right to livelihood. Note the Rajasthan connection in Vishaka - RPSC likes it for exactly that reason.

- Art. 21A - free and compulsory education for children aged six to fourteen, inserted by the 86th Amendment Act, 2002.
- The Right of Children to Free and Compulsory Education (RTE) Act, 2009 came into force on 1 April 2010.
- Art. 21A binds the State as defined in Art. 12 - so it is not enforceable only against the Union.
- Both Art. 21 and Art. 21A are available to citizens and foreigners alike.

Articles 23 to 30 - exploitation, religion, culture

This block is pure Article-numbering. Read it twice and it stays. The exploitation pair is 23 and 24, the religion block is 25 to 28, and the cultural-educational pair is 29 and 30.

- Art. 23 - prohibition of traffic in human beings, begar and other similar forms of forced labour.
- Art. 24 - no child below fourteen in any factory, mine or other hazardous employment.
- Art. 25 - freedom of conscience and the right freely to profess, practise and propagate religion.
- Art. 26 - freedom of every religious denomination to manage its own religious affairs.

- Art. 27 - no person can be compelled to pay a tax for the promotion of any particular religion.
- Art. 28 - no religious instruction in an educational institution wholly maintained out of State funds.
- Art. 29 - any section of citizens with a distinct language, script or culture may conserve it.
- Art. 30 - minorities, religious or linguistic, may establish and administer educational institutions of their choice.

Article 32 and the five writs

A right without a remedy is a slogan. Article 32 supplies the remedy - you may move the Supreme Court directly for the enforcement of a Fundamental Right, and that itself is a Fundamental Right. Dr. Ambedkar called Article 32 'the very soul of the Constitution and the very heart of it'. Learn that quotation with the Article number attached.

The five writs

Writ	Literal meaning	What it does
Habeas corpus	'To have the body'	Orders that a detained person be produced; used against illegal detention, and it can run against private persons too
Mandamus	'We command'	Commands a public official, body, corporation or lower court to perform a public duty it has failed to perform; not available against a private individual
Prohibition	'To forbid'	Issued by a higher court to a lower court or tribunal to stop it exceeding its jurisdiction - preventive, and only against judicial or quasi-judicial bodies
Certiorari	'To be certified'	A higher court transfers a case to itself or quashes the order of a lower court or tribunal - curative, used after the order is passed

Writ	Literal meaning	What it does
Quo warranto	'By what authority'	Asks a person by what authority he holds a public office; any interested person may seek it

- There are exactly five writs. Injunction is NOT a writ under Article 32 - it is a standard wrong option.
- Art. 32 can be invoked only for the enforcement of Fundamental Rights.
- Art. 226 empowers High Courts to issue the same writs, and is wider - for Fundamental Rights 'and for any other purpose'.
- Art. 32 is itself a Fundamental Right and cannot be suspended except as provided by Article 359.

Who can claim what - citizens only, everyone, and the exceptions

This is the single most repeated distinction in the Fundamental Rights chapter. RPSC asked it as a direct question in 2016 and 2024, and again inside a statement set in 2024. Five Articles are for citizens only. Everything else in Part III is for any person - Indian or foreign, natural or in some cases juristic.

Citizens only vs available to all persons

Only for CITIZENS	For citizens AND foreigners
Art. 15 - no discrimination on religion, race, caste, sex, place of birth	Art. 14 - equality before law, equal protection of the laws
Art. 16 - equality of opportunity in public employment	Art. 20 - protection in respect of conviction for offences
Art. 19 - the six freedoms	Art. 21 - life and personal liberty; Art. 21A - education
Art. 29 - protection of language, script and culture	Art. 22 - protection against arrest and detention
Art. 30 - minorities' right to run educational institutions	Arts. 23 and 24 - against exploitation and child labour
Remember the five numbers: 15, 16, 19, 29, 30	Arts. 25 to 28 - the whole freedom-of-religion block

YAAD RAKHO

Yaad rakho the citizens-only set as '15-16-19-29-30'. Say it out loud as a phone number. Everything not on that list is available to foreigners as well.

ASKED IN RAS

Asked in RAS Pre 2016 and again in 2024 - which Fundamental Right is NOT available to foreigners in India? Freedom of speech and expression under Article 19. In RAS Pre 2024 the same idea came as a statement set: Article 19 is for citizens only (true), Article 21 extends to foreigners (true), Article 15 extends to foreigners (false).

- Art. 33 - Parliament may restrict or abrogate the Fundamental Rights of the armed forces, paramilitary forces, police, intelligence agencies and analogous services.
- Art. 34 - Fundamental Rights may be restricted while martial law is in force in any area.

- Art. 35 - only Parliament, not a State legislature, may make laws on certain Fundamental Rights matters.

The doctrines and the Ninth Schedule

Four doctrines run through Part III, and each has one anchoring case. Learn the doctrine, the one-line meaning and the case name. That is all RPSC asks.

Doctrine, meaning, anchoring case

Doctrine	What it means	Case
Eclipse	A pre-Constitution law inconsistent with a Fundamental Right is not dead - it is overshadowed, and revives if the inconsistency is removed	Bhikaji Narain Dhakras v. State of Madhya Pradesh, 1955
Severability	Only the offending part of a law is struck down; the rest survives if it can stand alone	Applied throughout Art. 13 jurisprudence
Non-waiver	A person cannot waive or give up his Fundamental Rights, even voluntarily	Bashesar Nath v. Commissioner of Income Tax, 1959
Basic structure	Parliament may amend the Constitution but not destroy its basic structure	Kesavananda Bharati, 1973

- Art. 31B protects laws placed in the Ninth Schedule from challenge on Fundamental Rights grounds.
- The Ninth Schedule itself was created by the 1st Amendment Act, 1951.
- I. R. Coelho v. State of Tamil Nadu (2007): laws added to the Ninth Schedule after 24 April 1973 - the date of the Kesavananda judgment - are open to judicial review.

- *Sajjan Singh v. State of Rajasthan* upheld the 17th Amendment and reaffirmed Parliament's power to amend Fundamental Rights; *Golaknath* (1967) reversed that view two years later.

TRAP

Sajjan Singh is 'v. State of Rajasthan' and *Vishaka* is also 'v. State of Rajasthan' - two completely different cases with the same respondent. *Sajjan Singh* is about amending Fundamental Rights; *Vishaka* is about sexual harassment at the workplace. RPSC has a state-specific reason to like both.

REVISION RECAP

1. Citizenship = Part II, Arts. 5-11. Art. 5 at commencement, Art. 6 migrants from Pakistan, Art. 7 migrants to Pakistan, Art. 11 Parliament's power.
2. India has single citizenship only; Art. 9 - voluntary foreign citizenship ends Indian citizenship.
3. Citizenship Act 1955 - five modes in (birth, descent, registration, naturalisation, incorporation of territory), three modes out (renunciation, termination, deprivation). Marriage is not a separate mode.
4. 1992 amendment - descent through the mother; 2003 - defined illegal migrant; 2015 - PIO merged into OCI.
5. CAA 2019 - six communities, three countries, cut-off 31 December 2014, naturalisation cut from eleven years to five.
6. Fundamental Rights = Part III, Arts. 12-35, the Magna Carta of India; originally seven, now six.
7. Art. 12 defines 'State'; Art. 13 makes inconsistent laws void and is the textual basis of judicial review; Art. 13(4) came from the 24th Amendment.
8. Property left Part III by the 44th Amendment, 1978 and now lives in Art. 300A.
9. Equality block: 14 equality, 15 no discrimination, 16 public employment, 17 untouchability, 18 titles.
10. 15(4) - 1st Amendment; 15(5) - 93rd; 15(6) and 16(6) EWS - 103rd; 16(4A) promotion - 77th; 16(4B) backlog - 81st.
11. Art. 19 has six freedoms today; co-operative societies were added to 19(1)(c) by the 97th Amendment, 2011.
12. Art. 20(2) is double jeopardy; Arts. 20 and 21 survive even a National Emergency after the 44th Amendment.

13. Art. 22 - produced before a magistrate within 24 hours; preventive detention beyond three months needs an advisory board.
14. Article 21 line: Gopalan 1950 narrow, Maneka 1978 fair-just-reasonable, Hussainara 1979, Olga Tellis 1985, Subhash Kumar 1991, Unni Krishnan 1993, Gian Kaur 1996 (no right to die), Puttaswamy 2017, Common Cause 2018.
15. Art. 21A - education 6-14, inserted by the 86th Amendment 2002; RTE Act 2009 effective 1 April 2010.
16. 23 forced labour, 24 child labour below 14; 25-28 religion (27 tax, 28 instruction); 29 culture, 30 minority institutions.
17. Art. 32 is 'the very soul of the Constitution' - Ambedkar; five writs only, injunction is not one of them.
18. Art. 226 is wider than Art. 32 - High Courts can issue writs for Fundamental Rights and for any other purpose.
19. Citizens-only rights: Arts. 15, 16, 19, 29, 30. Every other Fundamental Right covers foreigners too.
20. Doctrines: eclipse (Bhikaji Narain 1955), severability, non-waiver (Bhaskar Nath 1959), basic structure (Kesavananda 1973); Ninth Schedule laws post 24 April 1973 are reviewable after I. R. Coelho (2007).

IP03

Directive Principles and Fundamental Duties

About 2 questions a paper. Two clusters dominate: Fundamental Duties with the 42nd Amendment and the Swaran Singh Committee (2013, 2016, 2018, 2021) and DPSPs matched to Articles with the FR-versus-DPSP case line (2013, 2021, 2023). Article 39A alone came in 2018 and again in 2024.

Part IV tells the State what kind of country to build; Part IVA tells the citizen what to do. Neither is enforceable in court - and that is precisely what makes them easy exam material, because there is nothing to argue about, only Articles to match. RPSC has asked the Article-to-directive matching and the Swaran Singh Committee again and again.

DPSPs and Fundamental Duties

The frame

- Part IV, Arts. 36-51
- Borrowed from Ireland
- Art. 37 - not enforceable by any court
- But 'fundamental in the governance of the country'

Socialistic

- 38 welfare state
- 39 six directives
- 39A free legal aid
- 41 work, education, assistance
- 42 humane work, maternity
- 43 living wage
- 43A workers in management
- 47 nutrition and public health

Gandhian

- 40 village panchayats
- 43 cottage industries
- 43B co-operatives
- 46 SC/ST and weaker sections
- 47 prohibition
- 48 cow slaughter ban

Liberal-intellectual

- 44 uniform civil code
- 45 early childhood care below six
- 48 modern agriculture
- 48A environment
- 49 monuments
- 50 judiciary from executive
- 51 international peace

FR vs DPSP case line

- Champakam 1951
- Golaknath 1967
- Kesavananda 1973
- Minerva Mills 1980

Fundamental Duties

- Part IVA, Article 51A only
- 42nd Amendment 1976
- Swaran Singh Committee 1976
- Ten duties, eleventh added by 86th Amendment 2002
- Borrowed from the USSR

What the Directive Principles are, and why they cannot be enforced

Directive Principles of State Policy sit in Part IV, Articles 36 to 51. They are instructions to the State - Union, States, local bodies - on the kind of social and economic order to build. We took the idea from the Constitution of Ireland, which had itself picked it up from Spain. That chain of borrowing is itself an exam fact.

The key limitation is in Article 37. The Directive Principles are NOT enforceable by any court. But the same Article says they are 'fundamental in the governance of the country' and that it is the duty of the State to apply them in making laws. So: no court will enforce them, but they are not decorative either. Get the wording right - statement-based questions turn on exactly this sentence.

- Art. 36 defines 'State' for Part IV in the same terms as Article 12 does for Part III.
- Art. 37 - not enforceable by any court; fundamental in the governance of the country.
- Dr. B. R. Ambedkar called the Directive Principles a 'novel feature' of the Constitution.
- K. T. Shah dismissed them as 'pious superfluities'.
- Sir Ivor Jennings called them 'pious aspirations'.
- Granville Austin saw Part III and Part IV together as the 'conscience of the Constitution'.

Fundamental Rights vs Directive Principles - the contrast RPSC builds statement sets on

Fundamental Rights (Part III, Arts. 12-35)	Directive Principles (Part IV, Arts. 36-51)
Justiciable - enforceable through Arts. 32 and 226	Non-justiciable - Art. 37 bars any court from enforcing them
Largely negative - they restrain the State from acting	Positive - they direct the State to act
Aim at political democracy	Aim at social and economic democracy
Drawn mainly from the American tradition	Drawn from Ireland, which took the idea from Spain
Operate on their own; no further law is needed	Need legislation before they take practical effect
Art. 32 is 'the very soul of the Constitution' - Ambedkar	Part IV is a 'novel feature' - Ambedkar; 'pious aspirations' - Jennings

TRAP

Article 37 does not say the Directive Principles are unimportant. Any statement reading 'the Directive Principles are enforceable by the courts' is false; any statement reading 'they are fundamental in the governance of the country' is true. Both sentences come from the same Article - RPSC puts them in the same question.

The socialistic Directive Principles

Laxmikanth's three-fold classification is not in the Constitution itself, but every paper uses it, so learn it. Socialistic principles aim at a welfare state - work, wages, health, legal aid. Start here because this is the biggest group.

Socialistic - Arts. 38, 39, 39A, 41, 42, 43, 43A, 47

Article	Directive
Art. 38	Promote the welfare of the people by securing a social order in which justice - social, economic and political - informs all institutions
Art. 38(2)	Minimise inequalities in income, status, facilities and opportunities (added by the 44th Amendment, 1978)
Art. 39	Six directives - (a) adequate means of livelihood; (b) distribution of material resources for the common good; (c) prevention of concentration of wealth; (d) equal pay for equal work for men and women; (e) health and strength of workers and children not abused; (f) children given opportunities to develop healthily
Art. 39A	Equal justice and free legal aid (added by the 42nd Amendment, 1976)
Art. 41	Right to work, to education and to public assistance in unemployment, old age, sickness and disablement
Art. 42	Just and humane conditions of work, and maternity relief
Art. 43	Living wage, a decent standard of life, and promotion of cottage industries
Art. 43A	Participation of workers in the management of industries (42nd Amendment, 1976)

Article	Directive
Art. 47	Raise the level of nutrition and the standard of living, improve public health, and prohibit intoxicating drinks and injurious drugs

- Article 39(d) is the equal-pay-for-equal-work clause - it is a Directive Principle, not a Fundamental Right.
- Article 39(f) was recast by the 42nd Amendment, 1976.
- Article 39A was given statutory shape by the Legal Services Authorities Act, 1987 - which created NALSA, the State and District Legal Services Authorities, and Lok Adalats.
- So when a question links free legal aid to Lok Adalats or NALSA, the Article behind it is 39A.

Read Article 39 slowly once. Its six clauses (a) to (f) supply the raw material for statement questions, and clause (b) and clause (c) - material resources for the common good, and prevention of concentration of wealth - are the two that Article 31C later singles out for special protection. Those two clause letters are worth remembering on their own.

ASKED IN RAS

Asked in RAS Pre 2018 and again in RAS Pre 2024 - Article 39A, which directs the State to secure equal justice and to provide free legal aid, was inserted by the 42nd Amendment Act, 1976. Two papers, the same fact.

The Gandhian and liberal-intellectual Directive Principles

Gandhian principles carry Gandhi's programme into the Constitution - village self-government, cottage industry, uplift of the weaker sections, prohibition, cow protection. Liberal-intellectual principles carry the modernising, internationalist

agenda – a uniform civil code, scientific agriculture, environment, separation of powers, world peace.

Gandhian – Arts. 40, 43, 43B, 46, 47, 48

Article	Directive
Art. 40	Organise village panchayats as units of self-government
Art. 43	Promotion of cottage industries on an individual or co-operative basis in rural areas
Art. 43B	Promote voluntary formation, autonomous functioning, democratic control and professional management of co-operative societies (97th Amendment, 2011)
Art. 46	Promote the educational and economic interests of the Scheduled Castes, Scheduled Tribes and other weaker sections, and protect them from social injustice and exploitation
Art. 47	Prohibition of intoxicating drinks and of drugs injurious to health
Art. 48	Prohibit the slaughter of cows, calves and other milch and draught cattle

Liberal-intellectual – Arts. 44, 45, 48, 48A, 49, 50, 51

Article	Directive
Art. 44	Uniform civil code for the citizens throughout the territory of India
Art. 45	Early childhood care and education for all children until they complete the age of six years (as substituted by the 86th Amendment, 2002)
Art. 48	Organise agriculture and animal husbandry on modern and scientific lines
Art. 48A	Protect and improve the environment and safeguard the forests and wildlife of the country (42nd Amendment, 1976)
Art. 49	Protect monuments, places and objects of artistic or historic interest declared to be of national importance
Art. 50	Separate the judiciary from the executive in the public services of the State
Art. 51	Promote international peace and security

- Article 51 has four limbs – promote international peace and security; maintain just and honourable relations between nations; foster respect for

international law and treaty obligations; encourage settlement of international disputes by arbitration.

- Directives also exist outside Part IV: Art. 335 (claims of SCs and STs to services), Art. 350A (instruction in the mother tongue at the primary stage), Art. 351 (development of Hindi).
- Those three are Directive Principles in substance but are not counted in Part IV - a classic 'which of these is in Part IV' trap.
- Three Articles sit in two categories at once - so do not treat the classification as watertight.
- Art. 43 is socialistic (living wage) and Gandhian (cottage industries).
- Art. 47 is socialistic (nutrition and public health) and Gandhian (prohibition).
- Art. 48 is Gandhian (ban on cow slaughter) and liberal-intellectual (scientific agriculture).

ASKED IN RAS

Asked in RAS Pre 2021 and again in 2023 as a matching set - Article 39A: equal justice and free legal aid; Article 40: organisation of village panchayats; Article 44: uniform civil code; Article 48A: protection and improvement of the environment. Those four Articles are the ones RPSC keeps returning to.

CURRENT LINK

Current link, as of September 2026: Uttarakhand became the first State to bring a Uniform Civil Code into force, on 27 January 2025, under its Uniform Civil Code, Uttarakhand Act, 2024. That is Article 44 moving from paper to statute in one State, and it makes Article 44 the most likely DPSP to appear in a current-affairs-flavoured question.

Directive Principles added by amendment

Part IV is not frozen. Four amendments have added to it. This is a small, closed list, and it converts directly into a matching question - amendment to Article. Learn it as four lines.

Amendment to new Directive Principle

Amendment	What it added to Part IV
42nd Amendment, 1976	Art. 39A (free legal aid), Art. 43A (workers in management), Art. 48A (environment)
44th Amendment, 1978	Art. 38(2) - minimise inequalities in income, status, facilities and opportunities
86th Amendment, 2002	Substituted Art. 45 - early childhood care and education below the age of six
97th Amendment, 2011	Art. 43B - promotion of co-operative societies

YAAD RAKHO

Yaad rakho the 42nd Amendment's three additions by their letters - 39A, 43A, 48A. All three end in A, all three came in 1976. The 42nd Amendment also added Part IVA, the Fundamental Duties. One amendment, four things to remember.

TRAP

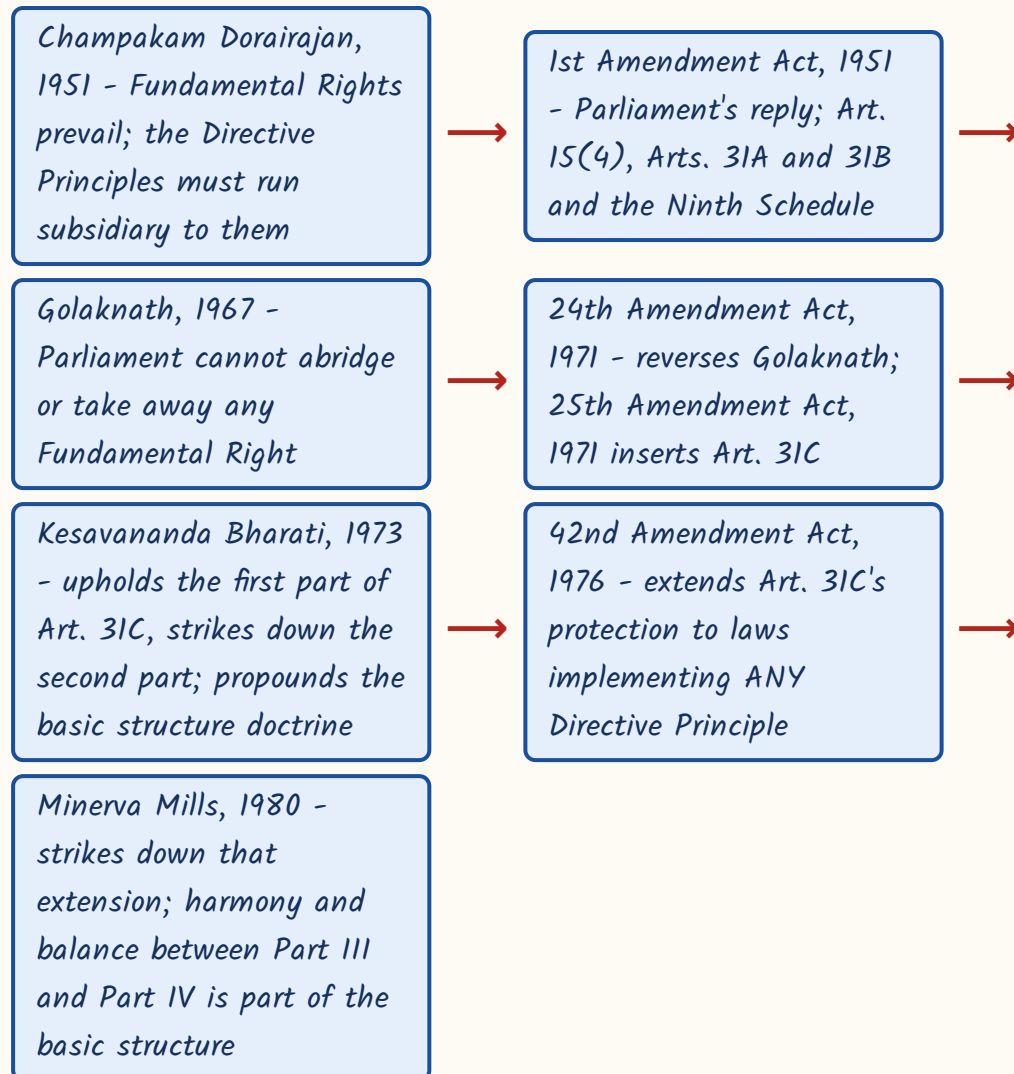
Article 38(2) is the 44th Amendment, not the 42nd. RPSC asks 'which Directive Principle was NOT inserted by the 42nd Amendment' and 38(2) is the answer. Also keep 43A (workers in the management of industries, 42nd Amendment) apart from 43B (co-operative societies, 97th Amendment).

- Article 45 no longer means free and compulsory education up to fourteen years. That job moved to Article 21A in Part III, also by the 86th Amendment, 2002.
- Article 45 now covers only children below six years - early childhood care and education.
- In *Union of India v. Rajendra N. Shah* (July 2021) the Supreme Court struck down Part IXB of the Constitution insofar as it applied to co-operative societies within a State; Article 43B itself remains intact.

Fundamental Rights versus Directive Principles – the case line

What happens when a law made to implement a Directive Principle violates a Fundamental Right? The courts answered that question four times over thirty years, and Parliament answered back with amendments each time. This back-and-forth is the most examinable story in the chapter. Learn it as a ladder, not as separate cases.

Champakam to Minerva Mills – court, then Parliament, then court



- Article 31C was inserted by the 25th Amendment Act, 1971.
- Its first part: a law giving effect to Art. 39(b) or 39(c) cannot be challenged as violating Art. 14 or Art. 19.
- Its second part barred any court from even examining whether such a law really gave effect to those directives - that is the part Kesavananda struck down.
- So today Art. 31C protects only laws implementing Art. 39(b) and 39(c), not all Directive Principles.
- Champakam Dorairajan led directly to the 1st Amendment Act, 1951.

ASKED IN RAS

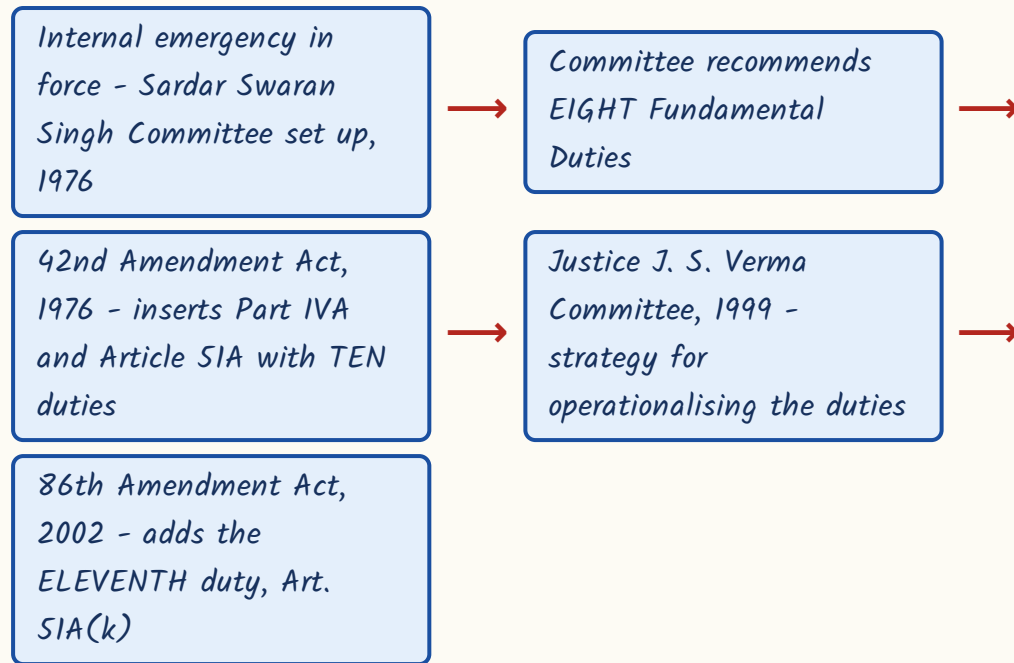
Asked in RAS Pre 2023 as a matching set - Champakam Dorairajan (1951): Directive Principles must run subsidiary to the Fundamental Rights; Golaknath (1967): Parliament cannot abridge or take away a Fundamental Right; Kesavananda Bharati (1973): basic structure doctrine and the second part of Article 31C held unconstitutional; Minerva Mills (1980): harmony and balance between Part III and Part IV is part of the basic structure. Learn the four principles attached to the four names.

- Minerva Mills did NOT strike down the whole of Article 31C.
- It struck down only the 42nd Amendment's extension of Art. 31C to laws implementing any Directive Principle.
- The original Art. 31C, covering Art. 39(b) and 39(c), survives.
- Minerva Mills also struck down the 42nd Amendment's attempt to give Parliament unlimited amending power.

Fundamental Duties - where they came from

The original Constitution had rights for the citizen but no duties. That gap was filled in 1976, during the internal emergency, on the recommendation of the Sardar Swaran Singh Committee. The idea itself was borrowed from the Constitution of the erstwhile USSR - the only constitution then providing for citizens' duties alongside rights.

How Part IVA came into being



- Fundamental Duties are in Part IVA, and Part IVA has just one Article - Article 51A.
- The Swaran Singh Committee also recommended a penalty for non-compliance and a duty to pay taxes. Neither was accepted.
- So there is no duty to pay taxes in Article 51A - a very frequently used wrong option.
- The Verma Committee (1999) listed existing laws that already enforce these duties: the Prevention of Insults to National Honour Act 1971, the Protection of Civil Rights Act 1955, the Wildlife (Protection) Act 1972 and the Representation of the People Act 1951.

ASKED IN RAS

Asked in RAS Pre 2018 and again in 2021 - the Fundamental Duties were added by the 42nd Amendment Act, 1976. Asked in RAS Pre 2016 and again in 2021 - they were incorporated on the recommendation of the Sardar Swaran Singh Committee. Two facts, four papers.

ASKED IN RAS

Asked in RAS Pre 2018 and 2021 as a statement set on the Swaran Singh Committee - it was constituted in 1976 during the internal emergency (true); it recommended eleven duties (FALSE, it recommended eight); it recommended a duty to pay taxes (true, but that recommendation was not accepted). The examiner is testing eight-versus-ten-versus-eleven.

TRAP

Three numbers, three stages. Swaran Singh recommended EIGHT. The 42nd Amendment, 1976 put in TEN. The 86th Amendment, 2002 made it ELEVEN. Never write that the Committee recommended ten or eleven.

The eleven duties under Article SIA

Learn the eleven duties by their clause letters, because RPSC asks 'which Fundamental Duty is contained in Article SIA(h)' straight up. The (h) clause - scientific temper - is the one asked most often.

Article SIA(a) to (k)

Clause	Duty
SIA(a)	Abide by the Constitution and respect its ideals and institutions, the National Flag and the National Anthem
SIA(b)	Cherish and follow the noble ideals of the freedom struggle
SIA(c)	Uphold and protect the sovereignty, unity and integrity of India
SIA(d)	Defend the country and render national service when called upon
SIA(e)	Promote harmony and the spirit of common brotherhood; renounce practices derogatory to the dignity of women
SIA(f)	Value and preserve the rich heritage of our composite culture

Clause	Duty
SIA(g)	Protect and improve the natural environment and have compassion for living creatures
SIA(h)	Develop the scientific temper, humanism and the spirit of inquiry and reform
SIA(i)	Safeguard public property and abjure violence
SIA(j)	Strive towards excellence in all spheres of individual and collective activity
SIA(k)	A parent or guardian to provide opportunities for education to his child or ward between six and fourteen years (86th Amendment, 2002)

- Fundamental Duties are non-justiciable - no writ lies to enforce them.
- They apply only to CITIZENS, not to foreigners. Contrast most Fundamental Rights, which cover foreigners too.
- The eleventh duty, SIA(k), pairs with Article 21A and Article 45 - all three came from the 86th Amendment, 2002, and all three concern the same age band.
- SIA(g) - environment - pairs with Article 48A. One is a duty of the citizen, the other a directive to the State.

YAAD RAKHO

Yaad rakho the 86th Amendment as a set of three: Art. 21A (right of the child, 6-14), Art. 45 (State's duty, below 6), Art. SIA(k) (parent's duty, 6-14). One amendment, three Articles, one theme - education.

REVISION RECAP

1. DPSPs = Part IV, Arts. 36-51, borrowed from Ireland (Ireland took the idea from Spain).
2. Art. 36 defines 'State' as Art. 12 does; Art. 37 makes the DPSPs non-enforceable but fundamental in the governance of the country.
3. Ambedkar - 'novel feature'; K. T. Shah - 'pious superfluities'; Jennings - 'pious aspirations'; Austin - Parts III and IV are the 'conscience of the Constitution'.
4. Socialistic: 38, 39, 39A, 41, 42, 43, 43A, 47. Gandhian: 40, 43, 43B, 46, 47, 48. Liberal-intellectual: 44, 45, 48, 48A, 49, 50, 51.

5. 39(d) equal pay for equal work; 39A free legal aid and the Legal Services Authorities Act 1987 (NALSA, Lok Adalats).
6. 40 panchayats, 43B co-operatives, 44 uniform civil code, 46 SC/ST and weaker sections, 47 nutrition and prohibition, 48 cattle and scientific agriculture.
7. 48A environment, 49 monuments, 50 judiciary separate from executive, 51 international peace and arbitration of disputes.
8. Art. 45 today = early childhood care and education below six years; the 6-14 education right moved to Art. 21A.
9. Directives outside Part IV: Art. 335, Art. 350A, Art. 351.
10. New DPSPs: 42nd Amendment 1976 gave 39A, 43A and 48A; 44th gave 38(2); 86th substituted 45; 97th gave 43B.
11. Article 31C came from the 25th Amendment, 1971 and shields laws implementing Art. 39(b) and 39(c).
12. Case ladder: Champakam 1951 (FRs prevail) - Golaknath 1967 (no abridgement of FRs) - Kesavananda 1973 (basic structure; 31C's second part struck down) - Minerva Mills 1980 (harmony and balance).
13. Fundamental Duties = Part IVA, the single Article 51A, added by the 42nd Amendment, 1976; idea borrowed from the USSR.
14. Sardar Swaran Singh Committee 1976 recommended eight duties; the 42nd Amendment enacted ten; the 86th Amendment 2002 added the eleventh.
15. Rejected recommendations: a penalty for non-compliance, and a duty to pay taxes.
16. 51A(g) environment, 51A(h) scientific temper, 51A(i) public property and non-violence, 51A(k) parent's duty to educate a child aged 6-14.
17. Fundamental Duties are non-justiciable and bind citizens only.
18. Justice J. S. Verma Committee, 1999 - strategy for operationalising the duties; cited the National Honour Act 1971, Protection of Civil Rights Act 1955, Wildlife (Protection) Act 1972, RP Act 1951.
19. Union of India v. Rajendra N. Shah (2021) - Part IXB struck down for intra-State co-operative societies; Art. 43B survives.
20. The 86th Amendment triple: Art. 21A, Art. 45 and Art. 51A(k) - one amendment, three Articles, one subject.

IP04

Union Executive: President, Vice-President, PM and Council of Ministers

About 1-2 questions a paper from Indian Polity's block of roughly 11. Documented repeats: the presidential electoral college (2016, 2024), the 1971 census in the value of an MLA's vote (2016) and the impeachment procedure (2016, 2024). The election and the impeachment together carry more weight than everything else here.

This is the chapter of Articles 52 to 78 — the head of state, his deputy, and the men and women who actually run the country. RPSC does not ask you to discuss the President. It asks you which Article, which majority, which census year, which veto. Learn the numbers cold and this chapter becomes free marks.

Union Executive (Art. 52-78)

President - office

- Art. 52 - there shall be a President
- Art. 53 - executive power vested
- Art. 56 - 5-year term
- Art. 57 - re-election unlimited
- Art. 58 - qualifications, age 35

Powers

- Art. 111 - assent to Bills
- Veto: absolute, suspensive, pocket
- Art. 123 - ordinance
- Art. 72 - pardon
- Art. 143 - reference to SC

Election

- Art. 54 - electoral college
- Art. 55 - PR by single transferable vote
- 1971 census fixes vote value
- 50 proposers + 50 seconders
- Art. 71 - disputes to Supreme Court

Vice-President

- Art. 63, 64 - ex-officio RS Chairman
- Art. 66 - both Houses only
- Art. 66(3) - RS qualification
- Art. 67(b) - removal by RS
- Art. 65 - acts as President

Removal

- Art. 61 - impeachment
- Ground: violation of the Constitution
- 1/4 signatures, 14 days notice
- 2/3 of total membership
- Never used in India

Council of Ministers

- Art. 74 - aid and advise
- Art. 75 - appointment, responsibility
- Art. 75(1A) - 15% cap, 91st Amdt
- Art. 77, 78 - business, PM's duty
- Art. 76 - Attorney General

What the office of President actually is

Start with the split that runs through the whole chapter. The President is the nominal executive. The Council of Ministers headed by the Prime Minister is the real executive. The Constitution says the executive power of the Union is vested in the President, but almost every power is exercised on ministerial advice. Keep the two apart in your head and half the confusing statements in a question set resolve themselves.

- Article 52 - there shall be a President of India. That is the whole Article.
- Article 53 - the executive power of the Union is vested in the President.
- He exercises it directly, or through officers subordinate to him.
- He is head of state, not head of government. The PM is head of government.
- The President is part of Parliament (Article 79), though he sits in neither House.
- Do not swap 52 and 53 - if the question says 'vested', the answer is Article 53.

The election - understand it before you memorise it

The President is not elected directly by the people, but he is not elected by Parliament alone either. The idea is federal. Both the Union and the States must have a voice, and every State's voice must be proportionate to its population. That single idea produces every rule that follows. Read the next four blocks in that light and the arithmetic stops looking arbitrary.

Who is in the electoral college - Article 54

- Elected members of both Houses of Parliament - Lok Sabha and Rajya Sabha.
- Elected members of the Legislative Assemblies of the States.
- Elected members of the Assemblies of Delhi and Puducherry, added by the 70th Amendment Act, 1992.
- Nominated MPs are excluded. Nominated MLAs are excluded.
- All members of Legislative Councils are excluded - MLCs never vote for the President.

Now the method. Article 55 says the election is by proportional representation through a single transferable vote, by secret ballot. Article 55 also says uniformity of representation among the States must be secured, and parity between the States as a whole and the Union. That is why the vote of an MLA from a large State counts for more than the vote of an MLA from a small one.

- Value of a vote - learn both formulae. Value of one MLA's vote = $\frac{\text{population of the State as per the 1971 census}}{\text{number of elected MLAs}} \div 1000$.
- Value of one MP's vote = $\frac{\text{total value of the votes of all MLAs of all States}}{\text{total number of elected MPs}}$.
- The census year is frozen at 1971. It is not the latest census.
- A candidate must secure the quota - more than half the total value of valid votes polled.

ASKED IN RAS

Asked in RAS Pre 2016 - the value of the vote of a member of a State Legislative Assembly in the presidential election is determined with reference to which census? Answer: the Census of 1971. This one fact has been asked on its own; do not lose it.

ASKED IN RAS

Asked in RAS Pre 2016 and again in 2024 as a statement set on the electoral college. The tested points were the same both times - elected members of both Houses and of the State Assemblies vote; nominated members and MLCs do not.

- Nomination of a presidential candidate needs 50 proposers and 50 seconders.
- Security deposit for the presidential candidate is Rs 15,000.
- For the Vice-President it is 20 proposers, 20 seconders and the same Rs 15,000.
- Bigger office, bigger number - 50/50 for President, 20/20 for Vice-President; the deposit is identical, and that sameness is how a wrong option is built.

Qualifications, oath, term and the filling of a vacancy

Four short Articles, and each one has been converted into a one-liner at some point. Learn them as a block, because a match-the-following on Articles 56 to 62 is the standard format.

Articles 56 to 62 at a glance

Article	Provision	The detail that gets asked
58	Qualifications	Citizen of India, 35 years completed, qualified for election to the Lok Sabha, no office of profit
60	Oath	Administered by the Chief Justice of India; in his absence, the senior-most available judge of the Supreme Court
56	Term of office	Five years; resignation is addressed to the Vice-President; continues until his successor enters office
57	Re-election	Eligible for re-election any number of times
61	Impeachment	Sole ground - violation of the Constitution

Article	Provision	The detail that gets asked
62	Filling a vacancy	Election within six months; the new President gets a fresh full five-year term

TRAP

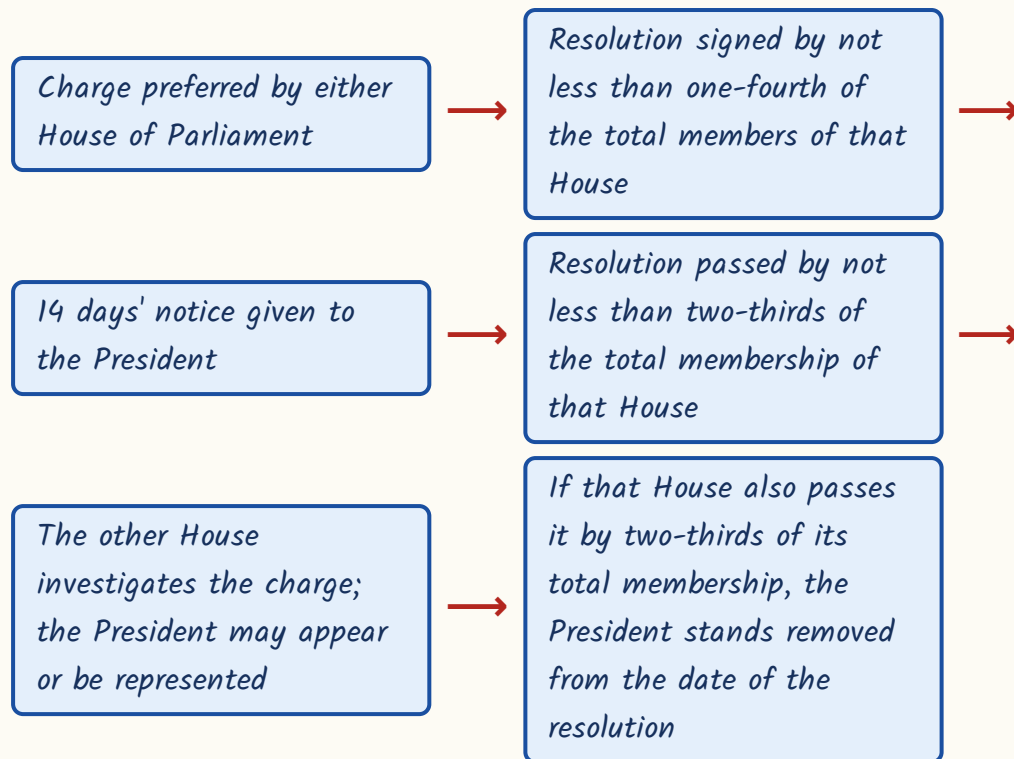
Two resignations, opposite directions. The President resigns to the Vice-President. The Vice-President resigns to the President. RPSC swaps these in a NOT-correct question almost every time it touches the office.

- Article 71 - all doubts and disputes about the election of the President or the Vice-President are decided by the Supreme Court, and its decision is final.
- The election is not invalidated merely because there was a vacancy in the electoral college.
- The President's qualification is tied to the Lok Sabha; the Vice-President's to the Rajya Sabha. Both need 35 years.

Impeachment - the one process you must be able to draw

Impeachment under Article 61 is a quasi-judicial process. It has one ground and one ground only - violation of the Constitution. Not misbehaviour, not incapacity, not corruption. The Constitution does not even define what a violation is. Either House may start it, and the other House then investigates. Learn the sequence as steps, because RPSC asks it as a statement set and as a fill-in-the-majority.

Impeachment of the President - Article 61



ASKED IN RAS

Asked in RAS Pre 2024 - the only ground on which the President of India can be removed by impeachment. Answer: violation of the Constitution. Asked again in 2016 and 2024 as a statement set on who may prefer the charge and what majority is needed.

TRAP

This is the highest-value trap in the chapter. In the presidential ELECTION, elected MLAs vote and nominated MPs do not. In IMPEACHMENT it is exactly the reverse - nominated members of Parliament participate, and elected members of the State Assemblies do not. Impeachment is a purely parliamentary act.

- No President of India has ever been impeached.
- Two-thirds here is of the TOTAL MEMBERSHIP of the House, not of members present and voting.

- One-fourth is only for the signatures on the resolution, not for its passage.

Legislative powers - the veto and the ordinance

When a Bill passed by both Houses reaches the President under Article III, he has three choices - assent, withhold assent, or return the Bill for reconsideration if it is not a Money Bill. Those three choices are what we call the veto powers. India has three vetoes. The United States has a fourth one, the qualified veto, and RPSC likes to slip it into the option set.

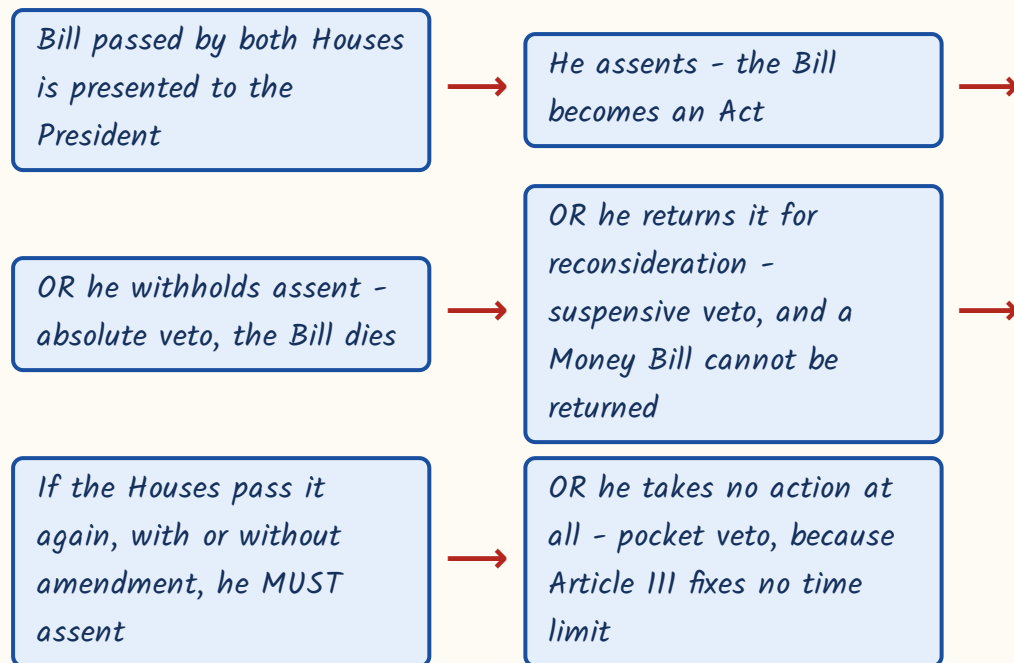
Veto powers of the President

Type	What he does	When it applies
Absolute veto	Withholds assent outright; the Bill dies	Private member Bills; and over a State Bill reserved by the Governor under Article 201
Suspensive veto	Returns the Bill for reconsideration; if the Houses pass it again he must assent	Any ordinary Bill; NOT a Money Bill
Pocket veto	Neither assents nor returns - simply sits on it	Article III sets no time limit for him to act
Qualified veto	Does not exist in India	This is the American President's veto, overridable by a higher majority

- The pocket veto was famously used by President Giani Zail Singh on the Indian Post Office (Amendment) Bill, 1986.
- Over a State Bill reserved for his consideration under Article 201 the President enjoys an absolute veto.
- He cannot return a Money Bill for reconsideration - he assents or withholds.

YAAD RAKHO

Three vetoes in India - A, S, P: Absolute, Suspensive, Pocket. There is no Q. If 'qualified veto' appears in the options for an India question, that is the answer to a NOT-question and the wrong answer to a straight one.

What happens when a Bill reaches the President - Article III

Now the ordinance-making power, Article 123. An ordinance is emergency law-making. It is available only when at least one House is not in session and the President is satisfied that circumstances require immediate action. An ordinance has the same force as an Act of Parliament, but it lives on a clock.

- The ordinance power is co-extensive with Parliament's legislative power - he can ordinance only on what Parliament can legislate.
- It must be laid before both Houses when they reassemble.
- It ceases to operate six weeks after the reassembly of Parliament.
- An ordinance cannot amend the Constitution.
- D. C. Wadhwa v. State of Bihar (1987) - repeated re-promulgation of ordinances is a fraud on the Constitution.
- Reaffirmed in Krishna Kumar Singh v. State of Bihar (2017).

- Six weeks runs from the REASSEMBLY of Parliament, not from the date of promulgation.

Pardoning power – Article 72 against Article 161

Article 72 gives the President mercy jurisdiction; Article 161 gives the Governor a narrower version of the same. The examiner's whole interest is in where the Governor stops. Two things only the President can do. Learn those two and the comparison is done.

President (Art. 72) vs Governor (Art. 161)

President – Article 72	Governor – Article 161
Can pardon, commute, remit, respite and reprieve	Same five forms available
CAN pardon a death sentence	CANNOT pardon a death sentence
CAN act on a sentence by a court martial	CANNOT touch a court martial sentence
Extends to punishment for an offence against a Union law	Extends to offences against a law relating to a matter in the State's executive power
Exercised on the advice of the Council of Ministers	Exercised on the advice of the State Council of Ministers

The five forms of mercy – learn the definitions, they are matched

Term	What it means
Pardon	Absolves the convict of the sentence, the conviction and all disqualifications
Commutation	Substituting one form of punishment with a lighter form
Remission	Reducing the period of a sentence without changing its character
Respite	A lesser sentence on account of some special fact, such as physical disability of the convict
Reprieve	A temporary stay of the execution of a sentence

YAAD RAKHO

Commutation changes the **KIND** of punishment. Remission changes the **QUANTITY**. Reprieve only presses pause. Pardon wipes the slate clean. These four are the ones that get matched wrongly.

The Vice-President - a different electoral college

The Vice-President's election looks like the President's but is deliberately narrower. No State legislature takes part at all, and nominated MPs do take part. Understand why - the Vice-President's real job is to chair the Rajya Sabha, which is a parliamentary job, not a federal one.

- Article 63 - there shall be a Vice-President of India.
- Article 64 - he is ex-officio Chairman of the Council of States and draws the salary payable to the Chairman.
- Article 66 - elected by an electoral college of the members of BOTH Houses of Parliament, INCLUDING the nominated members.
- The method is the same - proportional representation with a single transferable vote.
- Article 66(3) - qualifications: citizen of India, 35 years of age, qualified for election as a member of the Rajya Sabha.

Electoral college - President vs Vice-President

President	Vice-President
Elected MPs of both Houses	ALL members of both Houses
Elected MLAs of States, Delhi and Puducherry	No State legislature participates at all
Nominated members excluded	Nominated members included
Qualified for election to the Lok Sabha	Qualified for election to the Rajya Sabha

Removal, and acting as President

- Article 67(b) - removed by a resolution passed by a majority of all the then members of the Rajya Sabha (effective majority) and agreed to by the Lok Sabha.
- 14 days' notice is required. The Constitution states no ground for his removal.
- The resolution can originate only in the Rajya Sabha, never in the Lok Sabha.
- Article 65 - the Vice-President acts as President during a vacancy in that office.
- While acting as President he does NOT perform the duties of Chairman of the Rajya Sabha and does not draw the Chairman's salary - he draws the President's emoluments.
- He can act as President for a maximum of six months, because Article 62 requires the vacancy to be filled within six months.
- If both offices fall vacant, the Presidential (Discharge of Functions) Act, 1969 puts the Chief Justice of India first.
- Justice M. Hidayatullah discharged the functions of the President in 1969 under that Act.

CURRENT LINK

Current link (as of September 2026): the office is a live illustration of Article 68. Shri Jagdeep Dhankhar resigned as Vice-President in July 2025, and Shri C. P. Radhakrishnan was elected and sworn in on 12 September 2025 as the 15th Vice-President of India. A mid-term vacancy in the Vice-President's office is filled by a fresh election and the new incumbent serves a full five-year term - unlike the presidential vacancy, which Article 62 puts on a six-month clock.

Prime Minister and the Council of Ministers

Article 74 is the hinge of the whole parliamentary system. There shall be a Council of Ministers with the Prime Minister at the head, to aid and advise the President. Two amendments turned that polite sentence into a command. The 42nd Amendment of 1976 made the advice binding. The 44th Amendment of 1978 softened it a little - the President may require the Council to reconsider, once, and after that he must act on the advice.

- Article 74(2) - the advice tendered by Ministers cannot be enquired into by any court.
- Article 75 - the Prime Minister is appointed by the President; the other Ministers are appointed on the Prime Minister's advice.
- Ministers hold office during the pleasure of the President.
- The Council of Ministers is collectively responsible to the House of the People alone - not to the Rajya Sabha.
- Article 75(5) - a Minister who is not a member of either House for six consecutive months ceases to be a Minister.
- Article 77 - conduct of the business of the Government of India.
- Article 78 - it is the Prime Minister's duty to communicate the decisions of the Council of Ministers to the President and to furnish information he calls for.

The 91st Amendment Act, 2003 - the size cap

Article	Body	Cap
75(1A)	Union Council of Ministers	Not more than 15% of the total strength of the Lok Sabha, including the Prime Minister
164(1A)	State Council of Ministers	Not more than 15% of the total strength of the Legislative Assembly, subject to a minimum of 12

- The minimum of 12 Ministers applies only to States, never to the Union.
- The same 91st Amendment also deleted the 'split' exemption from the anti-defection law - one amendment, two very different subjects.
- The Cabinet, the Cabinet Committees and the so-called Kitchen Cabinet are all extra-constitutional.
- The word 'Cabinet' entered the Constitution only through Article 352 as amended by the 44th Amendment - a National Emergency now needs the written recommendation of the Cabinet.
- Collective responsibility means the ministry stands or falls together; individual responsibility means a Minister holds office during the President's pleasure.

Attorney General - and the post that is not in the Constitution

The Attorney General is the government's chief law officer and the only law officer the Constitution names. Everything else in that office - Solicitor General, Additional Solicitors General - is a creature of executive order. That single distinction is the question.

- Article 76 - the Attorney General of India is appointed by the President.
- He must be qualified to be a judge of the Supreme Court.
- He holds office during the pleasure of the President; no fixed tenure and no prescribed ground of removal.
- He has a right of audience in all courts in India.
- Article 88 - he may speak in either House of Parliament and in any committee, but has no right to vote.
- He is not a whole-time counsel of the government and is not barred from private practice.

- The Solicitor General and Additional Solicitors General are NOT constitutional posts.

TRAP

Article 76 is the Attorney General of India. Article 165 is the Advocate General of a State. One letter of difference in the name, ninety Articles of difference in the number. This pair is asked directly.

Presidents worth remembering – the personality facts RPSC uses

Name	Distinction
Dr. Rajendra Prasad	Only person elected President of India twice; served 1950–1962
Dr. S. Radhakrishnan	First Vice-President of India; President from 1962
Dr. Zakir Husain	First President of India to die in office, 1969
V. V. Giri	Elected President in 1969 on the basis of second-preference votes
Fakhruddin Ali Ahmed	Assumed office 1974; also died in office
Giani Zail Singh	Exercised the pocket veto on the Indian Post Office (Amendment) Bill, 1986

ASKED IN RAS

RPSC has set a chronological-ordering question on Presidents by year of assuming office – Radhakrishnan (1962), Zakir Husain (1967), V. V. Giri (1969), Fakhruddin Ali Ahmed (1974). Ordering questions are only about 3% of the paper, but this list is short enough to be worth ten seconds.

REVISION RECAP

1. Article 52 declares the office; Article 53 vests the executive power.
2. Electoral college: elected MPs + elected MLAs of States + elected MLAs of Delhi and Puducherry (70th Amendment, 1992). No nominated members, no MLCs.
3. Election is by proportional representation with a single transferable vote, secret ballot – Article 55.

4. MLA vote value uses the 1971 census; MP vote value = total MLA value divided by number of elected MPs.
5. Nomination: President 50 + 50; Vice-President 20 + 20; deposit Rs 15,000 for both.
6. Age 35 for both offices; President must be qualified for the Lok Sabha, Vice-President for the Rajya Sabha.
7. Oath by the Chief Justice of India, else the senior-most available Supreme Court judge - Article 60.
8. Impeachment: only ground is violation of the Constitution; one-fourth signatures, 14 days' notice, two-thirds of TOTAL membership in each House.
9. In impeachment nominated MPs vote and State MLAs do not - the exact reverse of the election.
10. Vacancy filled within six months; the new President gets a fresh five-year term - Article 62.
11. Disputes over either election go to the Supreme Court and its decision is final - Article 71.
12. Three vetoes only - absolute, suspensive, pocket. No qualified veto in India. Absolute veto over a State Bill reserved under Article 201.
13. Ordinance under Article 123 dies six weeks after Parliament reassembles and can never amend the Constitution.
14. Only the President can pardon a death sentence or a court martial sentence; the Governor under 161 can do neither.
15. Vice-President is elected by both Houses including nominated members, with no State legislature involved.
16. Vice-President is removed by an effective majority of the Rajya Sabha agreed to by the Lok Sabha; no ground is stated.
17. Article 74 advice was made binding by the 42nd Amendment; the 44th allowed one reconsideration.
18. Council of Ministers is collectively responsible to the Lok Sabha alone; a non-member ceases to be a Minister after six months.
19. 91st Amendment: 15% cap on Ministers - Union under 75(1A), States under 164(1A) with a floor of 12.
20. Attorney General under Article 76 is constitutional; Solicitor General is not. Article 165 is the State's Advocate General.

IP05

Parliament and the Legislative Process

About 2-3 questions a paper, the largest single block in Indian Polity. The financial committees are the densest repeat zone - Estimates Committee asked in 2013, 2018 and 2021, PAC in 2013 and 2018. Article 169 on the Legislative Council came in 2016 and 2021.

Articles 79 to 122 plus the money Articles. This is the most number-heavy chapter in Indian Polity - strengths, ages, quorums, majorities, committee sizes. RPSC does not test whether you understand Parliament. It tests whether you know that the Public Accounts Committee has 22 members and the Estimates Committee has 30.

Parliament (Art. 79-122)

Composition

- Art. 79 - President + 2 Houses
- Art. 80 - RS max 250 (238+12)
- Art. 81 - LS max 550 (530+20)
- Art. 83 - RS permanent, LS 5 years
- Art. 84 - age 30 RS, 25 LS

Working

- Art. 85 - 6-month session gap
- Art. 100 - quorum 1/10
- Art. 89 - RS Chairman
- Art. 93 - LS Speaker
- Art. 105 - privileges

Bills

- Ordinary Bill
- Money Bill - Art. 110
- Financial Bill - Art. 117
- Constitution Amendment - Art. 368
- Art. 108 - joint sitting

Finance

- Art. 112 - Annual Financial Statement
- Art. 113 - demands for grants
- Art. 114 - Appropriation Bill
- Art. 266 - CFI & Public Account
- Art. 267 - Contingency Fund

Devices

- Question Hour - first hour
- Zero Hour - Indian innovation
- No-confidence motion - 50 members
- Cut motions - policy, economy, token
- Adjournment motion

Committees

- PAC 22 = 15 + 7
- Estimates 30, all Lok Sabha
- COPU 22 = 15 + 7
- 24 DRSCs, 31 = 21 + 10
- Art. 151 - CAG report to PAC

Membership

- Art. 102 - disqualifications
- Art. 103 - President decides on EC opinion
- 10th Schedule - anti-defection
- 52nd Amdt 1985; 91st Amdt 2003
- Kihoto Hollohan (1992)

The two Houses - strengths and terms

Article 79 says Parliament consists of the President and the two Houses - the Council of States and the House of the People. Note the wording. The President

is part of Parliament even though he never sits in either House. That is why a Bill is not law until he assents. Now the numbers, and these must be exact.

Strength of the two Houses

Item	Rajya Sabha	Lok Sabha
Governing Article	Article 80	Article 81
Maximum strength	250	550
Break-up	238 elected from States and UTs + 12 nominated by the President	530 from States + 20 from Union Territories
Present strength	245	543
Minimum age	30 years (Article 84)	25 years (Article 84)
Term (Article 83)	Permanent body, not subject to dissolution; 1/3 retire every second year; each member six years	Five years unless dissolved earlier

- The 12 nominated members of the Rajya Sabha are chosen for special knowledge in literature, science, art and social service.
- Allocation of Rajya Sabha seats to States is set out in the Fourth Schedule.
- The two nominated Anglo-Indian seats in the Lok Sabha under Article 331 were discontinued by the 104th Amendment Act, 2019, with effect from 25 January 2020.
- Article 82 - seats are readjusted after every census; the 42nd and 84th Amendments froze the allocation on the 1971 census until the first census taken after 2026.
- The Lok Sabha's term may be extended by Parliament by one year at a time during a Proclamation of Emergency, and not beyond six months after the Proclamation ceases.

CURRENT LINK

Current link (as of September 2026): the freeze in Article 82 runs only 'until the first census taken after 2026'. That census is now the live constitutional question, because the next delimitation of Lok Sabha seats and the one-third reservation of seats for women under the 106th Amendment both hang on it. Learn the constitutional wording - 'the first census taken after 2026' - because that is the phrase an examiner will quote.

Lok Sabha against Rajya Sabha - the comparison that gets asked

Do not learn the two Houses as separate lists. Learn them against each other. Almost every statement-based question here works by asserting a Lok Sabha power for the Rajya Sabha, or the reverse. Fix the asymmetries and you can answer without recalling the Article.

Lok Sabha vs Rajya Sabha

Lok Sabha	Rajya Sabha
Directly elected by the people	Elected indirectly by State Assemblies; 12 members nominated
Dissolvable; term five years	Permanent body, never dissolved; one-third retire every second year
Money Bill can be introduced only here	Cannot introduce a Money Bill; must return it in 14 days with recommendations only
Demands for grants are voted only here (Article 113)	Can only discuss the Budget, not vote the demands
Council of Ministers is collectively responsible to this House alone	Cannot remove the government; no-confidence motion is not admissible here
No-confidence motion and adjournment motion available	Neither motion is available
Presided over by the Speaker, who is a member	Presided over by the Vice-President, who is not a member
No special powers over the States	Article 249 and Article 312 powers belong exclusively to it

YAAD RAKHO

Trick to remember which House is stronger where. Money and government go to the Lok Sabha; the States and the services go to the Rajya Sabha. Anything about the Union List entering a State subject (Article 249) or creating an All-India Service (Article 312) is Rajya Sabha, and only Rajya Sabha.

Sessions, quorum and the presiding officers

The Constitution does not fix how many sessions Parliament must hold. It fixes only a maximum gap. Article 85 says six months must not pass between the last sitting of one session and the first sitting of the next. Three sessions -

Budget, Monsoon, Winter - are convention, not law. Summoning, prorogation and dissolution are all done by the President.

- Article 100 - quorum is one-tenth of the total number of members of the House.
- The presiding officer has no ordinary vote; he exercises a casting vote only in the event of a tie.
- Article 93 - Speaker and Deputy Speaker of the Lok Sabha; Article 89 - Chairman and Deputy Chairman of the Rajya Sabha.
- Removal of the Speaker or the Deputy Speaker needs a resolution passed by a majority of all the then members of the House - the effective majority - after 14 days' notice.
- The Speaker does not preside while a resolution for his own removal is under consideration, but he may speak and vote in that debate.
- Article 105 - freedom of speech in Parliament and immunity from court proceedings for anything said or any vote given.

What the Speaker does - and the one thing he does not

Function	Provision
Certifies whether a Bill is a Money Bill	Article 110(4); the certificate is final
Presides over a joint sitting of both Houses	Article 118(4)
Decides disqualification on the ground of defection	Tenth Schedule
Does NOT decide disqualification under Article 102(1)	That is decided by the President on the opinion of the Election Commission - Article 103

TRAP

The Speaker decides defection cases, but he does NOT decide the ordinary disqualifications of Article 102(1) - office of profit, unsoundness of mind, insolvency, and so on. Those go to the President, who must obtain the Election Commission's opinion under Article 103 and is bound by it. This exact swap has been used as a NOT-a-function-of-the-Speaker question.

Types of Bills - and how each one travels

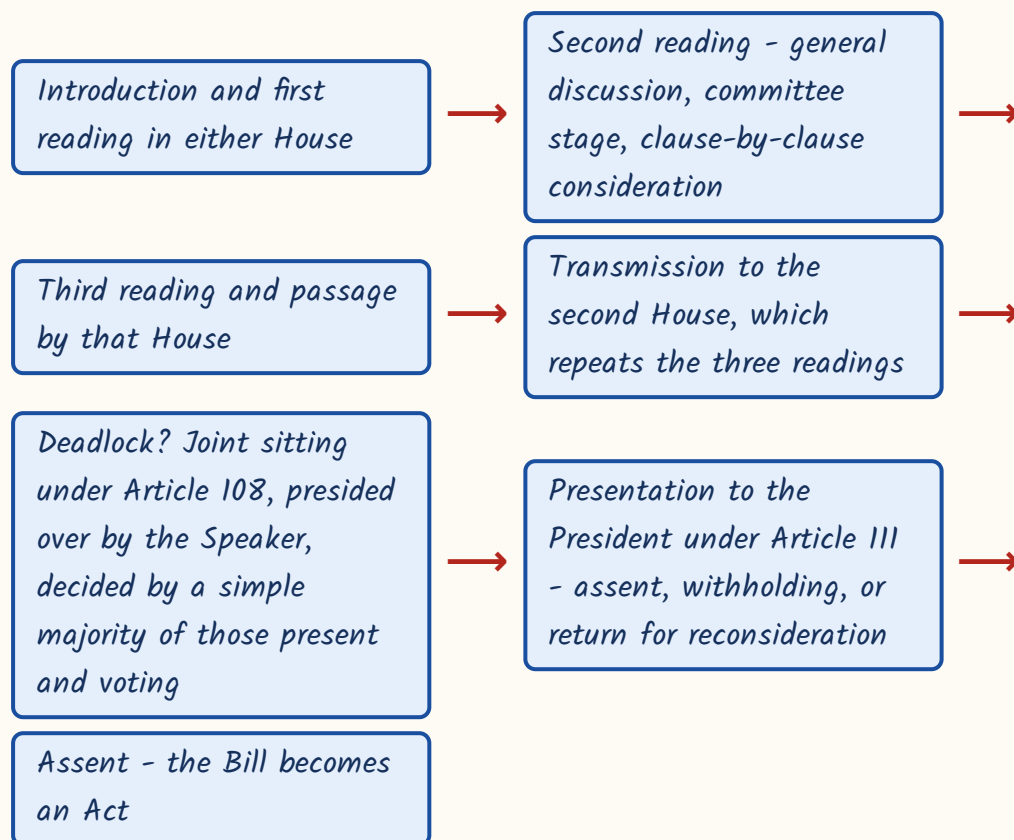
Four kinds of Bill, and they behave differently at every stage - who may introduce them, whether the President's recommendation is needed, what the Rajya Sabha may do, and whether a joint sitting is possible. Build this table into your memory as a grid, not as four separate paragraphs.

The four types of Bill

Type	Where introduced	Rajya Sabha's power	Joint sitting?
Ordinary Bill	Either House	Full power - may reject, amend or delay	Yes, under Article 108
Money Bill (Article 110)	Lok Sabha only, on the President's recommendation	Must return within 14 days; may only make recommendations	No
Financial Bill (Article 117)	Article 117(1) Bills only in the Lok Sabha on the President's recommendation; 117(3) Bills in either House	Full power, like an ordinary Bill	Yes
Constitution Amendment Bill (Article 368)	Either House; no President's recommendation needed	Must be passed by each House separately by the special majority	No

- Every Money Bill is a Financial Bill, but every Financial Bill is not a Money Bill. This sentence is asked verbatim.
- Article 109 lays down the special procedure for Money Bills; Article 117 governs Financial Bills.
- A Constitution Amendment Bill needs a majority of the total membership of each House AND two-thirds of the members present and voting.
- The President cannot return a Money Bill for reconsideration - he can only assent or withhold.

How an ordinary Bill becomes an Act



- Article 108 - a joint sitting resolves a deadlock over an ordinary or a financial Bill.
- A joint sitting is NOT available for a Money Bill or for a Constitution Amendment Bill.
- Only three joint sittings have ever been held - Dowry Prohibition Bill (1961), Banking Service Commission (Repeal) Bill (1978) and Prevention of Terrorism Bill (2002).

- Learn the three in that order; RPSC has set them as a chronology question.

The Money Bill - Article 110 in full

A Money Bill is the sharpest asymmetry in the Constitution. The Rajya Sabha is almost cut out of it, and the Speaker is the sole judge of what counts as one. Because the definition is narrow and the consequences are large, this is a favourite for statement sets.

- It can be introduced only in the Lok Sabha, and only on the recommendation of the President.
- It cannot be introduced by a private member.
- The Rajya Sabha must return it within 14 days and may only make recommendations, which the Lok Sabha is free to reject.
- If the Rajya Sabha does not return it in 14 days, it is deemed passed by both Houses.
- The Speaker's certificate that a Bill is a Money Bill is final - Article 110(4).
- There is no joint sitting for a Money Bill, and the President cannot return it.
- The 14 days are to RETURN the Bill - the Rajya Sabha has no power to reject it, and the certificate is the Speaker's, never the Chairman's.

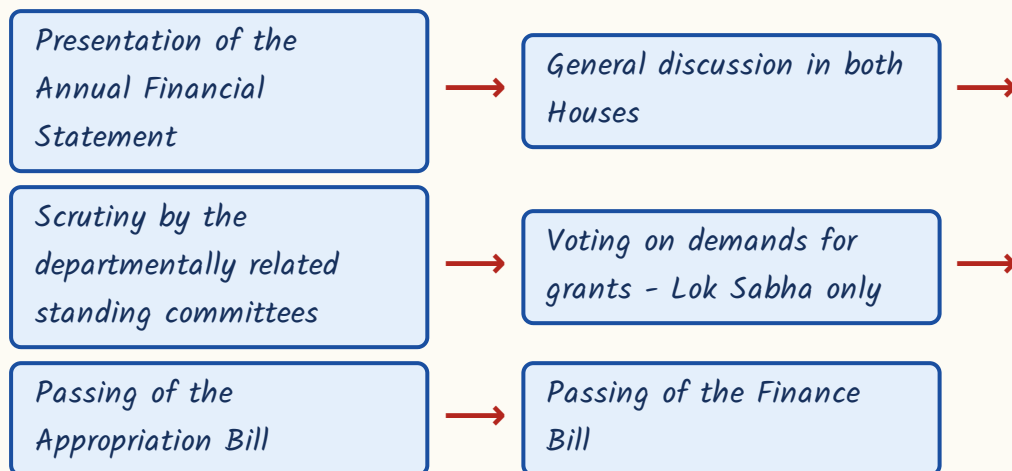
The Budget, the funds and the cut motions

The word Budget does not appear in the Constitution. Article 112 calls it the Annual Financial Statement. The whole financial chapter is a sequence of Articles from 112 to 117, and RPSC matches them. Learn the Article numbers alongside the stages.

Financial Articles

Article	Provision
112	Annual Financial Statement - the Budget
113	Demands for grants; voted only by the Lok Sabha
114	Appropriation Bill - authorises withdrawal from the Consolidated Fund
115	Supplementary, additional and excess grants
116	Vote on account, votes of credit and exceptional grants
265	No tax shall be levied or collected except by authority of law
266	Consolidated Fund of India and Public Account of India
267	Contingency Fund of India

The Union Budget, stage by stage



Cut motions - learn the amounts, they are matched

Cut motion	Effect	Purpose
Policy cut	Reduces the demand to Re 1	Total disapproval of the policy underlying the demand
Economy cut	Reduces the demand by a specified amount	Demand for economy in expenditure
Token cut	Reduces the demand by Rs 100	Ventilates a specific grievance within the Government of India's sphere
Vote on account	Not a cut motion at all	Advance grant to meet expenditure pending passage of the Appropriation Bill

- The corpus of the Contingency Fund of India was raised from Rs 500 crore to Rs 30,000 crore by the Finance Act, 2021.
- The Contingency Fund is held by the Finance Secretary on behalf of the President.
- Expenditure 'charged' on the Consolidated Fund can be discussed but is NOT submitted to the vote of Parliament.
- Charged items include the salaries of the President, the Speaker, the judges and the CAG, and all debt charges.
- Money can be withdrawn from the Consolidated Fund only under an appropriation made by law.

TRAP

Article 266 covers the Consolidated Fund AND the Public Account. Article 267 is the Contingency Fund alone. The pairing 'Article 266 - Contingency Fund' is a standard wrong option in a NOT-correctly-matched question.

Parliamentary devices – question hour, zero hour and the motions

These are the tools an MP uses to hold the government to account on the floor. The examiner's interest is narrow – which device needs how many members, which one is in the Rules and which one is not, and which House it is available in.

Devices on the floor of the House

Device	What it is	The examinable detail
Question Hour	The first hour of a sitting	Regulated by the Rules of Procedure
Starred question	Answered orally	Supplementary questions are permitted
Unstarred question	Answered in writing	No supplementary questions allowed

Device	What it is	The examinable detail
Short notice question	Matter of urgent public importance	Asked at less than ten days' notice
Half-an-hour discussion	On a matter already answered in the House	Requires sufficient public importance
Zero Hour	Follows Question Hour; matters raised without notice	An Indian innovation; finds NO mention in the Rules of Procedure
No-confidence motion	Against the Council of Ministers	Lok Sabha only; needs 50 members; need not state any reason
Adjournment motion	To discuss a definite matter of urgent public importance	Lok Sabha only; needs 50 members; involves an element of censure
Censure motion	Against a Minister or the whole Council	Must state the reasons; can be moved only in the Lok Sabha
Calling attention	Draws a Minister's attention to an urgent matter	An Indian innovation, but it IS mentioned in the Rules

TRAP

Zero Hour is the Indian innovation with no mention in the Rules of Procedure. Question Hour IS regulated by the Rules. A NOT-correct question has been built precisely on reversing these two.

Parliamentary committees - the exact strengths

This is the highest-yield block in the chapter. RPSC has asked the membership of the Public Accounts Committee and the Estimates Committee directly, more than once, in different years. There is no understanding to be had here - only exact numbers. Learn them and do not confuse the three financial committees.

The three financial committees - exact strengths

Committee	Strength	Composition	Origin
Public Accounts Committee	22	15 Lok Sabha + 7 Rajya Sabha	First set up in 1921; examines the CAG's audit reports
Estimates Committee	30	ALL 30 from the Lok Sabha; no Rajya Sabha member	Constituted 1950 on John Mathai's recommendation
Committee on Public Undertakings	22	15 Lok Sabha + 7 Rajya Sabha	Created 1964 on the Krishna Menon Committee's recommendation

ASKED IN RAS

Asked in RAS Pre 2018 - the total membership of the Public Accounts Committee. Answer: 22, being 15 from the Lok Sabha and 7 from the Rajya Sabha. Both the total and the break-up were asked as separate questions in the same paper.

ASKED IN RAS

Asked in RAS Pre 2013 and again in 2021 - the Estimates Committee consists of 30 members, all elected from the Lok Sabha. Asked again in 2018 and 2021 as a statement set: it is the largest parliamentary committee, it is called the 'continuous economy committee', and it examines estimates only after the Budget has been voted.

ASKED IN RAS

Asked in RAS Pre 2013 - since which year has the Chairman of the Public Accounts Committee been drawn from the Opposition by convention?
Answer: 1967.

YAAD RAKHO

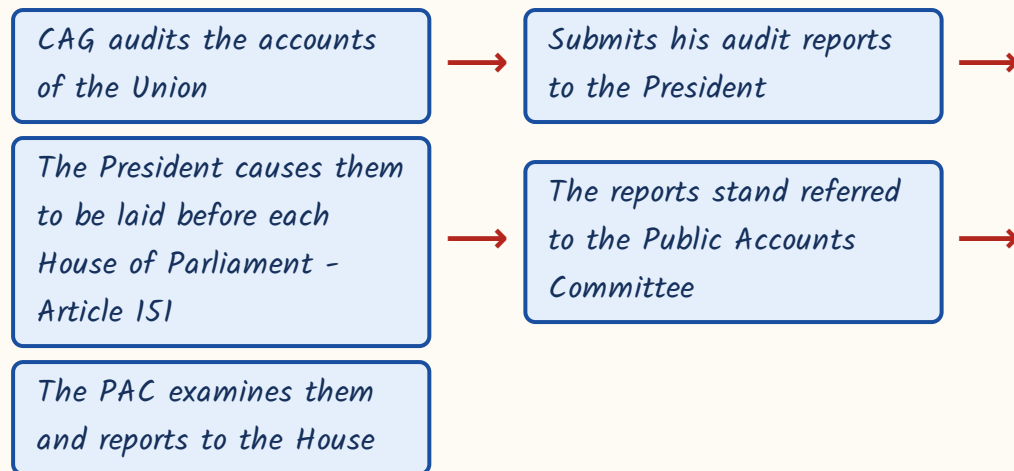
PAC and COPU are twins - 22 each, 15 plus 7 each. Estimates stands alone - 30, all Lok Sabha, no Rajya Sabha member at all. If an option says the Committee on Public Undertakings has 30 members, it is wrong; that number belongs to Estimates.

Other committees whose strengths are asked

Committee	Strength	Composition
Departmentally Related Standing Committees (24 of them)	31 each	21 Lok Sabha + 10 Rajya Sabha
Committee on the Welfare of SCs and STs	30	20 Lok Sabha + 10 Rajya Sabha
Committee on Empowerment of Women	30	20 Lok Sabha + 10 Rajya Sabha
Joint Committee on Offices of Profit	15	10 Lok Sabha + 5 Rajya Sabha
Business Advisory Committee (Lok Sabha)	15	Speaker is the Chairman
Business Advisory Committee (Rajya Sabha)	11	Chairman of the Rajya Sabha presides
Committee on Private Members' Bills and Resolutions	15	A Lok Sabha committee

- Of the 24 standing committees, 16 are serviced by the Lok Sabha Secretariat and 8 by the Rajya Sabha Secretariat.
- The standing committee system began in 1993 with 17 committees and was restructured into 24 in 2004.
- A Minister cannot be a member of a departmentally related standing committee.
- The term of the PAC, the Estimates Committee and the COPU is one year.
- The strength of the Committee on Public Undertakings was raised from 15 to 22 in 1974.

Where a CAG report goes - Articles 148 to 151



ASKED IN RAS

Asked in RAS Pre 2021 - under which Article are the CAG's audit reports on the Union accounts laid before Parliament? Answer: Article 151.

Disqualification, anti-defection and Article 169

Two separate tracks of disqualification, and you must keep them apart. The ordinary grounds are in Articles 102 and 191, and the President decides those after taking the Election Commission's opinion under Article 103. Defection is a separate track, in the Tenth Schedule, decided by the presiding officer.

- Anti-defection is in the Tenth Schedule, inserted by the 52nd Amendment Act, 1985.
- The 91st Amendment Act, 2003 deleted the exemption for a 'split' by one-third of the legislature party.
- Only a merger by two-thirds of the members of the legislature party now escapes disqualification.
- *Kihoto Hollohan v. Zachillhu* (1992) upheld the Tenth Schedule but held the presiding officer's decision subject to judicial review.

- Articles 102 and 191 lay down the ordinary disqualifications; under Article 103 the President decides and his decision is final.

Article 169 is a small provision that RPSC keeps returning to. A State's Legislative Council can be created or abolished, but only through a two-step process, and the wording of the first step is the whole question.

- The Legislative Assembly must first pass a resolution by a majority of the TOTAL membership of the Assembly.
- The same resolution must also carry a majority of not less than two-thirds of the members present and voting.
- Parliament may then make the law - but Parliament is not bound to act on the Assembly's resolution.
- Such a law is NOT deemed to be an amendment of the Constitution for the purposes of Article 368.
- This is a double requirement, not an either-or. Read the option for the word 'and'.

ASKED IN RAS

Asked in RAS Pre 2016 and again in 2021 - the majority required in the State Assembly under Article 169. Answer: a majority of the total membership of the Assembly AND a majority of not less than two-thirds of the members present and voting. The 2021 version was a statement set that also tested the point that the law is not an amendment under Article 368.

REVISION RECAP

1. Parliament = President + Rajya Sabha + Lok Sabha (Article 79); the President sits in neither House.
2. Rajya Sabha max 250 = 238 + 12 nominated; present 245. Lok Sabha max 550 = 530 + 20; present 543.

3. Anglo-Indian nomination under Article 331 ended with the 104th Amendment, 2019, from 25 January 2020.
4. Seats frozen on the 1971 census by the 42nd and 84th Amendments until the first census taken after 2026.
5. Age 30 for the Rajya Sabha, 25 for the Lok Sabha; quorum one-tenth; session gap not more than six months.
6. Speaker certifies a Money Bill and presides at a joint sitting, but Article 102(1) disqualification is the President's call on the EC's opinion.
7. Money Bill - Lok Sabha only, President's recommendation, Rajya Sabha returns it in 14 days with recommendations, no joint sitting, no return by the President.
8. Joint sitting under Article 108 is barred for a Money Bill and for a Constitution Amendment Bill; only three have ever been held - 1961, 1978, 2002.
9. Every Money Bill is a Financial Bill; not every Financial Bill is a Money Bill.
10. Budget order: presentation, general discussion, standing committees, voting on demands, Appropriation Bill, Finance Bill.
11. Policy cut to Re 1, economy cut by a specified amount, token cut by Rs 100.
12. Article 266 = Consolidated Fund and Public Account; Article 267 = Contingency Fund, corpus Rs 30,000 crore since the Finance Act, 2021.
13. Charged expenditure is discussed but never voted.
14. Question Hour is in the Rules; Zero Hour is an Indian innovation and is not.
15. No-confidence and adjournment motions - Lok Sabha only, 50 members each.
16. PAC 22 = 15 Lok Sabha + 7 Rajya Sabha; set up 1921; Opposition Chairman by convention since 1967.
17. Estimates Committee 30, all from the Lok Sabha; 1950, John Mathai; largest committee; examines estimates after the Budget is voted.
18. Committee on Public Undertakings 22 = 15 + 7; created 1964 on the Krishna Menon Committee's recommendation.
19. 24 DRSCs of 31 members each = 21 + 10; began 1993 with 17, restructured to 24 in 2004; no Minister may be a member.
20. Article 169 needs a double majority in the Assembly, and even then Parliament is not bound to act.

IP06

Judiciary: Supreme Court, High Courts and Judicial

Review

About 1-2 questions a paper. The documented repeats are the judicial expansion of Article 21 (2018, 2024), Maneka Gandhi on 'procedure established by law' (2023) and Article 39A on free legal aid (2018, 2024). For Rajasthan there is a standing interest in the Rajasthan High Court (2018, 2023, 2024) and in Vishaka, a Rajasthan case.

Articles 124 to 147 for the Supreme Court, 214 to 231 for the High Courts, 233 to 237 for the district judiciary. On top of that sits the case law - the amendability line from Shankari Prasad to Kesavananda to Minerva Mills. RPSC asks two things here: Article numbers, and which case laid down which principle. Nothing else.

Judiciary (Art. 124-147, 214-237)

Supreme Court

- Art. 124 - establishment
- Inaugurated 28 Jan 1950
- Strength CJI + 37 = 38 (2026 Act)
- Retirement age 65
- Art. 130 - seat at Delhi

Appointment

- First Judges Case 1981
- Second Judges Case 1993 - collegium
- Third Judges Case 1998 - CJI + 4
- NJAC struck down 16 Oct 2015
- 99th Amendment invalid

Jurisdiction

- Art. 131 - original
- Art. 132/133/134 - appellate
- Art. 136 - special leave
- Art. 137 - review
- Art. 143 - advisory

Special powers

- Art. 129 - court of record
- Art. 141 - law binding on all courts
- Art. 142 - complete justice
- Art. 144 - authorities act in aid
- Art. 32 - writ jurisdiction

High Courts

- 25 High Courts
- Art. 214 - one for each State
- Art. 217 - retirement at 62
- Art. 222 - transfer of judges
- Art. 226 - wider than Art. 32

Below the High Court

- Art. 233 - district judges
- Art. 235 - HC control
- Art. 323A/323B - tribunals
- Lok Adalat - LSA Act 1987
- Gram Nyayalayas Act 2008

Landmark line

- Shankari Prasad 1951
- Golaknath 1967
- Kesavananda 1973
- Minerva Mills 1980
- Puttaswamy 2017

The Supreme Court - what it is and how big it is

The Supreme Court replaced the Federal Court of India that had been created under the Government of India Act, 1935. It was inaugurated on 28 January 1950, two days after the Constitution came into force. Its size is not fixed by the Constitution beyond a floor - Article 124 lets Parliament increase the number of judges by law, and Parliament has done so repeatedly.

- Article 124 - establishment and constitution of the Supreme Court.
- Original strength: a Chief Justice and 7 other judges.
- Raised in stages; it stood at 34 after the 2019 increase.
- First Chief Justice of India - H. J. Kania.
- Article 130 - the seat is Delhi, or such other place as the Chief Justice of India may appoint with the approval of the President.
- Article 126 - acting Chief Justice; Article 127 - ad hoc judges.
- Article 128 - retired judges may attend sittings of the Supreme Court; Article 224A does the same for High Courts.

CURRENT LINK

Current link (as of September 2026): the sanctioned strength of the Supreme Court is now 38 - the Chief Justice of India plus 37 other judges - raised from 34 by the Supreme Court (Number of Judges) Amendment Act, 2026, which received Presidential assent in August 2026 after the Bill was cleared by the Union Cabinet in May 2026 and passed by Parliament in the monsoon session. Any pre-2026 book on your shelf will still say 34. If both 34 and 38 appear in an option set for a 2026 paper, 38 is the current figure - but read whether the question asks for the present strength or for the position before the amendment.

Qualifications and tenure - Supreme Court against High Court

Item	Supreme Court	High Court
Article	124(3)	217
Route 1	Five years as a judge of a High Court	Ten years of judicial office in India
Route 2	Ten years as an advocate of a High Court	Ten years as an advocate of a High Court
Route 3	A distinguished jurist in the President's opinion	NO distinguished jurist category exists
Minimum age	None prescribed	None prescribed

Item	Supreme Court	High Court
Retirement age	65 years	62 years

TRAP

The 'distinguished jurist' route exists only for the Supreme Court under Article 124(3). There is no such category for a High Court judge under Article 217. This is the most reliable NOT-correct option in the whole chapter. Also fix the ages - 65 for the Supreme Court, 62 for a High Court - they are asked as a straight one-liner.

How judges are appointed - the collegium and the NJAC

The Constitution says only that the President appoints judges after consultation. The word 'consultation' was fought over for forty years, and the fight produced four judgments. Learn them as a sequence, because RPSC asks which case created the collegium and which case killed the NJAC.

The four Judges Cases

First Judges Case - S. P. Gupta, 1981: 'consultation' does not mean concurrence; primacy to the executive



Second Judges Case, 1993: reversed it; the CJI's opinion has primacy; the collegium is born



Third Judges Case - In re Special Reference, 1998: collegium fixed at CJI plus his four senior-most colleagues for Supreme Court appointments, and CJI plus two for High Court appointments



Fourth Judges Case, 16 October 2015: the 99th Amendment and the NJAC Act, 2014 struck down for violating the independence of the judiciary, a basic feature

- The proposed NJAC had six members - the CJI, the two senior-most Supreme Court judges, the Union Law Minister and two eminent persons.
- The Attorney General was NOT a member of the proposed NJAC.
- Independence of the judiciary is a basic feature; that was the ground for striking the NJAC down.
- For a Supreme Court appointment the collegium is the CJI plus four senior-most judges; for a High Court appointment, the CJI plus two.

Removal of a judge

- Article 124(4) - removal by the President after an address by EACH House.
- Each address must be supported by a majority of the total membership of that House AND by a majority of not less than two-thirds of the members present and voting.
- Both Houses must pass it in the SAME session.
- The only grounds are proved misbehaviour or incapacity.
- The procedure is governed by the Judges (Inquiry) Act, 1968.
- No judge of the Supreme Court has ever been removed. The motion against Justice V. Ramaswami failed in the Lok Sabha in 1993 when the ruling party abstained.

YAAD RAKHO

The majority for removing a judge is the same special majority used for a constitutional amendment under Article 368 - majority of total membership plus two-thirds of those present and voting. Learn one, get both. Do not confuse it with the President's impeachment, which needs two-thirds of the TOTAL membership.

Jurisdiction - the whole menu in one table

The Supreme Court wears several hats. Original jurisdiction means the case starts there. Appellate means it comes up from below. Advisory means the President asks and the Court answers without a lis. Add the writ jurisdiction under Article 32 and the special powers of Articles 141 to 144, and you have the whole picture.

Jurisdiction of the Supreme Court

Article	Type	What it covers
131	Original, and exclusive	Federal disputes - Centre against a State, or States against each other
132	Appellate - constitutional	Appeal from a High Court on a substantial question of law as to the interpretation of the Constitution
133	Appellate - civil	Civil appeals from a High Court
134	Appellate - criminal	Criminal appeals from a High Court
134A	Certificate	Certificate for appeal to the Supreme Court
136	Special leave	Special leave to appeal from any court or tribunal except a court martial - a discretionary power
137	Review	Power to review its own judgments and orders
143	Advisory	Reference by the President
32	Writ	Enforcement of fundamental rights

- Article 141 - the law declared by the Supreme Court is binding on all courts within the territory of India.
- Article 142 - power to pass any decree or order necessary for doing complete justice in a cause before it.
- Article 144 - all civil and judicial authorities in India must act in aid of the Supreme Court.
- Article 129 - the Supreme Court is a court of record with power to punish for contempt of itself; Article 215 makes the same provision for High Courts.

- Truth was made a valid defence in contempt proceedings by the Contempt of Courts (Amendment) Act, 2006.

Advisory jurisdiction - Article 143, and the 'may' that matters

- Under Article 143(1) the President may refer any question of law or fact of public importance - and the Court MAY decline to answer.
- Under Article 143(2), on a dispute arising out of a pre-Constitution treaty or agreement, the Court MUST give its opinion.
- The opinion is advisory only. It does not bind the President.
- The 1993 Ram Janmabhoomi reference was returned unanswered - a live illustration of the Court's power to decline.
- In November 2025 a five-judge Constitution Bench answered the Presidential Reference on assent to Bills.
- It held that courts cannot fix timelines for the Governor or the President under Articles 200 and 201, and rejected 'deemed assent'.
- Remember the may/must this way - a modern question is optional, an old treaty is compulsory. A statement set that reverses the two clauses is standard.

Writs - kept short, because IP02 owns this

You have already learnt the five writs in the Fundamental Rights chapter. Here you only need the jurisdictional half - who issues them, under which Article, and why the High Court's power is wider. Revise the meanings in one pass and move on.

The five writs - one line each

Writ	Meaning and use
<i>Habeas corpus</i>	<i>'To have the body' - to secure the release of a person unlawfully detained</i>
<i>Mandamus</i>	<i>'We command' - directs a public authority to perform its public duty</i>
<i>Prohibition</i>	<i>Issued by a higher court to a lower court to stop proceedings exceeding its jurisdiction; preventive only</i>
<i>Certiorari</i>	<i>'To be certified' - transfers a case to itself or quashes the order of a lower court; both preventive and curative</i>
<i>Quo warranto</i>	<i>'By what authority' - questions a person's claim to a public office</i>

Article 32 vs Article 226

Article 32 - Supreme Court	Article 226 - High Court
<i>Only for the enforcement of fundamental rights</i>	<i>For fundamental rights AND 'for any other purpose' - wider</i>
<i>Is itself a fundamental right; cannot be refused</i>	<i>Is a constitutional right, not a fundamental right; discretionary</i>
<i>Cannot be suspended except as provided by the Constitution</i>	<i>May be refused on grounds such as an alternative remedy</i>
<i>Jurisdiction extends over all of India</i>	<i>Territorial jurisdiction, extended by the 15th Amendment, 1963 to authorities outside it where the cause of action arises within it</i>

- Article 32 was called 'the heart and soul of the Constitution' by Dr. B. R. Ambedkar.
- Judicial review is nowhere defined in the Constitution. It flows from Articles 13, 32, 131 to 136, 143, 226, 227, 245, 246 and 372.
- Article 50, a Directive Principle, requires the separation of the judiciary from the executive.
- Public interest litigation was pioneered by Justices P. N. Bhagwati and V. R. Krishna Iyer; locus standi was relaxed in *S. P. Gupta (1981)*.

High Courts

There are 25 High Courts in India. The three oldest were all born in the same year, and the newest is barely older than your preparation. Both ends of that list are asked. For a Rajasthan aspirant there is an extra reason to be careful here - RPSC has asked about the Rajasthan High Court in 2018, 2023 and 2024.

High Courts - the establishment dates that get matched

High Court	Year	Point of interest
Calcutta	1862	The first High Court in India, under the Indian High Courts Act, 1861
Bombay	1862	Established in the same year as Calcutta and Madras
Madras	1862	The third of the 1862 trio
Allahabad	1866	Has the largest sanctioned judge strength of any High Court
Rajasthan	1949	Inaugurated on 29 August 1949 at Jodhpur; a bench was later added at Jaipur
Andhra Pradesh at Amaravati	2019	Created on 1 January 2019; the 25th and newest High Court

- Article 214 - there shall be a High Court for each State.
- Article 231 - Parliament may establish a common High Court for two or more States or Union Territories.
- Article 222 - the President may transfer a judge from one High Court to another, after consulting the Chief Justice of India.
- Article 224 - additional and acting judges; Article 224A - a retired judge may sit at the sittings of a High Court.
- Article 227 - power of superintendence over all courts and tribunals within its territorial jurisdiction.

- That superintendence does NOT extend to courts and tribunals constituted under any law relating to the armed forces.
- Article 217 - a High Court judge retires at 62; removal follows the same procedure as for a Supreme Court judge.

TRAP

Article 227 is superintendence. Article 231 is a common High Court for two or more States. RPSC has offered 'Article 227 - establishment of a common High Court' as the wrong pair in a NOT-correctly-matched question. Fix the two numbers by their subject, not by their order.

Below the High Court

- Article 233 - district judges are appointed by the Governor in consultation with the High Court.
- A person not already in the service must have been an advocate for at least seven years to be appointed a district judge.
- Article 235 - control over the subordinate judiciary vests in the High Court, not in the State Government.

Tribunals, Lok Adalats and access to justice

Alongside the regular courts the Constitution and Parliament have built a second track - tribunals for specialised disputes, and Lok Adalats and Gram Nyayalayas for cheap, quick settlement. The constitutional peg for the second of these is Article 39A, and that Article alone has been asked twice.

- Articles 323A and 323B were inserted by the 42nd Amendment Act, 1976.
- Article 323A - administrative tribunals; only PARLIAMENT can legislate under it.

- Article 323B - tribunals for other matters; BOTH Parliament and State Legislatures can act under it.
- The Central Administrative Tribunal was set up under the Administrative Tribunals Act, 1985.
- *L. Chandra Kumar v. Union of India (1997)* - judicial review under Articles 32 and 226 is part of the basic structure.
- The same case held tribunal decisions subject to scrutiny by a Division Bench of the High Court concerned.

Access-to-justice institutions and their statutes

Institution	Governing law	The examinable detail
Lok Adalat	Legal Services Authorities Act, 1987	Its award is deemed a decree of a civil court; final and binding; NO appeal lies
Permanent Lok Adalat	Section 22B of the same Act	For public utility services; pecuniary jurisdiction up to Rs 1 crore
National Legal Services Authority	Same Act, in force from 9 November 1995	9 November is observed as National Legal Services Day
Gram Nyayalaya	Gram Nyayalayas Act, 2008, in force 2 October 2009	Mobile court at the intermediate panchayat level, presided over by a Nyayadhipikari with the status of a Judicial Magistrate of the first class
Central Administrative Tribunal	Administrative Tribunals Act, 1985	Set up under Article 323A

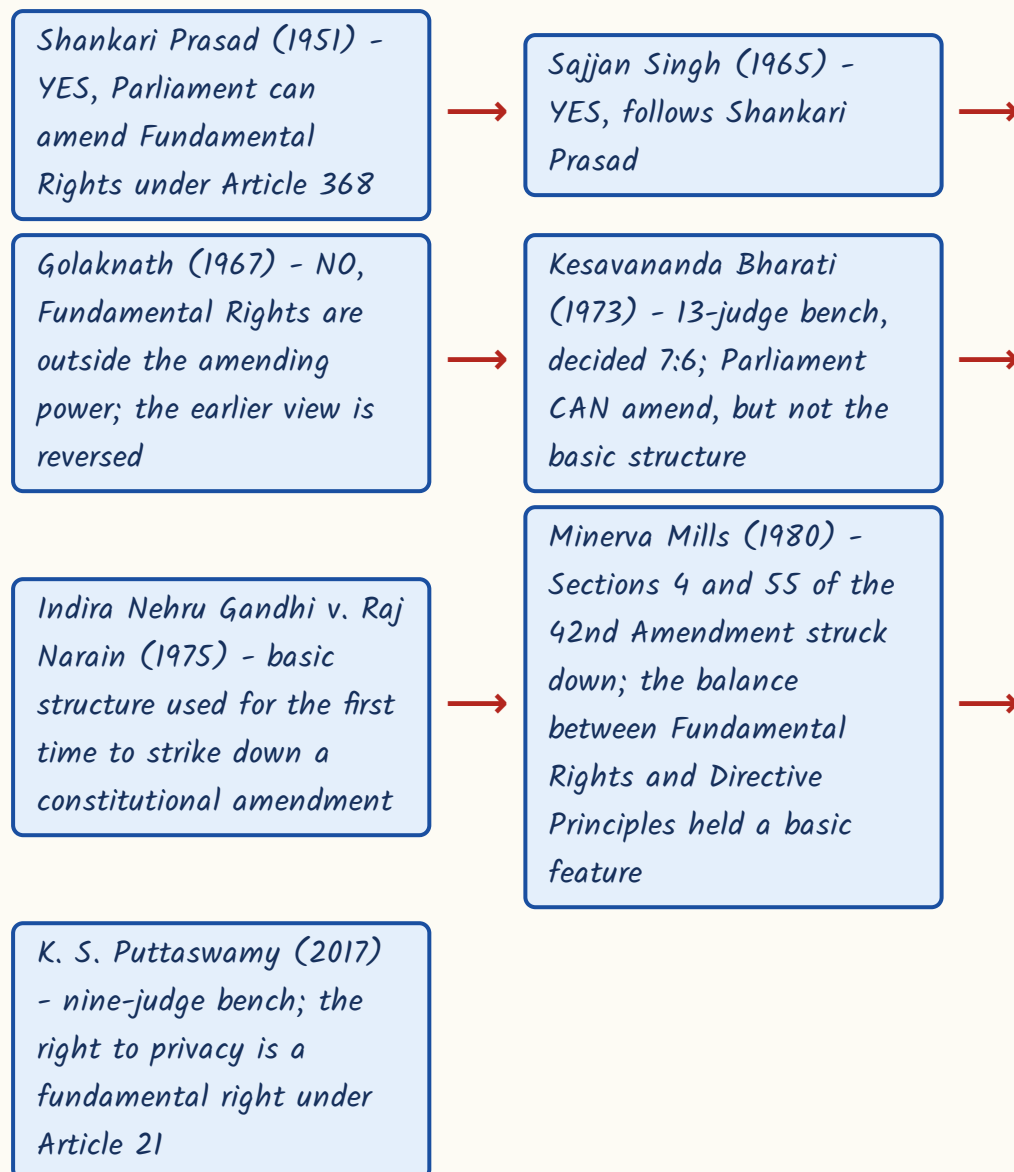
ASKED IN RAS

Asked in RAS Pre 2018 and again in 2024 - equal justice and free legal aid is enshrined in which Article? Answer: Article 39A, a Directive Principle inserted by the 42nd Amendment Act, 1976. It is the constitutional basis of the Legal Services Authorities Act, 1987.

The amendability line - the case sequence you must be able to recite

This is the spine of Indian constitutional law and the most reliably examined part of the chapter. The question is simple: can Parliament amend the Fundamental Rights? The answer changed three times before it settled. Learn the sequence with years attached, because it is asked both as a chronology and as a case-to-principle match.

Can Parliament amend the Fundamental Rights? The judicial line



Case to principle - the match-the-following set

Case	Principle laid down
Maneka Gandhi (1978)	The procedure established by law under Article 21 must be fair, just and reasonable
Hussainara Khatoon (1979)	Right to a speedy trial under Article 21
Olga Tellis (1985)	Right to livelihood under Article 21
Unni Krishnan (1993)	Right to education under Article 21
S. R. Bommai (1994)	A Proclamation under Article 356 is subject to judicial review
Vishaka v. State of Rajasthan (1997)	Guidelines against sexual harassment of women at the workplace
L. Chandra Kumar (1997)	Judicial review under Articles 32 and 226 is part of the basic structure
K. S. Puttaswamy (2017)	Right to privacy is a fundamental right

ASKED IN RAS

Asked in RAS Pre 2018 and again in 2024 as a statement set on the judicial expansion of Article 21 - livelihood in Olga Tellis, education in Unni Krishnan, privacy in Puttaswamy. All three statements were correct. Learn the case-to-right pairing, not the facts of the cases.

ASKED IN RAS

Asked in RAS Pre 2023 - in which case did the Supreme Court hold that the 'procedure established by law' under Article 21 must be fair, just and reasonable? Answer: Maneka Gandhi v. Union of India (1978).

YAAD RAKHO

Bench strengths are worth ten seconds. Kesavananda Bharati - 13 judges, decided 7:6, the largest bench ever. Puttaswamy - 9 judges, unanimous. If a question gives you a bench size, it is usually pointing at one of these two.

TRAP

Vishaka (1997) arose in Rajasthan, out of the gang rape of Bhanwari Devi, a saathin of the Women's Development Programme. RPSC likes Rajasthan connections. Note also that the Vishaka guidelines were replaced by the Sexual Harassment of Women at Workplace Act, 2013 - so 'the guidelines are still the governing law' is a wrong statement.

REVISION RECAP

1. Supreme Court inaugurated 28 January 1950, replacing the Federal Court of 1935; first CJI H. J. Kania.
2. Original strength CJI + 7; raised to 34 in 2019 and to 38 (CJI + 37) by the Supreme Court (Number of Judges) Amendment Act, 2026 - position as of September 2026.
3. Qualifications under Article 124(3): 5 years a High Court judge, or 10 years a High Court advocate, or a distinguished jurist. No minimum age.
4. Retirement - Supreme Court 65, High Court 62. No 'distinguished jurist' route for a High Court judge.
5. Removal of a judge needs a special majority in each House in the same session, on proved misbehaviour or incapacity; Judges (Inquiry) Act, 1968. Never yet done.
6. Collegium: Second Judges Case (1993) created it; Third Judges Case (1998) fixed CJI + 4 for the Supreme Court and CJI + 2 for High Courts.
7. NJAC and the 99th Amendment struck down on 16 October 2015 in the Fourth Judges Case.
8. Jurisdiction - 131 original, 132/133/134 appellate, 136 special leave, 137 review, 143 advisory.
9. Article 141 binding law, 142 complete justice, 144 authorities in aid, 129 court of record.
10. Article 143(1) - the Court may decline; Article 143(2) on a pre-Constitution treaty - it must answer. Ram Janmabhoomi reference returned unanswered in 1993.
11. Article 226 is wider than Article 32 - 'for any other purpose'; extended beyond territory by the 15th Amendment, 1963.
12. 25 High Courts; Calcutta, Bombay and Madras all 1862; Allahabad 1866 has the largest sanctioned strength; Andhra Pradesh at Amaravati (2019) is the 25th.
13. Rajasthan High Court inaugurated 29 August 1949 at Jodhpur, with a bench later at Jaipur.
14. Article 227 superintendence excludes armed forces tribunals; Article 231 is a common High Court; Article 222 is transfer.

15. District judges - appointed by the Governor in consultation with the High Court; seven years at the bar for an outsider; Article 235 gives the High Court control.
16. Articles 323A and 323B came with the 42nd Amendment; only Parliament may act under 323A.
17. Lok Adalat award is a civil decree with no appeal; Permanent Lok Adalat up to Rs 1 crore; 9 November is National Legal Services Day.
18. Gram Nyayalayas Act, 2008 in force 2 October 2009; the Nyayadhikari ranks as a Judicial Magistrate first class.
19. Amendability: Shankari Prasad and Sajjan Singh yes, Golaknath no, Kesavananda (13 judges, 7:6) basic structure, Minerva Mills the FR-DPSP balance.
20. Article 21 expansion - Maneka (fair procedure), Hussainara Khatoon (speedy trial), Olga Tellis (livelihood), Unni Krishnan (education), Puttaswamy (privacy, 9 judges).

IP07

Centre-State Relations, Emergency, Schedules and Amendments

About 2-3 questions a paper out of Indian Polity's II. An amendment-to-subject matching question has appeared in every RAS paper. Schedule-to-subject matching came in 2018. President's Rule in Rajasthan - how many times, which years, which was first - has come in 2013, 2016 and 2024. Those three clusters alone outweigh the rest of the chapter.

This chapter is the federal machinery of the Constitution - who makes which law, who collects which tax, and what happens when the machine is put under emergency. Bolted on to it is the single most bankable topic in Indian Polity: matching an Amendment number to its subject. Learn the tables, not the arguments.

Centre-State Relations, Emergency, Amendments

Legislative (Art. 245-255)

- 7th Schedule - three Lists
- Art. 248 + Entry 97 = residuary to Parliament
- Art. 249 Rajya Sabha resolution
- Art. 250 during National Emergency
- Art. 252 States request, 253 treaties
- Art. 254 repugnancy - Union law prevails

Financial (Art. 264-293)

- 268 Union levies, States collect
- 269 assigned to States, 269A inter-State GST
- 270 distributed, 271 surcharge to Union
- 275 statutory grants, 282 discretionary
- 280 Finance Commission, 293 State borrowing
- 246A + 279A GST and GST Council

Inter-State

- Art. 262 river water disputes
- Art. 263 Inter-State Council, 28 May 1990
- Sarkaria 1983, Punchhi 2007
- 5 Zonal Councils - statutory, 1956
- Art. 301-307 trade and commerce

Emergency

- 352 National - 1962, 1971, 1975
- 356 President's Rule - Rajasthan 4 times
- 360 Financial - never used
- 355 duty of the Union
- 358 suspends Art. 19, 359 other FRs

Amendments (Art. 368)

- Special majority, no joint sitting
- Half the States ratify federal provisions
- 24th made assent obligatory
- 42nd mini-Constitution, 44th undid it
- 101st GST, 103rd EWS, 106th women

Schedules and Art. 371

- 12 Schedules - only 8 at commencement
- 5th Scheduled Areas, 6th North-East four
- 9th land reform, 10th defection
- 11th 29 items, 12th 18 items
- 371A Nagaland to 371J Karnataka

The three Lists - who may make which law

India is federal in structure, so law-making power has to be divided. The Constitution does this in the Seventh Schedule, which carries three Lists - Union, State and Concurrent. Articles 245 to 255 carry the whole legislative relationship. The original numbers are what RPSC asks: Union List 97 subjects, State List 66, Concurrent List 47. Standard textbooks now put them at 98, 59

and 52, because amendments have shifted and deleted entries. If the question does not say 'at present', answer with the original figures.

The Seventh Schedule at a glance

List	Original entries	Typical subjects
Union List	97	Defence, atomic energy, citizenship, banking, railways, foreign affairs
State List	66	Public order (Entry 1), police (Entry 2), agriculture, local government, public health
Concurrent List	47	Criminal law, marriage, education, forests, economic and social planning

- Art. 246 distributes the power; Art. 245 fixes the territorial extent of laws.
- Art. 248 read with Entry 97 of the Union List - residuary powers of legislation vest in Parliament.
- Residuary with the Centre is the Canadian model; in the US model it stays with the states.
- Art. 254 - if a Union law and a State law on a Concurrent subject clash, the Union law prevails.
- Exception to Art. 254 - a repugnant State law reserved for and given the President's assent prevails in that State.

TRAP

Public order and police are State List Entries 1 and 2. The 42nd Amendment did NOT move them. It moved five other subjects from the State List to the Concurrent List: education, forests, weights and measures, protection of wild animals and birds, and administration of justice. Learn those five as a set - if 'police' appears in the option, reject it.

When Parliament may enter the State List - the five doorways

The State List is not sealed. The Constitution keeps five doors through which Parliament can legislate on a State subject. The exam asks 'under which Article', so learn each door with its number. The sequence 249-250-252-253 runs in order of how the trigger arises: our own House, our own crisis, our own States, the outside world.

Parliament on a State subject - the five routes

Article	Trigger	How long the law lasts
249	Rajya Sabha resolution by 2/3 of members present and voting, in the national interest	One year, renewable any number of times
250	A National Emergency is in force	Lapses six months after the emergency ends
252	Two or more State Legislatures pass resolutions requesting it	Applies to consenting States; only Parliament may amend or repeal it
253	To implement an international treaty, agreement or convention	No time limit
356	President's Rule - the State legislature's power passes to Parliament	The law survives the proclamation until repealed

- Under Art. 249 only the Rajya Sabha can pass the resolution - it is the House of the States. The Lok Sabha has no role at all.
- The two-thirds under Art. 249 is of members PRESENT AND VOTING, not of total membership. That is the standard plant in statement questions.
- An Art. 252 law can be adopted later by other States by their own resolution.
- Art. 253 was the basis for the Environment (Protection) Act, 1986, following the Stockholm Conference.

Administrative relations sit in Articles 256 to 263. Art. 256 obliges a State to comply with Union laws. Art. 257 lets the Union give directions to a State. Art. 258 lets the Union entrust its functions to a State. Art. 261 is full faith and credit to public acts and records. Separately, Art. 312 lets the Rajya Sabha, by a two-thirds resolution, create a new All-India Service.

Inter-State relations – councils, rivers and free trade

Two States can fight over water, over trade barriers, or over anything else. The Constitution gives an adjudication route for rivers, a consultative Council for everything else, and a guarantee of free trade across the country.

- Art. 262 – Parliament may provide for adjudication of inter-State river water disputes and may bar the Supreme Court and all other courts from such matters.
- Under Art. 262 Parliament passed the Inter-State River Water Disputes Act, 1956 and the River Boards Act, 1956.
- Art. 263 – the President may establish an Inter-State Council for inquiry into and advice on disputes and matters of common interest.
- The Inter-State Council was set up by Presidential Order on 28 May 1990, on the recommendation of the Sarkaria Commission. The Prime Minister is its Chairman.
- Sarkaria Commission on Centre-State relations – appointed 1983, report 1988.
Punchhi Commission – appointed 2007, report 2010.

Zonal Councils are a different animal. They are not in the Constitution at all. They were created by the States Reorganisation Act, 1956 – statutory, not constitutional. There are five, and the Union Home Minister chairs all five. Rajasthan sits in the Northern Zonal Council along with Haryana, Himachal

Pradesh, Punjab, Delhi, Chandigarh, Jammu and Kashmir and Ladakh. The North Eastern Council is separate, under its own Act of 1971.

TRAP

RPSC likes this pair. Inter-State Council = constitutional (Art. 263), chaired by the Prime Minister. Zonal Councils = statutory (Act of 1956), chaired by the Union Home Minister. And Rajasthan is in the NORTHERN Zonal Council, not the Central one. The Central Zone is Uttar Pradesh, Uttarakhand, Madhya Pradesh and Chhattisgarh.

- Art. 301 - trade, commerce and intercourse throughout the territory of India shall be free.
- Art. 302 to 305 - Parliament and the States may impose reasonable restrictions in the public interest.
- Art. 304(b) - a State may restrict trade only with the PREVIOUS SANCTION of the President.
- Art. 307 - Parliament may appoint an authority to carry out the purposes of Articles 301 to 304.

Financial relations - which tax belongs to whom

Money is where federalism is actually tested. Articles 264 to 293 carry it. The pattern is simple: some taxes the Union levies but the States collect and keep, some the Union levies and collects but hands over, some are shared, and one - the surcharge - the Union keeps entirely. Two grant Articles get confused constantly. Art. 275 is statutory, recommended by the Finance Commission and charged on the Consolidated Fund of India, so a State has a claim to it. Art. 282 is discretionary, given for any public purpose, and most centrally sponsored scheme money flows through it.

Tax and grant Articles - the matching set

Article	What it covers
268	Duties levied by the Union but collected and appropriated by the States (stamp duties)
269	Taxes levied and collected by the Union but assigned to the States
269A	GST on inter-State supply - levied and collected by the Centre, then apportioned
270	Taxes levied and collected by the Union and distributed between the Union and the States
271	Surcharge on taxes and duties - goes to the Union alone
275	Statutory grants-in-aid to needy States, charged on the Consolidated Fund of India
280	Finance Commission - constituted by the President every fifth year
282	Discretionary grants by the Union or a State for any public purpose
293	Borrowing by the States

GST - the one structural change to fiscal federalism

- 101st Amendment Act, 2016 inserted Art. 246A (concurrent power to tax goods and services) and Art. 279A (GST Council).
- Chairperson of the GST Council - the Union Finance Minister.
- Voting weight - the Centre one-third, all the States together two-thirds. Not one-half; that is the planted error.
- Decisions need a three-fourths majority of the weighted votes of members present and voting.
- Quorum - one-half of the total number of members. The Council's recommendations are not binding.

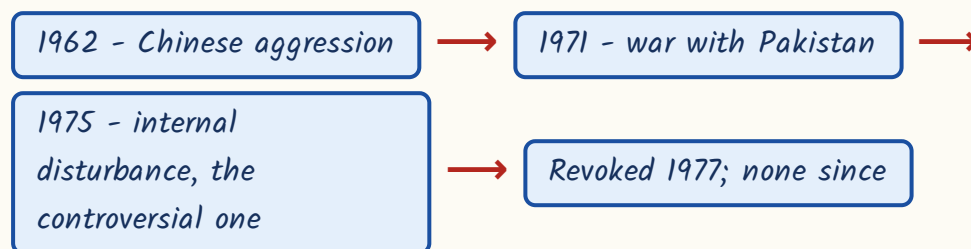
National Emergency - Article 352

A National Emergency is declared when the security of India is threatened. The grounds are three: war, external aggression, or armed rebellion. Read that last

word carefully. The Constitution originally said 'internal disturbance', a vague phrase which is exactly how the 1975 Emergency was justified. The 44th Amendment, 1978 replaced it with 'armed rebellion' so that the same thing could not be repeated.

- The President may proclaim it only on the WRITTEN recommendation of the Union Cabinet - a 44th Amendment safeguard.
- Both Houses must approve within one month, by a SPECIAL majority.
- Once approved it continues six months at a time; every extension needs fresh approval.
- The Lok Sabha alone can force revocation, by a simple-majority resolution, on notice given by one-tenth of its members.
- Before the 44th Amendment the approval window was two months and a simple majority sufficed.
- Art. 355 - the Union must protect every State against external aggression and internal disturbance.
- Art. 355 also obliges the Union to ensure that every State is governed in accordance with the Constitution - that half is the peg on which Art. 356 hangs.

The three National Emergencies - and there have only been three



TRAP

Keep the two effect Articles apart, and note both fixes came from the 44th Amendment. Art. 358 is automatic, touches only Art. 19, and now operates **ONLY** when the emergency rests on war or external aggression - not on armed rebellion. Art. 359 needs a separate presidential order and names the rights it suspends, but Articles 20 and 21 can **NEVER** be suspended. Any option saying Art. 21 can go is wrong.

President's Rule (Art. 356), Rajasthan's four spells, and Art. 360

Article 356 is used when the government of a State cannot be carried on in accordance with the Constitution. The State executive is taken over by the President acting through the Governor, and the State legislature's powers pass to Parliament. The High Court is never touched - that is a favourite negative-framed option.

- Approval by both Houses within two months, by a **SIMPLE** majority.
- Continues six months at a time; maximum three years.
- Beyond one year two conditions must **BOTH** hold - a National Emergency must be in force, and the Election Commission must certify that elections cannot be held. That is the 44th Amendment restriction.
- The first use of Art. 356 anywhere in India was in Punjab in 1951.
- *S.R. Bommai v. Union of India* (1994) - a proclamation under Art. 356 is subject to judicial review.
- *Bommai* also held that majority is tested on the floor of the House, not in the Governor's judgement, and that secularism is part of the basic structure.

Article 352 vs Article 356 - the pair RPSC sets against each other

National Emergency (Art. 352)	President's Rule (Art. 356)
Grounds - war, external aggression, armed rebellion	Grounds - failure of constitutional machinery in a State
Approval by SPECIAL majority	Approval by SIMPLE majority
Approval within one month	Approval within two months
No maximum limit if approvals continue	Maximum three years
State executive and legislature keep functioning	State executive dismissed, legislature dissolved or suspended
Fundamental Rights affected under Art. 358 and 359	Fundamental Rights untouched
Lok Sabha can revoke by its own resolution	No such revocation provision
Proclaimed three times - 1962, 1971, 1975	Used well over a hundred times across the States

ASKED IN RAS

Asked in RAS Pre 2016 and again in 2024 - how many times has President's Rule been imposed in Rajasthan? Answer: FOUR. The same cluster came in 2013 as a negative question (1985 is the odd one out) and in 2013 and 2024 as 'in which year for the first time' (1967).

The four impositions in Rajasthan

Occasion	Year	Note
First	1967	13 March to 26 April 1967, after an inconclusive assembly election
Second	1977	After the post-Emergency general election
Third	1980	Following the change of government at the Centre
Fourth	December 1992 to December 1993	The longest spell, about a year

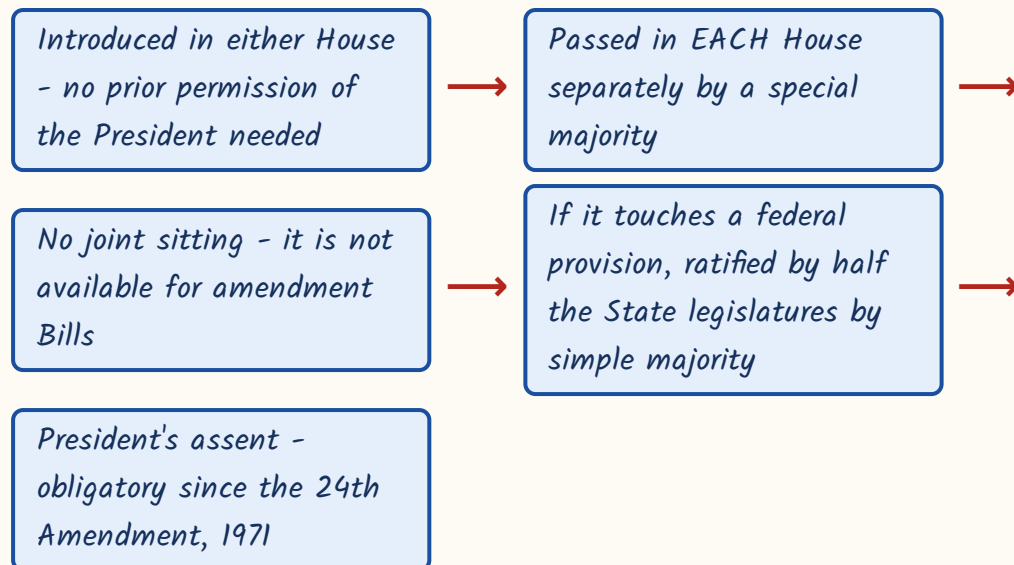
The three emergencies at a glance - grounds, effects, revocation

Emergency	Grounds	Effects and revocation
National, Art. 352 (used thrice - 1962, 1971, 1975)	War, external aggression or armed rebellion; written recommendation of the Union Cabinet	Centre may direct States on any matter; Parliament may legislate on the State List; Lok Sabha term extendable by a year at a time; Art. 358 suspends Art. 19 (war or external aggression only), Art. 359 suspends enforcement of other rights except Art. 20 and 21. Revoked by the President any time; the Lok Sabha can compel revocation by simple majority
President's Rule, Art. 356 (used well over a hundred times; four times in Rajasthan)	Failure of constitutional machinery in a State, on the Governor's report or otherwise	State executive dismissed and the Governor administers; the Assembly is suspended or dissolved and Parliament makes its laws; the High Court is NOT touched and Fundamental Rights are untouched. Revoked by a subsequent presidential proclamation, needing no parliamentary approval
Financial, Art. 360 (NEVER proclaimed)	A threat to the financial stability or credit of India or of any part of its territory	Union may direct States on canons of financial propriety; salaries of government servants, including Supreme Court and High Court judges, may be reduced; State money Bills may be reserved for the President. Approval within two months by simple majority; once approved it continues indefinitely until revoked

Amending the Constitution - Article 368

Article 368 gives Parliament the power to amend the Constitution and lays down the procedure. The design is neither rigid like the American nor flexible like the British. 'Partly rigid, partly flexible' is the phrase to remember.

How an amendment Bill travels



- *Special majority = a majority of the TOTAL membership of that House AND two-thirds of the members present and voting.*
- *An amendment Bill cannot be introduced in a State Legislature. The States only ratify.*
- *There is no time limit within which a State must ratify.*
- *Amendments to Fundamental Rights need only a special majority of Parliament - no State ratification.*
- *Ratification by half the States is needed for: election of the President and the manner of that election.*
- *Extent of the executive power of the Union and of the States.*
- *The Supreme Court and the High Courts.*
- *Distribution of legislative powers between the Union and the States.*
- *Any of the Lists in the Seventh Schedule.*
- *Representation of the States in Parliament.*
- *Article 368 itself.*

CURRENT LINK

Current link, as of September 2026: the Constitution (131st Amendment) Bill, 2026 was put to the vote in the Lok Sabha on 17 April 2026 and FAILED. It proposed raising the maximum strength of the Lok Sabha from 550 to 850 seats and letting the women's reservation of the 106th Amendment begin after a delimitation based on the 2011 Census, without waiting for the next census. It got 298 votes for and 230 against - short of the two-thirds of members present and voting that Art. 368 demands - and the accompanying delimitation Bill was withdrawn. A live demonstration of why a clear numerical majority is not automatically enough under Art. 368.

The amendment table - the most examined page in this chapter

An amendment-to-subject matching question has appeared in every RAS paper. There is no cleverness here, only recall. Number, year, one-line subject. Three tables follow. Revise all three together, every time.

Amendments 1 to 52

Amendment	Year	Subject
1st	1951	Ninth Schedule created; Art. 15(4) for backward classes; grounds of restriction on Art. 19 widened
7th	1956	Reorganisation of States on linguistic lines; States and Union Territories restructured
24th	1971	Parliament's power to amend Fundamental Rights affirmed; the President's assent made obligatory
26th	1971	Abolition of privy purses and privileges of former rulers; Art. 363A inserted

Amendment	Year	Subject
42nd	1976	The 'mini-Constitution' - Fundamental Duties (Part IVA, Art. 51A), the words socialist, secular and integrity in the Preamble, five subjects moved to the Concurrent List
44th	1978	Right to property removed from Fundamental Rights, made a legal right under Art. 300A; 'armed rebellion' replaces 'internal disturbance'; Art. 20 and 21 protected
52nd	1985	Anti-defection law; Tenth Schedule added

Amendments 61 to 97

Amendment	Year	Subject
61st	1988	Voting age lowered from 21 to 18 (Art. 326)
69th	1991	Delhi made the National Capital Territory; Art. 239AA inserted
73rd	1992	Panchayati Raj - Part IX, Articles 243 to 243-O, Eleventh Schedule
74th	1992	Municipalities - Part IX-A, Articles 243P to 243ZG, Twelfth Schedule
86th	2002	Right to education - Art. 21A inserted; Art. 45 recast; Fundamental Duty 51A(k) added
91st	2003	Council of Ministers capped at 15 per cent of the House; defection provisions tightened
92nd	2003	Bodo, Dogri, Maithili and Santhali added to the Eighth Schedule - languages become 22
97th	2011	Co-operative societies - Part IX-B, Art. 43B, and the right to form co-operatives under Art. 19(1)(c)

Amendments 98 to 106 - the modern block

Amendment	Year	Subject
98th	2012	Art. 371J - special provisions for the Hyderabad-Karnataka region
101st	2016	Goods and Services Tax - Art. 246A and Art. 279A GST Council
102nd	2018	Constitutional status to the National Commission for Backward Classes - Art. 338B and 342A
103rd	2019	Ten per cent reservation for economically weaker sections - Art. 15(6) and 16(6)

Amendment	Year	Subject
104th	2019	SC/ST reservation in legislatures extended to 2030; nomination of Anglo-Indians discontinued
105th	2021	Restored the power of the States to identify socially and educationally backward classes
106th	2023	One-third reservation for women in the Lok Sabha and State Assemblies - Art. 330A, 332A, 334A

ASKED IN RAS

Asked in RAS Pre 2023 as a matching set - 1st Amendment with the Ninth Schedule, 52nd with anti-defection, 61st with the voting age lowered to 18, 86th with the right to education.

ASKED IN RAS

Asked in RAS Pre 2021 and repeated in 2024 - 73rd with Panchayati Raj institutions, 91st with the 15 per cent cap on the Council of Ministers, 101st with GST, 103rd with ten per cent EWS reservation. Two papers, the same four pairs.

YAAD RAKHO

Yaad rakho, the 1970s pair: 42nd ADDED (duties, three Preamble words, Concurrent subjects), 44th SUBTRACTED (property out of Fundamental Rights, internal disturbance out of Art. 352). Add, then undo. And the 2019 pair: 103rd is money (EWS), 104th is time (reservation extended to 2030). The 106th is the Nari Shakti Vandan Adhiniyam - it operates only after a census and a delimitation, and lasts fifteen years.

The twelve Schedules and the Article 371 series

The Constitution began with eight Schedules. It now has twelve. Four came later - the Ninth by the 1st Amendment in 1951, the Tenth by the 52nd in 1985, and the Eleventh and Twelfth by the 73rd and 74th in 1992. Learn each Schedule by its one-line subject; the matching question needs nothing more.

All twelve Schedules - Schedule to subject

Schedule	Subject	Added by
First	States and Union Territories with their territories	Original
Second	Emoluments and privileges of the President, Governors, Speakers, Judges, CAG	Original
Third	Forms of oaths and affirmations	Original
Fourth	Allocation of seats in the Rajya Sabha to States and Union Territories	Original
Fifth	Administration and control of Scheduled Areas and Scheduled Tribes	Original
Sixth	Administration of the tribal areas of Assam, Meghalaya, Tripura and Mizoram	Original
Seventh	Union, State and Concurrent Lists	Original
Eighth	Languages - 22 at present	Original; 22 since the 92nd Amendment, 2003
Ninth	Land reform and other laws immune from challenge	1st Amendment, 1951
Tenth	Anti-defection provisions	52nd Amendment, 1985
Eleventh	29 functional items for panchayats	73rd Amendment, 1992
Twelfth	18 functional items for municipalities	74th Amendment, 1992

ASKED IN RAS

Asked in RAS Pre 2018 as a matching set - Second Schedule with emoluments, Fourth with allocation of Rajya Sabha seats, Ninth with land reform laws immune from challenge, Tenth with anti-defection. Carry the follow-up fact too: after I.R. Coelho (2007), laws put into the Ninth Schedule AFTER 24 April 1973 can be tested against the basic structure.

YAAD RAKHO

Trick for the last four, in order: NINE-land, TEN-defect, ELEVEN-village, TWELVE-town. And note the inversion - Schedule 11 carries 29 items, Schedule 12 carries 18. The smaller Schedule number holds the bigger list.

- Fifth Schedule - Scheduled Areas in States OTHER than Assam, Meghalaya, Tripura and Mizoram. Rajasthan's Scheduled Areas fall here.
- The Governor of a State having Scheduled Areas sends an annual report to the President on their administration.
- A Tribes Advisory Council with up to twenty members is set up in such a State.
- Parliament can amend the Fifth and Sixth Schedules by a SIMPLE majority; this is not an amendment under Art. 368.
- Sixth Schedule - Autonomous District Councils, and only for Assam, Meghalaya, Tripura and Mizoram. Nagaland is NOT in it; Nagaland is covered by Art. 371A.

Article 371 series - Article to State

Article	State and provision
371A	Nagaland - Naga customary law, ownership of land and resources (13th Amendment, 1962)
371B	Assam - committee of the Legislative Assembly for tribal areas
371C	Manipur - committee for the Hill Areas

Article	State and provision
37ID and 37IE	Andhra Pradesh - Administrative Tribunal, and a Central University
37IF	Sikkim (36th Amendment, 1975)
37IG	Mizoram
37IH	Arunachal Pradesh
37II	Goa
37IJ	Karnataka - Hyderabad-Karnataka region (98th Amendment, 2012)

REVISION RECAP

1. Seventh Schedule originally - Union 97, State 66, Concurrent 47; residuary with Parliament under Art. 248 plus Entry 97.
2. The 42nd Amendment's five transfers to the Concurrent List: education, forests, weights and measures, wild animals and birds, administration of justice. Police is not one.
3. Art. 249 Rajya Sabha two-thirds present and voting, law valid one year; 250 emergency, lapses six months after; 252 States request; 253 treaties; 254 Union law prevails.
4. Art. 268 Union levies States collect; 269 assigned; 269A inter-State GST; 270 distributed; 271 surcharge to Union; 275 statutory grants; 280 Finance Commission; 282 discretionary; 293 State borrowing.
5. GST - 101st Amendment 2016, Art. 246A and 279A; Union Finance Minister chairs; Centre one-third, States two-thirds; three-fourths weighted majority to decide.
6. Art. 262 river water disputes; Art. 263 Inter-State Council, created 28 May 1990 on Sarkaria's recommendation, Prime Minister chairs.
7. Five Zonal Councils - statutory, States Reorganisation Act 1956, Union Home Minister chairs; Rajasthan is in the Northern Zone.
8. Art. 301 free trade; Art. 304(b) a State restriction needs the President's previous sanction.
9. Art. 352 grounds - war, external aggression, armed rebellion; 'armed rebellion' came in by the 44th Amendment, 1978.
10. 352 procedure - written Cabinet recommendation, approval in one month by special majority, six months at a time, Lok Sabha can force revocation.
11. Three National Emergencies only - 1962, 1971, 1975. Financial Emergency under Art. 360 - never once.

12. Art. 358 suspends Art. 19 automatically and only for war or external aggression; Art. 359 needs an order and can never touch Art. 20 and 21.
13. Art. 356 - approval in two months by simple majority, six months at a time, maximum three years; beyond a year needs a National Emergency plus an Election Commission certificate.
14. President's Rule in Rajasthan four times - 1967, 1977, 1980 and 1992-93. First in 1967, longest 1992-93; S.R. Bommai (1994) made Art. 356 judicially reviewable, with the floor test deciding majority and secularism held to be basic structure.
15. Art. 368 - either House, special majority, no joint sitting, the President's assent obligatory since the 24th Amendment, 1971.
16. Half the States ratify for the seven federal items, headed by the Lists of the Seventh Schedule, the courts and the distribution of legislative powers.
17. Amendment string one: 1st Ninth Schedule, 7th reorganisation, 24th assent, 26th privy purses, 42nd mini-Constitution, 44th property, 52nd defection, 61st voting age.
18. Amendment string two: 69th Delhi, 73rd and 74th local bodies, 86th education, 91st 15 per cent cap, 92nd four languages, 97th co-operatives.
19. Amendment string three: 101st GST, 102nd NCBC, 103rd EWS, 104th SC/ST to 2030 and no Anglo-Indians, 105th States identify SEBCs, 106th women's one-third.
20. Eight Schedules at commencement, twelve now; Fifth for Scheduled Areas elsewhere, Sixth only for the four North-Eastern States, Nagaland under Art. 371A.

IP08

Local Government: Rural and Urban

About 2-3 questions a paper, counting both the Indian Polity and the Rajasthan Administration slots. The repeat clusters are sharp - princely states that passed panchayat Acts (2016, 2018, 2024), the District Planning Committee (2016, 2024), PESA (2018, 2021), Nagaur 1959 (2018) and the count of Eleventh Schedule items (2021). Committee-to-recommendation matching is near-certain.

This is the third tier of Indian federalism - panchayats in the villages and municipalities in the towns. For a Rajasthan aspirant it is doubly important, because Rajasthan is where Panchayati Raj began, at Nagaur on 2 October 1959. The chapter is almost entirely factual: four committees, two amendments, two Schedules, a handful of Article numbers. Learn them cold.

Local Government - Rural and Urban

Before 1992

- Art. 40 DPSP - village panchayats
- Ripon Resolution 1882
- Royal Commission on Decentralisation 1907
- Bikaner Gram Panchayat Act 1928
- Nagaur, 2 October 1959 - Rajasthan first

Four committees

- Balwant Rai Mehta 1957 - three tiers
- Ashok Mehta 1977 - two tiers, Mandal
- G.V.K. Rao 1985 - grass without roots
- L.M. Singhvi 1986 - constitutional status
- 64th Amendment Bill 1989 - failed

73rd Amendment

- Part IX, Art. 243 to 243-O
- Eleventh Schedule - 29 items
- In force 24 April 1993
- Three tiers, Gram Sabha, 5-year term
- SEC 243K, SFC 243I, DPC 243ZD

74th Amendment

- Part IX-A, Art. 243P to 243ZG
- Twelfth Schedule - 18 items
- In force 1 June 1993
- Nagar Panchayat, Council, Corporation
- Ward Committees 3 lakh+, MPC 10 lakh+

PESA and money

- PESA 1996 - Bhuria Committee 1995
- Fifth Schedule areas in 10 States
- Gram Sabha owns minor forest produce
- 15th FC Rs 4.36 lakh crore, 2021-26
- Mayor deliberative, Commissioner executive

Where local self-government comes from - Ripon to the princely states

Local government means the elected bodies below the State - panchayats in the villages, municipalities in the towns. The Constitution-makers did not make them a Fundamental Right or even a compulsory institution. They put them in the Directive Principles. Article 40 tells the State to organise village panchayats and give them the powers needed to function as units of self-government. A Directive Principle is not enforceable in a court, which is exactly why

panchayats stayed weak for forty years until the 73rd Amendment made them constitutional.

- Article 40 - a Directive Principle, Gandhian in classification, the seed of Part IX.
- Lord Ripon's Resolution of 1882 is called the Magna Carta of local self-government; Ripon is the Father of local self-government in India.
- Royal Commission on Decentralisation, 1907 (report 1909) - recommended strengthening village panchayats.
- Montagu-Chelmsford Reforms, 1919 - local self-government became a transferred subject under dyarchy.
- Government of India Act, 1935 introduced provincial autonomy and popular ministries continued the work.

Rajasthan's own local-government milestones

Year	Landmark
1864	Mount Abu - Rajasthan's first municipality
1928	Bikaner state enacts its own Gram Panchayat Act - the first princely state to do so
Pre-1947	Jodhpur, Jaipur, Udaipur, Sirohi, Bharatpur and Karauli also legislate on panchayats
1953	Rajasthan Panchayat Act
1959	Rajasthan Panchayat Samitis and Zila Parishads Act
1994	Rajasthan Panchayati Raj Act - the present law, following the 73rd Amendment

ASKED IN RAS

A documented repeat. RAS Pre 2016 and 2024 asked which was the FIRST princely state in Rajasthan to enact its own Gram Panchayat Act - answer Bikaner, 1928. RAS Pre 2018 flipped it into a negative question: which state is NOT usually listed among those that legislated on panchayats before independence - answer Dholpur.

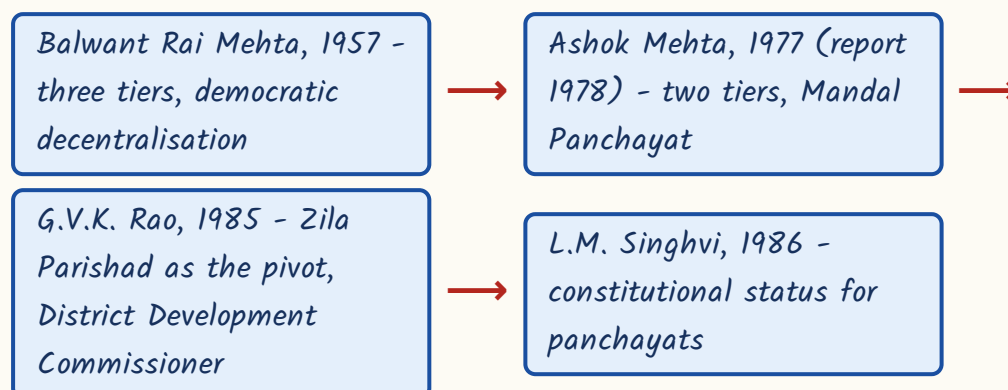
TRAP

Two separate facts, and RPSC swaps them. Bikaner (1928) is the FIRST. The list of pre-independence panchayat legislators is Bikaner, Jodhpur, Jaipur, Udaipur, Sirohi, Bharatpur and Karauli. Dholpur is not in it. And Mount Abu 1864 is a MUNICIPALITY, not a panchayat - do not offer it as the answer to a panchayat question.

The four committees - the backbone of this chapter

Between 1957 and 1986 four committees rebuilt the idea of Panchayati Raj, each reacting to the failure of the last. Learn them as a sequence, because RPSC asks both the order and the committee-to-recommendation match. One sentence each is enough - the exam never asks for the argument, only for the label.

The four committees, in order



Committee to recommendation - the matching set

Committee	Year	What it is remembered for
Balwant Rai Mehta	Appointed Jan 1957, report Nov 1957	'Democratic decentralisation'; three tiers - Gram Panchayat, Panchayat Samiti, Zila Parishad
Ashok Mehta	Appointed 1977, report Aug 1978	Two tiers - Zila Parishad and Mandal Panchayat for 15,000-20,000 people; open party participation

Committee	Year	What it is remembered for
G.V.K. Rao	1985, Planning Commission	Called the system 'grass without roots'; Zila Parishad pivotal; post of District Development Commissioner
L.M. Singhvi	1986	First to ask for constitutional status; Gram Sabha as direct democracy; revive Nyaya Panchayats

- Balwant Rai Mehta made the Panchayat Samiti the executive body and the Zila Parishad only advisory and supervisory.
 - Ashok Mehta reversed that - the Zila Parishad was to be the executive body, and the Mandal Panchayat the base unit.
 - Ashok Mehta also wanted political parties to contest panchayat elections openly, which earlier committees had avoided.
 - G.V.K. Rao's phrase 'grass without roots' is quoted verbatim in options - it belongs to G.V.K. Rao, nobody else.
 - L.M. Singhvi is the only one of the four whose central idea actually became law, in 1992.
-
- Other committees worth a line each: Hanumantha Rao (1983), P.K. Thungan (1988), V.N. Gadgil (1988).
 - P.K. Thungan recommended constitutional recognition and a five-year term for panchayats.
 - The 64th Constitutional Amendment Bill, 1989 was Rajiv Gandhi's attempt - passed by the Lok Sabha, DEFEATED in the Rajya Sabha.
 - The 65th Bill of 1989 for municipalities met the same fate; both were revived as the 73rd and 74th in 1992.

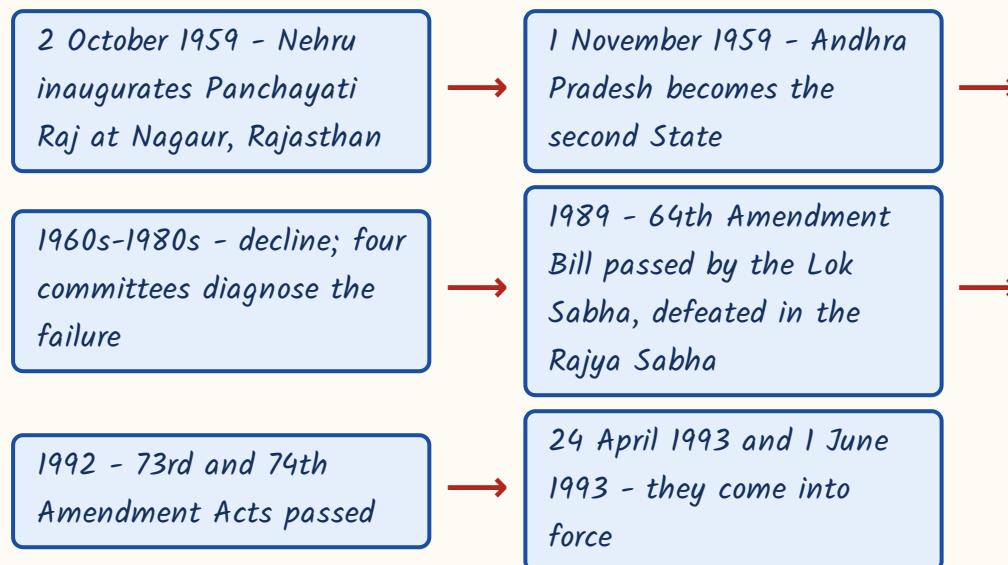
YAAD RAKHO

Yaad rakho the order with the string B-A-G-S: Balwant Rai Mehta, Ashok Mehta, G.V.K. Rao, Singhvi. Their years run 57-77-85-86. And pair the numbers with the tiers - Balwant Rai gave THREE tiers, Ashok Mehta gave TWO. The bigger name gave the bigger number.

Nagaur, 2 October 1959 - and the road to 1993

Rajasthan is the answer to this question, and you should never lose it. Acting on the Balwant Rai Mehta report, Rajasthan became the first State in India to implement Panchayati Raj. Jawaharlal Nehru inaugurated it at Nagaur on 2 October 1959 - Gandhi Jayanti. Andhra Pradesh followed on 1 November 1959. After that the system decayed for three decades, and only the 73rd and 74th Amendments of 1992 revived it.

From Nagaur to constitutional status



ASKED IN RAS

Asked in RAS Pre 2018 - Panchayati Raj was first inaugurated in India on 2 October 1959 at which place? Answer: Nagaur. Learn the whole cluster together, because the same fact is asked as 'which State was first' (Rajasthan) and 'which was second' (Andhra Pradesh, 1 November 1959).

- 73rd Amendment Act, 1992 - Part IX, Articles 243 to 243-O, Eleventh Schedule; in force 24 April 1993.
- 24 April is now observed every year as National Panchayati Raj Day.
- 74th Amendment Act, 1992 - Part IX-A, Articles 243P to 243ZG, Twelfth Schedule; in force 1 June 1993.
- Both were passed by the Narasimha Rao government and both became compulsory, not optional, for the States.

Part IX - the panchayat Articles you must be able to match

Part IX runs from Article 243 to Article 243-O. Sixteen Articles. RPSC does not ask you to explain them; it asks you to match a provision to its Article. So read this table until the number comes to you before the words do.

Part IX - Article to provision

Article	Provision
243	Definitions - village, Gram Sabha, panchayat, panchayat area, district
243A	Gram Sabha - powers as the State Legislature may provide
243B	Constitution of panchayats at village, intermediate and district level
243C	Composition of panchayats
243D	Reservation of seats
243E	Duration - five years
243F	Disqualifications for membership

Article	Provision
243G	Powers, authority and responsibilities - the hook for the Eleventh Schedule
243H	Power to impose taxes and the funds of panchayats
243I	State Finance Commission
243J	Audit of accounts
243K	Elections - State Election Commission
243M	Part IX not to apply to certain areas
243-O	Bar to interference by courts in electoral matters

- Three tiers are compulsory - village, intermediate and district - but a State with a population NOT EXCEEDING twenty lakh need not constitute the intermediate level (Art. 243B).
- All members at every level are DIRECTLY elected by the people (Art. 243C).
- The chairperson at the village level is elected as the State Legislature provides; at the intermediate and district level the chairperson is elected by and from among the elected members.
- Minimum age for membership of a panchayat is 21 years (Art. 243F) - not 25, not 18.
- Art. 243E - a five-year term; a dissolved panchayat must be reconstituted by fresh elections within six months.
- A panchayat constituted after a premature dissolution serves only the REMAINDER of the original five years.

TRAP

Two numbers that get swapped. The intermediate tier may be skipped only in a State with population up to TWENTY LAKH. Ward Committees are mandatory in a municipality of THREE LAKH or more. A Metropolitan Planning Committee needs a metropolitan area of TEN LAKH or more. Twenty - three - ten, in that order: panchayat, ward, metro.

Gram Sabha, reservation, and the two State-level commissions

Four provisions inside Part IX carry most of the questions. The Gram Sabha is the only body of direct democracy in the Indian Constitution - every registered voter of a village is a member. Reservation is the second. And then two bodies the Governor must create in every State: a State Election Commission to run the polls, and a State Finance Commission to review the money.

- Gram Sabha (Art. 243A) - the body of persons registered in the electoral rolls of a village. L.M. Singhvi called it the embodiment of direct democracy.
 - Reservation (Art. 243D) - seats for SCs and STs in PROPORTION to their population in the panchayat area.
 - Not less than ONE-THIRD of the total seats are reserved for women, and that one-third is counted within the SC and ST seats as well.
 - Offices of chairperson are reserved for SCs, STs and women on the same pattern.
 - SC/ST reservation of seats is co-terminous with Article 334; reservation for women has no such expiry.
 - A State Legislature MAY additionally reserve seats or chairperson offices for backward classes - that part is optional, not constitutional command.
-
- State Election Commission (Art. 243K for panchayats, Art. 243ZA for municipalities) - superintendence, direction and control of electoral rolls and of the conduct of all local elections.
 - The State Election Commissioner is appointed by the GOVERNOR, and can be removed only in the manner and on the grounds of a High Court judge.
 - His conditions of service cannot be varied to his disadvantage after appointment.
 - State Finance Commission (Art. 243I for panchayats, Art. 243Y for municipalities) - constituted by the Governor every FIVE years.

- It reviews the financial position of panchayats and municipalities and recommends the distribution of taxes and grants; its report is laid before the State Legislature.

State Election Commission vs State Finance Commission – do not mix them up

State Election Commission (243K / 2432A)	State Finance Commission (243I / 243Y)
Runs local body elections and electoral rolls	Reviews the finances of local bodies
A standing constitutional authority	Constituted afresh every five years
State Election Commissioner appointed by the Governor	Members appointed by the Governor
Removable only like a High Court judge	No such protected tenure
Its work is barred from ordinary courts by Art. 243-O	Its report goes to the State Legislature

Article 243-O for panchayats and Article 2432G for municipalities bar the courts from interfering in the delimitation of constituencies, the allotment of seats and the conduct of local elections. A local election can be challenged only by an election petition presented in the manner the State law provides. This mirrors Article 329 for parliamentary and assembly elections.

The 74th Amendment – urban local bodies

Part IX-A does for towns what Part IX does for villages. Its central provision is Article 243Q, which recognises three kinds of urban body and ties each to a kind of area. The Governor decides which area gets which body, looking at population, density, the revenue generated, the share of non-agricultural employment and the economic importance of the place.

Article 243Q – the three urban bodies

Body	Area it serves
Nagar Panchayat	A transitional area - a rural area turning urban
Municipal Council	A smaller urban area
Municipal Corporation	A larger urban area

- Art. 243R - all seats in a municipality are filled by direct election from wards.
 - Art. 243S - Ward Committees are MANDATORY in a municipality with a population of three lakh or more.
 - Art. 243T - reservation on the panchayat pattern; States may also reserve for backward classes.
 - Art. 243U - five-year term; Art. 243V disqualifications; Art. 243W powers, the hook for the Twelfth Schedule.
 - Art. 243X taxes and funds; Art. 243Y State Finance Commission; Art. 243Z audit; Art. 243ZA elections.
 - Art. 243ZC - Part IX-A does not apply to Scheduled Areas and tribal areas.
-
- In a Municipal Corporation the MAYOR is the deliberative and ceremonial head, presiding over the corporation's meetings.
 - The MUNICIPAL COMMISSIONER, usually an IAS or State service officer appointed by the State Government, is the EXECUTIVE head who implements the decisions.
 - The Mayor is elected; the Commissioner is appointed. That is the whole distinction the exam tests.
 - Municipal revenue comes from own taxes such as property tax, user charges, assigned revenues, State grants and Finance Commission grants.

73rd versus 74th, and the two Schedules

These two amendments are twins, passed together in 1992, and RPSC exploits the resemblance. Set them side by side once and the confusion dies.

73rd Amendment vs 74th Amendment

73rd Amendment Act, 1992	74th Amendment Act, 1992
Rural - panchayats	Urban - municipalities
Part IX	Part IX-A
Articles 243 to 243-O	Articles 243P to 243ZG
Eleventh Schedule	Twelfth Schedule
29 functional items	18 functional items
Linked to Article 243G	Linked to Article 243W
Three tiers - village, intermediate, district	Three types - Nagar Panchayat, Council, Corporation
Gram Sabha is the base body (243A)	Ward Committee is the base body (243S)
In force 24 April 1993	In force 1 June 1993
District Planning Committee under 2432D covers both	Metropolitan Planning Committee under 243ZE

ASKED IN RAS

Asked in RAS Pre 2021 - how many functional items does the Eleventh Schedule contain? Answer: 29. The companion figure, 18 for the Twelfth Schedule, is asked just as often. Note the inversion - the SMALLER Schedule number carries the BIGGER list.

Eleventh Schedule - the 29 items, grouped for recall

Group	Items
Land and farming	Agriculture and extension; land improvement and land reform; minor irrigation, water management and watershed development; animal husbandry, dairying and poultry; fisheries
Forests and industry	Social and farm forestry; minor forest produce; small-scale and food-processing industries; khadi, village and cottage industries

Group	Items
Basic needs	Rural housing; drinking water; fuel and fodder; roads, culverts, bridges, ferries and waterways; rural electrification; non-conventional energy; poverty alleviation
Education and culture	Education including primary and secondary schools; technical training and vocational education; adult and non-formal education; libraries; cultural activities; markets and fairs
Welfare and health	Health and sanitation including hospitals and PHCs; family welfare; women and child development; social welfare; welfare of weaker sections, SCs and STs; public distribution system; maintenance of community assets

Twelfth Schedule – the 18 items, grouped for recall

Group	Items
Planning and land	Urban planning including town planning; regulation of land-use and building construction; planning for economic and social development
Physical services	Roads and bridges; water supply for domestic, industrial and commercial use; public health, sanitation, conservancy and solid waste management; fire services
Environment and the poor	Urban forestry and protection of the environment; safeguarding the interests of weaker sections; slum improvement and upgradation; urban poverty alleviation
Amenities and culture	Parks, gardens and playgrounds; promotion of cultural, educational and aesthetic aspects; public amenities including street lighting, parking lots and bus stops
Regulatory	Burial and cremation grounds; cattle pounds and prevention of cruelty to animals; vital statistics including registration of births and deaths; regulation of slaughter houses and tanneries

TRAP

The classic cross-over. FIRE SERVICES is a Twelfth Schedule item - urban, not panchayat. MINOR IRRIGATION, water management and watershed development is an Eleventh Schedule item - rural, not municipal. Also remember neither Schedule is binding on its own; Articles 243G and 243W only ENABLE the State Legislature to devolve these subjects.

PESA, 1996 - panchayats in the Scheduled Areas

Part IX does not automatically apply to Fifth Schedule Scheduled Areas - Article 243M keeps it out. Parliament closed that gap with a separate law. The Panchayats (Extension to the Scheduled Areas) Act was enacted in December 1996 on the recommendations of the Bhuria Committee of 1995, chaired by Dilip Singh Bhuria. PESA extends Part IX to Scheduled Areas but with modifications that hand real power to the Gram Sabha instead of to the higher tiers.

- PESA, 1996 - the Bhuria Committee (1995) is the parent; Dilip Singh Bhuria chaired it.
- It applies to the Fifth Schedule areas of TEN States.
- The ten: Andhra Pradesh, Telangana, Chhattisgarh, Gujarat, Himachal Pradesh, Jharkhand, Madhya Pradesh, Maharashtra, Odisha and RAJASTHAN.
- In Rajasthan the Scheduled Areas lie in the southern tribal belt - Banswara, Dungarpur, Pratapgarh and parts of neighbouring districts.
- PESA does NOT cover Sixth Schedule tribal areas of the North-East; those have Autonomous District Councils instead.
- Under PESA the Gram Sabha approves plans, programmes and projects for social and economic development.
- It identifies and selects beneficiaries under poverty alleviation programmes.
- It owns MINOR FOREST PRODUCE.

- It must be **CONSULTED** before land acquisition and before the resettlement of displaced persons - consulted, not asked for consent.
- It manages minor water bodies and is consulted on the grant of licences for minor minerals.
- It can enforce prohibition or regulate the sale and consumption of intoxicants, and prevent alienation of tribal land.

ASKED IN RAS

Two separate PESA questions have come. RAS Pre 2018 asked simply for the year of enactment - 1996. RAS Pre 2021 asked a statement question on the powers of the Gram Sabha under PESA; the safe rule is that the Gram Sabha **OWNS** minor forest produce but is only **CONSULTED** on land acquisition and minor minerals. Ownership versus consultation is where the wrong option sits.

TRAP

Do not write that PESA gives the Gram Sabha a veto over land acquisition. The Act says 'shall be consulted'. Consent is required in some later laws, not in PESA itself. Equally, do not extend PESA to the Sixth Schedule - it is a Fifth Schedule instrument.

Planning committees and the money that reaches the third tier

Panchayats and municipalities plan separately, but a district has to have one plan. That is what Article 243ZD's District Planning Committee is for - it consolidates the plans of the rural and urban bodies of a district into a single draft development plan and sends it to the State Government. For very large

urban agglomerations Article 243ZE creates a Metropolitan Planning Committee. The composition percentages are what get asked.

The two planning committees

Feature	District Planning Committee (2432D)	Metropolitan Planning Committee (2432E)
Where	Every district	A metropolitan area of ten lakh or more
Elected share	Four-fifths of members	Two-thirds of members
Elected by whom	Elected members of the district panchayat and of the municipalities in the district, from among themselves	Elected members of the municipalities and chairpersons of the panchayats in the area
Seat ratio	In proportion to the rural and urban population of the district	In proportion to the population of the municipalities and panchayats
Output	Draft development plan for the district, sent to the State Government	Draft development plan for the metropolitan area

ASKED IN RAS

Asked in RAS Pre 2024, and earlier in 2016 - the District Planning Committee is under Article 2432D, four-fifths of its members are elected by the elected members of the district panchayat and the municipalities from among themselves, and seats are filled in proportion to the rural-urban population ratio. All three statements were correct. Remember four-fifths for the DPC and two-thirds for the MPC.

- Article 280(3)(bb) and (c) require the Central Finance Commission to suggest measures to augment a State's Consolidated Fund so as to supplement the resources of panchayats and municipalities.
- That is the constitutional bridge between the Union Finance Commission and the third tier.

- 15th Finance Commission, for 2021-26 – about Rs 4.36 lakh crore for local governments.
- Of that, about Rs 2.36 lakh crore for rural local bodies and about Rs 1.21 lakh crore for urban local bodies, plus Rs 70,051 crore of health grants.
- 15th FC grants are distributed among the States on POPULATION (90 per cent weight) and AREA (10 per cent weight).
- The 15th FC fixed the States' share in central taxes – vertical devolution – at 41 per cent.

CURRENT LINK

Current link, as of September 2026. The 16th Finance Commission, chaired by Arvind Panagariya, covers the five years 2026-31; its report was tabled in Parliament on 1 February 2026 and its award period began on 1 April 2026. It kept the States' share of the divisible pool at 41 per cent, and raised grants to local governments to about Rs 7.91 lakh crore – roughly Rs 4.35 lakh crore for rural and Rs 3.56 lakh crore for urban local bodies, split 80 per cent basic and 20 per cent performance-based. Any 2026 question on Finance Commission grants to local bodies will come from this report, so carry both sets of figures – 15th FC for the period just ended, 16th FC for the one now running.

REVISION RECAP

1. Article 40 is the Directive Principle behind panchayats; Lord Ripon's Resolution of 1882 made him the Father of local self-government in India.
2. Royal Commission on Decentralisation 1907 (report 1909); Montagu-Chelmsford 1919 made local self-government a transferred subject.
3. Bikaner was the first princely state in Rajasthan with a Gram Panchayat Act, 1928; Jodhpur, Jaipur, Udaipur, Sirohi, Bharatpur and Karauli followed. Dholpur is the odd one out.
4. Mount Abu, 1864 – Rajasthan's first municipality. Rajasthan Panchayat Act 1953, Panchayat Samitis and Zila Parishads Act 1959, Panchayati Raj Act 1994.

5. Balwant Rai Mehta 1957 - democratic decentralisation, three tiers, Panchayat Samiti as the executive tier.
6. Ashok Mehta 1977, report 1978 - two tiers, Mandal Panchayat for 15,000-20,000 people, political parties allowed in.
7. G.V.K. Rao 1985 - 'grass without roots', Zila Parishad pivotal, District Development Commissioner.
8. L.M. Singhvi 1986 - first to demand constitutional status, Gram Sabha as direct democracy, Nyaya Panchayats revived.
9. 64th Amendment Bill 1989 - cleared the Lok Sabha, defeated in the Rajya Sabha; Hanumantha Rao 1983, Thungon 1988 and Gadgil 1988 are the minor committees.
10. Rajasthan first in India - Nagaur, 2 October 1959, inaugurated by Nehru; Andhra Pradesh second on 1 November 1959.
11. 73rd Amendment - Part IX, Art. 243 to 243-O, Eleventh Schedule, 29 items, in force 24 April 1993, now National Panchayati Raj Day.
12. 74th Amendment - Part IX-A, Art. 243P to 243ZG, Twelfth Schedule, 18 items, in force 1 June 1993.
13. Article numbers to fix: 243A Gram Sabha, 243D reservation, 243E five years, 243G powers, 243I State Finance Commission, 243K State Election Commission, 243-O bar on courts.
14. Intermediate tier optional only for a State of not more than twenty lakh; minimum age 21; fresh elections within six months of dissolution.
15. One-third of seats and of chairperson offices reserved for women; SC and ST seats in proportion to population; backward-class reservation is optional for the State.
16. Art. 243Q - Nagar Panchayat for a transitional area, Municipal Council for a smaller urban area, Municipal Corporation for a larger one; Ward Committees compulsory above three lakh.
17. Mayor is the deliberative head, the Municipal Commissioner the executive head; Mayor elected, Commissioner appointed.
18. PESA December 1996, on the Bhuria Committee of 1995; Fifth Schedule areas in ten States including Rajasthan; Gram Sabha owns minor forest produce but is only consulted on land acquisition.
19. DPC under 243ZD - four-fifths elected, rural-urban population ratio; MPC under 243ZE - ten lakh population, two-thirds elected.
20. 15th FC 2021-26: Rs 4.36 lakh crore to local bodies, 90 per cent population and 10 per cent area; 16th FC 2026-31 raised it to about Rs 7.91 lakh crore, devolution held at 41 per cent.

IP09

Constitutional, Statutory and Executive Bodies

About 2-3 questions a paper out of the 11 Indian Polity questions. Documented repeats: the Election Commission and Article 324 (2023, 2024), the CAG (2018, 2021, 2023), Finance Commission scope (2024), the CVC and the Santhanam Committee (2018, 2024) and NHRC chairperson eligibility (2023). Learn the master tables and you have banked these marks.

This is the most mechanical chapter in Indian Polity and therefore the most scoring. Every question is one of four things - which Article, which Act and year, who appoints, who removes. Nothing here needs thinking. It needs a table in your head.

Constitutional, Statutory and Executive Bodies

Constitutional (named in the Constitution)

- Election Commission - Art. 324
- UPSC and State PSC - Art. 315-323
- CAG - Art. 148-151
- Finance Commission - Art. 280
- Attorney General - Art. 76
- NCSC 338, NCST 338A, NCBC 338B
- Linguistic Minorities Officer - Art. 350B

Statutory (born of an Act)

- NHRC - PHRA 1993
- CVC - CVC Act 2003
- CIC - RTI Act 2005
- Lokpal - Act of 2013
- NGT 2010, CCI 2002
- NCW 1990, NCPCR 2005
- Delimitation Commission

Executive (a resolution only)

- NITI Aayog - 1 Jan 2015
- Planning Commission - 15 Mar 1950
- National Development Council - 1952
- CBI - 1 April 1963
- Law Commission of India

Appointment

committees

- CEC and ECs - PM + Cabinet Minister + LoP
- CVC - PM + Home Minister + LoP
- CBI Director - PM + LoP + CJI
- Lokpal - PM, Speaker, LoP, CJI, jurist
- CIC - PM + LoP + Cabinet Minister

Removal shortcuts

- Like an SC judge - only CEC and CAG
- Art. 317 - UPSC, by President on an SC report
- Other ECs - President, on the CEC's recommendation
- AG - during the pleasure of the President

First, the classification - this is where half the marks sit

Before you learn a single Article, learn the three-family test. A body is CONSTITUTIONAL if the Constitution itself names it. It is STATUTORY if Parliament created it by an Act. It is EXECUTIVE, or non-statutory, if the government simply passed a resolution. Nothing else decides the category. RPSC

asks this directly, in the form 'Which one of the following is NOT a constitutional body?', and the answer is always a famous commission that people assume is in the Constitution but is not.

Constitutional vs Statutory body - the working difference

Constitutional body	Statutory body
Created by the Constitution itself, by name	Created by an ordinary Act of Parliament or a State legislature
Can be altered or abolished only by a constitutional amendment	Can be altered or abolished by a simple amending Act
Powers and composition largely fixed in the text	Powers and composition are whatever the Act says
Independence protected by the Constitution - salary charged on the Consolidated Fund, judge-like removal	Independence depends only on the safeguards written into its own statute
EC 324, UPSC 315-323, CAG 148, FC 280, AG 76, NCSC 338, NCST 338A, NCBC 338B, 350B	NHRC 1993, CVC 2003, CIC 2005, NGT 2010, Lokpal 2013, NCW 1990, CCI 2002, NCPCR 2005

MASTER TABLE I - the constitutional bodies

Body	Article	Composition - learn the number
Election Commission of India	324	CEC + such other ECs as the President fixes; multi-member (CEC + 2 ECs) since 1 October 1993
Union Public Service Commission	315-323	Chairman + members; at least one-half must have held office for 10 years under the Union or a State
State Public Service Commission	315-323	Chairman + members, appointed by the Governor
Joint State Public Service Commission	315(2)	Created by Parliament by law on the request of two or more state legislatures
Comptroller and Auditor General	148-151	A single person - a one-man body
Finance Commission	280	Chairman + 4 other members

Body	Article	Composition - learn the number
Attorney General of India	76	A single person; the Advocate General of a State is Article 165
National Commission for Scheduled Castes	338	Chairperson + Vice-Chairperson + 3 other members
National Commission for Scheduled Tribes	338A	Chairperson + Vice-Chairperson + 3 other members
National Commission for Backward Classes	338B	Chairperson + Vice-Chairperson + 3 other members
Special Officer for Linguistic Minorities	350B	One officer appointed by the President - not a commission

MASTER TABLE 2 - statutory and executive bodies

Body	Type and founding law or order	Year
National Human Rights Commission	Statutory - Protection of Human Rights Act	1993
Central Vigilance Commission	Executive resolution 11 Feb 1964; statutory by the CVC Act	1964 / 2003
Central Information Commission	Statutory - Section 12, Right to Information Act	2005
Lokpal	Statutory - Lokpal and Lokayuktas Act, in force 16 Jan 2014	2013
National Green Tribunal	Statutory - NGT Act; established 18 Oct 2010, principal bench New Delhi	2010
Competition Commission of India	Statutory - Competition Act 2002; established 14 Oct 2003	2002 / 2003
National Commission for Women	Statutory - NCW Act 1990; functioning from 31 Jan 1992	1990 / 1992
National Commission for Protection of Child Rights	Statutory - Commissions for Protection of Child Rights Act 2005; set up March 2007	2005 / 2007
Delimitation Commission	Statutory - under an Act of Parliament; four so far (1952, 1963, 1973, 2002)	-

Body	Type and founding law or order	Year
Central Bureau of Investigation	Executive - Home Ministry resolution; police powers from the DSPE Act 1946	1 April 1963
Planning Commission	Executive - Cabinet resolution	15 March 1950
National Development Council	Executive - neither constitutional nor statutory; chaired by the PM	6 August 1952
Law Commission of India	Executive - non-statutory; first of independent India under M.C. Setalvad	1955
NITI Aayog	Executive resolution, replacing the Planning Commission	1 January 2015

TRAP

The four bodies candidates wrongly call constitutional: NITI Aayog, the CBI, the National Commission for Women and the Delimitation Commission. NITI Aayog and the CBI are not even statutory - they are pure executive creations. The NGT, CCI, NCW and NCPCR are statutory but never constitutional.

Election Commission - Article 324

Article 324 vests the superintendence, direction and control of the preparation of electoral rolls and of the conduct of all elections to Parliament, the State Legislatures and the offices of President and Vice-President in the Election Commission. Read that list carefully - panchayat and municipal elections are NOT in it. Those go to the State Election Commission under Articles 243K and 243ZA, and that swap is RPSC's favourite wrong option.

- Came into existence on 25 January 1950 - hence National Voters' Day on 25 January.

- Became a permanent multi-member body, CEC + two Election Commissioners, from 1 October 1993.
- Tenure: 6 years or 65 years of age, whichever is earlier; no re-appointment.
- The CEC and the ECs have equal powers; decisions are taken by majority.
- Appointment is now governed by the CEC and Other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023.
- Selection Committee under that Act: the Prime Minister (chair) + a Union Cabinet Minister nominated by the PM + the Leader of the Opposition in the Lok Sabha.
- A Search Committee headed by the Cabinet Secretary sends up a panel of five names.
- Removal of the CEC: in the same manner and on the same grounds as a Judge of the Supreme Court.
- Removal of any other Election Commissioner: by the President, but only on the recommendation of the CEC.
- Elections to panchayats and municipalities belong to the State Election Commission, not the ECI.

The election Articles – a favourite matching set

Article	Subject
324	Superintendence, direction and control of elections vested in the Election Commission
325	One general electoral roll; no exclusion on grounds of religion, race, caste or sex
326	Elections to the Lok Sabha and State Legislative Assemblies on the basis of adult suffrage
327	Power of Parliament to make provision with respect to elections
329	Bar to interference by courts in electoral matters

- Voting age lowered from 21 to 18 by the 61st Amendment Act, 1988.
- The Model Code of Conduct is NOT statutory – it evolved from a code drawn up in Kerala in 1960.

- EVMs were first used at Paravur, Kerala, in 1982.
- VVPAT was first used at the Noksen bye-election in Nagaland in 2013.
- NOTA was introduced in 2013 after the Supreme Court's judgment in *People's Union for Civil Liberties v. Union of India*.
- The Delimitation Commission is statutory, not constitutional; four have been set up - 1952, 1963, 1973 and 2002.
- The 84th Amendment froze seat allocation till 2026; the 87th Amendment, 2003 shifted delimitation to the 2001 Census.

ASKED IN RAS

Asked in RAS Pre 2023 - the Election Commission of India is constituted under which Article? Answer: Article 324. Asked again in RAS Pre 2024 as a statement set on the CEC's removal and the 1993 multi-member status. Two consecutive papers on the same body - expect a third.

UPSC and the State Public Service Commissions - Articles 315 to 323

The Public Service Commissions are the recruiting arms of the Union and the States. The Constitution deals with them in one continuous block, Articles 315 to 323. If a question asks for the 'group of Articles', the answer is 315-323 - not 315-320, not 316-323. Then learn each Article separately, because the matching version is asked as often as the range.

Article to subject - the PSC block

Article	Provision
315	Constitution of Public Service Commissions for the Union and the States; 315(2) Joint State PSC
316	Appointment and term of office of members

Article	Provision
317	Removal and suspension of a member of a Public Service Commission
318	Power to make regulations as to conditions of service
320	Functions of Public Service Commissions
321	Power to extend the functions of Public Service Commissions
322	Expenses charged on the Consolidated Fund of India or of the State
323	Reports of Public Service Commissions

- UPSC Chairman and members are appointed by the President; State PSC members by the Governor.
- Term: 6 years or 65 years for the UPSC; 6 years or 62 years for a State PSC. Learn that two-year gap.
- At least one-half of the members must be persons who have held office for at least ten years under the Union or a State.
- Removal under Article 317: only by the PRESIDENT, even for a State PSC member, and only after an inquiry held by the Supreme Court.
- A Joint State PSC (Art. 315(2)) is created by Parliament by law on the request of two or more state legislatures; its chairman and members are appointed and removed by the President.
- Expenses are charged on the Consolidated Fund - not voted by the legislature. That is the independence safeguard.
- The UPSC is NOT consulted on the making of reservations of appointments in favour of any backward class (the proviso to Article 320(4)).
- Its advice is advisory only; the government may reject it but must report the rejection to Parliament.
- The UPSC Chairman is ineligible for any further employment under the Union or a State; a MEMBER may still become UPSC Chairman or Chairman of a State PSC.
- The Commission presents an annual report to the President under Article 323, who lays it before Parliament.

TRAP

'A State PSC member is removed by the Governor' - wrong, and it is the most common wrong option in this chapter. The Governor can only SUSPEND. Removal is always by the President under Article 317 after a Supreme Court inquiry.

The CAG - Articles 148 to 151, a documented repeat

The Comptroller and Auditor General is the auditor of the whole public purse. Ambedkar called him probably the most important officer under the Constitution, because he guards the public money. RPSC has asked the CAG in 2018, 2021 and 2023 - three of the last four papers. Learn all four Articles, not just 148.

CAG - Article to subject, learn as a block of four

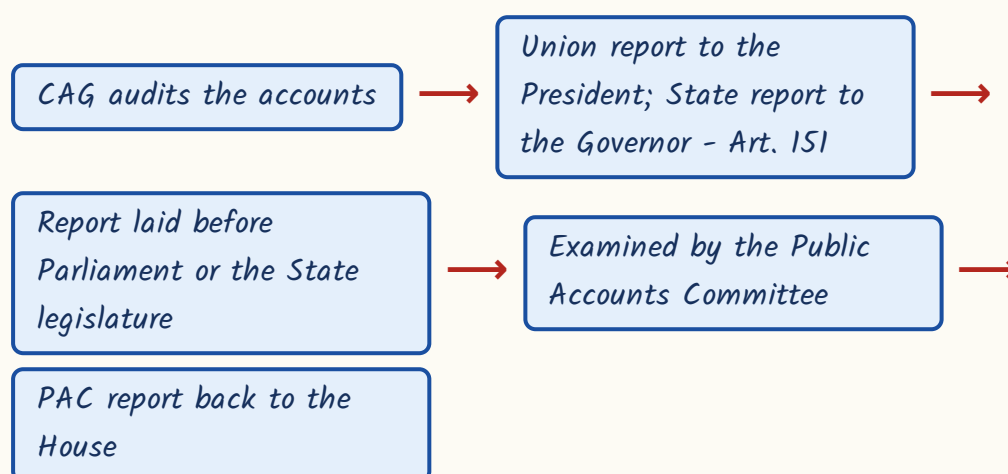
Article	Subject
148	Appointment, oath and conditions of service of the CAG
149	Duties and powers, as prescribed by Parliament
150	Form of accounts of the Union and the States, prescribed by the President on the advice of the CAG
151	Audit reports - Union reports to the President, State reports to the Governor

- Appointed by the President by warrant under his hand and seal - RPSC quotes that phrase verbatim.
- Term: 6 years or 65 years of age, whichever is earlier.
- Removed in the same manner and on the same grounds as a Judge of the Supreme Court.
- Salary equal to that of a Judge of the Supreme Court, and charged on the Consolidated Fund of India.

- After demitting office he is ineligible for any further office under the Union or any State.
- His duties and powers are laid down by the CAG's (Duties, Powers and Conditions of Service) Act, 1971, passed under Article 149.
- He is the head of the Indian Audit and Accounts Department and audits government companies as well.
- Accounts and audit were separated in 1976 - the CAG was relieved of compiling accounts.
- He is the friend, philosopher and guide of the Public Accounts Committee.
- First CAG of independent India: V. Narahari Rao.

Now the catch. The name says Comptroller AND Auditor General, but the Indian CAG does only half of what his British counterpart does. In Britain no money leaves the exchequer without the Comptroller's approval. In India the CAG has NO control over the issue of money from the Consolidated Fund - departments draw money on the authority of the Finance Ministry. His audit is entirely post-facto, after the money is spent. That single point is the standard 'which statement is NOT correct' option.

Where a CAG report goes - the accountability chain



ASKED IN RAS

Asked in RAS Pre 2021 - under which Article is the CAG appointed by the President? Answer: Article 148. Repeated in RAS Pre 2023 as a statement set: he is removed like a Supreme Court judge, and his salary is charged on the Consolidated Fund. Both statements are correct.

Finance Commission - Article 280

The Finance Commission is the constitutional referee of fiscal federalism. Every fifth year, or earlier if he thinks fit, the President constitutes it to decide how the money collected by the Centre should be shared with the States. Its recommendations are advisory only - the Union is not legally bound, though by convention it accepts the tax-devolution part and lays the report before Parliament with an action-taken memorandum.

- Article 280. Composition: a Chairman and FOUR other members - five in all.
- Qualifications of the members are fixed not by the Constitution but by the Finance Commission (Miscellaneous Provisions) Act, 1951.
- Function 1: distribution of the net proceeds of taxes between the Union and the States, and the allocation inter se among the States.
- Function 2: the principles governing grants-in-aid to the States out of the Consolidated Fund of India (Article 275).
- Function 3: measures to augment the Consolidated Fund of a State to supplement the resources of panchayats and municipalities - added by the 73rd and 74th Amendments.
- Function 4: any other matter referred to it by the President in the interests of sound finance.

- *NOT its function: fixing the annual borrowing limits of States under Article 293. That is decided by the Union Government - RPSC used exactly this as the wrong option in 2024.*

The Finance Commissions you must be able to name

<i>Commission</i>	<i>Chairman</i>	<i>Key point</i>
<i>1st (1951)</i>	<i>K.C. Neogy</i>	<i>The first Finance Commission of India</i>
<i>14th</i>	<i>Y.V. Reddy</i>	<i>Raised the States' share of the divisible pool to 42 per cent</i>
<i>15th</i>	<i>N.K. Singh</i>	<i>Recommended 41 per cent</i>
<i>16th (constituted 31 December 2023)</i>	<i>Arvind Panagariya</i>	<i>Award period 2026-27 to 2030-31; report submitted 17 November 2025</i>

ASKED IN RAS

Asked in RAS Pre 2024 - the Finance Commission is constituted under which Article? Answer: Article 280. The same paper carried the 'which one is NOT a function' version, whose answer was the Article 293 borrowing limits. Both are pure recall.

CURRENT LINK

Current link (as of September 2026): the Sixteenth Finance Commission's report, chaired by Arvind Panagariya, was tabled in Parliament on 1 February 2026. It kept the States' share of the divisible pool at 41 per cent, and its award period 2026-27 to 2030-31 began on 1 April 2026 - so it is a live, first-year award when you sit the paper.

Attorney General, and the commissions for SCs, STs and Backward Classes

The Attorney General is the first law officer of the Government of India, and the only non-member who may take part in the proceedings of Parliament. Article 76 is his Article. Do not confuse it with Article 165, the Advocate General of a State - the parallel office at the state level, appointed by the Governor.

- Appointed by the President; must be qualified to be appointed a Judge of the Supreme Court.
- Holds office during the pleasure of the President - no fixed term, and the Constitution prescribes no removal procedure.
- Has the right of audience in all courts in India.
- May speak in and take part in the proceedings of both Houses of Parliament and their committees, but has NO right to vote.
- First Attorney General of India: M.C. Setalvad, who also chaired the first Law Commission of independent India in 1955.

The social-justice bodies - body to Article to amendment

Body	Article	Inserted or recast by
National Commission for Scheduled Castes	338	89th Amendment Act, 2003 - the combined SC-ST commission was split
National Commission for Scheduled Tribes	338A	89th Amendment Act, 2003; effective 19 February 2004
National Commission for Backward Classes	338B	102nd Amendment Act, 2018
Special Officer for Linguistic Minorities	350B	7th Amendment Act, 1956, on the recommendation of the States Reorganisation Commission

- Before the 89th Amendment, 2003 there was a single combined National Commission for Scheduled Castes and Scheduled Tribes.
- Each of the three commissions has a Chairperson, a Vice-Chairperson and three other members, all appointed by the President.
- While investigating any matter each has all the powers of a civil court trying a suit.
- Each presents an annual report to the President, who causes it to be laid before both Houses of Parliament.
- Memory order: 338 - 338A - 338B is SC - ST - BC; 350B stands apart because it is about language, not caste.

NHRC - the Protection of Human Rights Act, 1993

The NHRC is statutory, not constitutional. It was set up under the Protection of Human Rights Act, 1993. The Act was substantially amended in 2019, and RPSC asked the amended position in 2023 - so learn the post-2019 rules and know exactly what they replaced.

- Chairperson: a person who has been Chief Justice of India OR a Judge of the Supreme Court. Before the 2019 Amendment only a former CJI was eligible - the pool was widened.
- Term: 3 years or 70 years of age, whichever is earlier. The 2019 Amendment cut the term from five years to three.
- Composition after 2019: Chairperson + FIVE full-time members.
- The five: one serving or retired Supreme Court judge, one serving or retired Chief Justice of a High Court, and three members of whom at least one must be a woman.
- Deemed or ex officio members: the chairpersons of the NCSC, NCST, NCW, NCBC, NCPCR and the Chief Commissioner for Persons with Disabilities.
- Selection committee, six members - first, the Prime Minister, who chairs it

- Second, the Speaker of the Lok Sabha
 - Third, the Deputy Chairman of the Rajya Sabha
 - Fourth and fifth, the Leaders of the Opposition in the Lok Sabha and the Rajya Sabha
 - Sixth, the Union Home Minister
-
- It cannot inquire into a violation of human rights that is more than ONE YEAR old.
 - Its recommendations are advisory, not binding; the authority must report the action taken within one month.
 - It cannot itself punish anyone - it can only recommend action, compensation or prosecution.
 - It has the powers of a civil court while inquiring, and may intervene in a human rights proceeding pending before a court.
 - So it is a recommendatory watchdog, not a court. Every negative-framed NHRC question is built on one of these limits.

ASKED IN RAS

Asked in RAS Pre 2023 - after the Protection of Human Rights (Amendment) Act, 2019, who is eligible to be appointed Chairperson of the NHRC? Answer: a person who has been Chief Justice of India or a Judge of the Supreme Court. Note also that the State Human Rights Commission under the same Act is the single most repeated topic in the Rajasthan Polity paper - its committee is headed by the Chief Minister, not the Prime Minister.

The anti-corruption trio - CVC, CBI and Lokpal

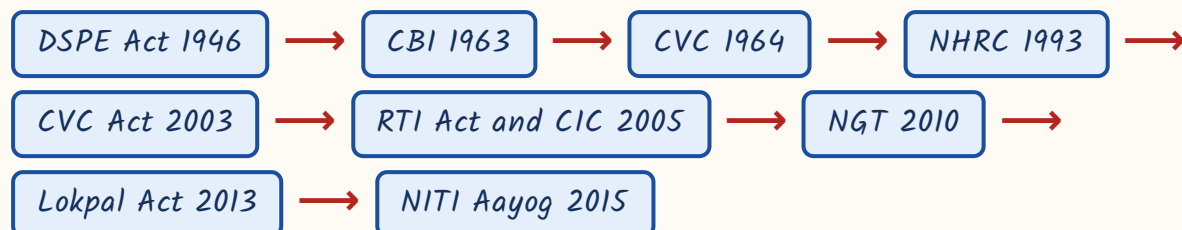
Three bodies, three different legal statuses, three different appointment committees. The CVC was recommended by the Santhanam Committee on

Prevention of Corruption and set up by an executive resolution on 11 February 1964. For nearly forty years it had no statutory backing. After the Supreme Court's directions in Vineet Narain (1997) it was finally made statutory by the Central Vigilance Commission Act, 2003. RPSC asked the Santhanam link in 2018 and again in 2024.

- CVC composition: a Central Vigilance Commissioner (chairperson) + not more than two Vigilance Commissioners.
 - Appointed by the President on the recommendation of a committee of the Prime Minister, the Union Home Minister and the Leader of the Opposition in the Lok Sabha.
 - Term: 4 years or 65 years of age, whichever is earlier.
 - Removed by the President on the ground of proved misbehaviour or incapacity, after an inquiry by the Supreme Court.
 - It exercises superintendence over the CBI in matters relating to the Prevention of Corruption Act.
 - First Central Vigilance Commissioner: Nittoor Srinivasa Rau.
-
- CBI: set up on 1 April 1963 by a resolution of the Home Ministry - an executive body, neither constitutional nor statutory.
 - It derives its police powers from the Delhi Special Police Establishment Act, 1946.
 - Under Section 6 of that Act it needs the consent of a State Government to investigate within that State.
 - It functions under the Ministry of Personnel, Public Grievances and Pensions (DoPT), not the Home Ministry.
 - Director appointed on the recommendation of a committee of the Prime Minister, the Leader of the Opposition in the Lok Sabha, and the Chief Justice of India or a Supreme Court judge nominated by him.

- Minimum tenure of the Director is 2 years, extendable up to a total of 5 years under the 2021 amendment.
- Lokpal and Lokayuktas Act, 2013 - assent 1 January 2014, came into force 16 January 2014.
- Lokpal = a Chairperson + a maximum of eight members; not less than half must be judicial members.
- Term: 5 years or 70 years of age, whichever is earlier.
- Selection Committee, five members: the Prime Minister, the Speaker of the Lok Sabha, the Leader of the Opposition in the Lok Sabha, the Chief Justice of India or a Judge nominated by him, and one eminent jurist.
- First Lokpal of India: Justice Pinaki Chandra Ghose, appointed in 2019.
- The First ARC recommended a Lokpal and Lokayuktas as far back as 1966 - the Act took 47 years to arrive.

Chronology of the integrity architecture - a ready-made ordering question



ASKED IN RAS

Asked in RAS Pre 2018 and again in RAS Pre 2024 - the CVC was set up in 1964 on the recommendation of which committee? Answer: the Santhanam Committee. RAS Pre 2024 also asked who, besides the PM and the LoP, sits on the CVC selection committee. Answer: the Union Minister of Home Affairs.

TRAP

Three committees, three different third members. CVC = PM + LoP + HOME MINISTER. CBI Director = PM + LoP + CJI. Chief Information Commissioner = PM + LoP + a Union Cabinet Minister nominated by the PM. Get the third name right and you get the question.

NITI Aayog, and the master table of appointment and removal

NITI Aayog replaced the Planning Commission on 1 January 2015. Both were creatures of a mere resolution - the Planning Commission of a Cabinet resolution of 15 March 1950, NITI Aayog of a Union Cabinet resolution of 1 January 2015. Neither ever had constitutional or statutory status. That single fact is the most asked thing about NITI Aayog, and the wrong option always reads 'it is a statutory body created by an Act of Parliament'.

- The Prime Minister is the ex officio Chairperson of NITI Aayog.
- Governing Council = all Chief Ministers + the Lieutenant Governors of Union Territories.
- There is a Vice-Chairperson, full-time and part-time members, ex officio members, and a Chief Executive Officer of the rank of Secretary to the Government of India.
- First Vice-Chairman: Arvind Panagariya - the same man who now chairs the 16th Finance Commission.
- It is a think tank. It allocates no funds; all fund allocation moved to the Finance Ministry.
- National Development Council - set up 6 August 1952, neither constitutional nor statutory, chaired by the Prime Minister.
- Law Commission of India - non-statutory and executive; its first chairman in independent India (1955) was M.C. Setalvad.

WHO APPOINTS, WHO REMOVES - revise only this in the last week

Office	Appointed by	Removed by / how
Chief Election Commissioner	President, on the recommendation of PM + a Union Cabinet Minister + LoP in Lok Sabha (2023 Act)	Like a Supreme Court judge - address by both Houses
Other Election Commissioners	President, same committee	President, on the recommendation of the CEC
UPSC Chairman and members	President	President, after an inquiry by the Supreme Court (Art. 317)
State PSC Chairman and members	Governor	President, after an inquiry by the Supreme Court (Art. 317)
Comptroller and Auditor General	President, by warrant under his hand and seal	Like a Supreme Court judge
Finance Commission Chairman and members	President	No special procedure - it is a temporary body
Attorney General	President	Holds office during the pleasure of the President
NCSC / NCST / NCBC Chairperson	President	As prescribed - not a judge-like procedure
NHRC Chairperson and members	President, on a six-member committee headed by the PM	President, on a Supreme Court inquiry into proved misbehaviour
Central Vigilance Commissioner	President, on the recommendation of PM + Home Minister + LoP	President, on a Supreme Court inquiry
CBI Director	Committee of PM + LoP + CJI or his nominee	A fixed minimum tenure of 2 years protects him
Lokpal Chairperson and members	President, on a five-member Selection Committee	President, on a Supreme Court reference
Chief Information Commissioner	President, on the recommendation of PM + LoP + a Union Cabinet Minister nominated by the PM	President, on a Supreme Court inquiry

Office	Appointed by	Removed by / how
Chairperson, NITI Aayog	No appointment - the Prime Minister holds it ex officio	Not applicable

YAAD RAKHO

Two shortcuts worth more than a page of reading. One: only the CEC and the CAG are removed exactly like a Supreme Court judge - nobody else, so any option saying that about a UPSC member or the NHRC Chairperson is wrong. Two: the first-incumbents matching set is fixed - CAG V. Narahari Rao, CVC Nittoor Srinivasa Rau, CIC Wajahat Habibullah, Lokpal Pinaki Chandra Ghose, AG M.C. Setalvad, NITI Aayog Vice-Chairman Arvind Panagariya.

CURRENT LINK

Current link (as of September 2026): Gyanesh Kumar took charge as the 26th Chief Election Commissioner on 19 February 2025 - the first CEC appointed under the 2023 Act, and therefore the live illustration of the new selection committee. Justice A.M. Khanwilkar has been Lokpal Chairperson since 10 March 2024. Expect the 'first CEC appointed under the 2023 Act' framing.

REVISION RECAP

1. Constitutional = named in the Constitution; statutory = created by an Act; executive = created by a resolution. Every classification question turns on this one test.
2. Election Commission - Art. 324; existed from 25 Jan 1950; permanent three-member body from 1 Oct 1993; tenure 6 years or 65.
3. 2023 Act selection committee for the CEC and ECs: PM + a Union Cabinet Minister nominated by the PM + LoP in Lok Sabha; a Search Committee under the Cabinet Secretary sends five names.
4. Art. 325 no discrimination in rolls; 326 adult suffrage (61st Amendment, 1988 lowered 21 to 18); 329 bar to court interference.

5. MCC non-statutory (Kerala 1960); EVM Paravur 1982; VVPAT Noksen 2013; NOTA 2013 after PUCL v. Union of India; Delimitation Commission statutory, four so far.
6. UPSC Art. 315-323; 6 years or 65 (State PSC 62); half the members must have 10 years' government service; removal only by the President under Art. 317 after a Supreme Court inquiry.
7. UPSC is not consulted on reservations for backward classes; its Chairman gets no further government employment, but a member may still become Chairman of the UPSC or of a State PSC.
8. CAG Art. 148 appointment, 149 duties under the 1971 Act, 150 form of accounts, 151 reports. Six years or 65; removed like an SC judge; first CAG V. Narahari Rao.
9. The CAG is an auditor only - no control over the issue of money from the Consolidated Fund, and his audit is entirely post-facto.
10. Finance Commission Art. 280 - Chairman + 4 members, every fifth year, advisory only; qualifications under the 1951 Act; borrowing limits under Art. 293 are NOT its job.
11. 1st FC K.C. Neogy; 14th Y.V. Reddy 42 per cent; 15th N.K. Singh 41 per cent; 16th Arvind Panagariya, award 2026-27 to 2030-31, tabled 1 Feb 2026, 41 per cent retained.
12. Attorney General Art. 76, qualified to be an SC judge, speaks in Parliament but has no vote, holds office during the President's pleasure; Advocate General Art. 165; first AG M.C. Setalvad.
13. NCSC 338, NCST 338A (89th Amendment 2003, effective 19 Feb 2004), NCBC 338B (102nd Amendment 2018), Linguistic Minorities Officer 350B (7th Amendment 1956).
14. NHRC - PHRA 1993; chairperson a former CJI or SC judge after 2019; term 3 years or 70; Chairperson + 5 full-time members; six-member selection committee headed by the PM.
15. NHRC limits: no case older than one year, recommendations not binding, and it cannot punish.
16. CVC - Santhanam Committee, resolution 11 Feb 1964, statutory 2003 after Vineet Narain; CVC + max 2 VCs; 4 years or 65; committee PM + Home Minister + LoP; first CVC Nittoor Srinivasa Rau.
17. CBI - 1 April 1963 resolution, powers from the DSPE Act 1946, State consent under Section 6, under DoPT; Director by PM + LoP + CJI, tenure 2 to 5 years.
18. Lokpal Act 2013, in force 16 Jan 2014 - Chairperson + max 8 members, half judicial, 5 years or 70; first Lokpal Pinaki Chandra Ghose, 2019.
19. NITI Aayog 1 Jan 2015 by executive resolution, replacing the Planning Commission of 15 March 1950; PM ex officio Chairperson; Governing Council of all CMs and UT LGs; allocates no funds.
20. Only the CEC and the CAG are removed exactly like a Supreme Court judge - the single most useful discriminator in this chapter.

IP10

Governance: Public Policy, Citizen Charter, Social Audit, Grievance Redressal, RTI

About 2-3 questions a paper across Indian and Rajasthan Polity. Documented repeats: the Citizen's Charter 'which element is NOT a component' question (2021 and 2024), the RTI commencement date (2018), the 48-hour life-and-liberty limit (2021), the Rs 25,000 maximum penalty (2023) and the CIC appointment committee (2023). Five near-certain marks sitting in a chapter people leave unread.

This is the half of the syllabus most candidates skip, and RPSC keeps asking it. It is not theory-heavy. It is a set of named principles, named components, section numbers and time limits - all of which can be learnt in one sitting, and none of which can be guessed in the hall.

Governance, Transparency and RTI

Public policy

- Thomas Dye - 'to do or not to do'
- Harold Lasswell - father of the policy sciences
- Five stages: agenda to evaluation
- Simon, Lindblom, Etzioni, Easton

Citizen's Charter

- UK 1991, John Major
- Six principles - Quality, Choice, Standards, Value, Accountability, Transparency
- Six components - penalty is NOT one
- India: 24 May 1997, DARPG nodal
- Sevottam, IS 15700:2005

Social audit

- MGNREGA Section 17, 2005
- Gram Sabha, once every six months
- Audit of Scheme Rules 2011, with the CAG
- Meghalaya Act 2017 - first state
- MKSS 1990 Devdungri; Jan Sunwai

Grievance redressal

- CPGRAMS - run by DARPG
- 21 days since August 2024
- Appeal within 30 days
- Directorate of Public Grievances - Cabinet Secretariat
- Rajasthan Sampark portal

RTI Act 2005

- Sec 4 suo motu, Sec 6 request
- Sec 7 - 30 days / 48 hours
- Sec 8 exemptions, Sec 19 appeals
- Sec 20 - Rs 250 a day, max Rs 25,000
- CIC Sec 12, SIC Sec 15
- 2019 Amendment - tenure and salary

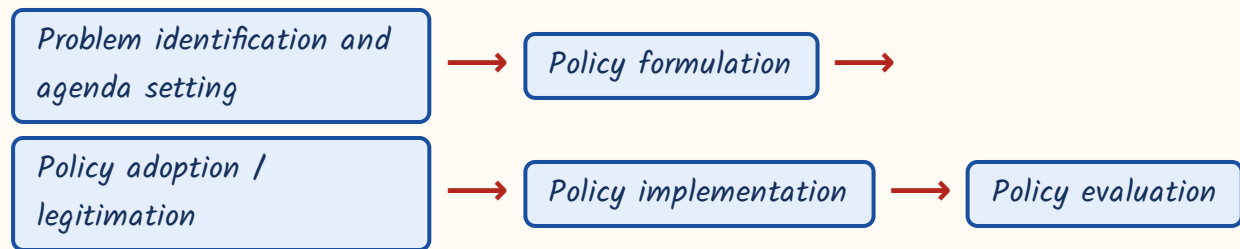
Good governance and e-governance

- 1st ARC 1966, 2nd ARC 2005
- SMART; the UN's eight attributes
- NeGP 2006, e-Kranti 2015
- Digital India 1 July 2015
- DBT 2013, UMANG 2017, Aadhaar Act 2016

Public policy - what it is, how it is made, who theorised it

Public policy is what the government decides to do about a public problem - and equally, what it decides NOT to do. That second half is the exam point. Thomas R. Dye's definition is the one RPSC quotes: public policy is 'whatever governments choose to do or not to do'. Harold Lasswell is regarded as the father of the policy sciences. A policy is never one act; it moves through named stages, and each stage has a job.

The five stages of the policy process



- Agenda setting is the stage at which a problem is recognised as needing government action.
- Formulation is where alternatives are designed; adoption is where the legislature or Cabinet legitimises the chosen one.
- Implementation is an EXECUTIVE and administrative function - the legislature legitimises and oversees, it does not implement.
- Evaluation asks whether the policy achieved its stated objectives, and feeds back into the next round of agenda setting.
- Evaluation may be formative, done during implementation, or summative, done after completion.

Model to thinker - a straight matching question

Model	Thinker	The idea in one line
Rational-comprehensive	-	Weigh every alternative and pick the optimum; assumes complete information
Bounded rationality	Herbert Simon	Human rationality is limited; the decision-maker satisfices instead of optimising
Incrementalism - 'the science of muddling through'	Charles E. Lindblom	Policy moves in small steps away from what already exists
Mixed scanning	Amitai Etzioni	A broad scan for big decisions, a detailed look for small ones - the middle path
Garbage-can model	Cohen, March and Olsen	Problems, solutions and participants collide almost randomly in organised anarchy

Model	Thinker	The idea in one line
Systems model	David Easton	Inputs, conversion, outputs and feedback within the political system

TRAP

Two standard false statements. One: 'policy implementation is carried out mainly by the legislature' - no, it is executive work. Two: swapping Simon and Lindblom. Keep the tags in order - Simon bounded, Lindblom muddling, Etzioni mixed, Easton systems.

Citizen's Charter - the six principles and the six components

A Citizen's Charter is a public declaration by a government office of the standard of service a citizen can expect from it, and what to do if that standard is not met. It is a promise, not a law. The idea started in the United Kingdom in 1991 under Prime Minister John Major. India adopted it after the Conference of Chief Ministers on 24 May 1997, which approved the 'Action Plan for Effective and Responsive Government'; the first charters were issued in 1997 and DARPG - the Department of Administrative Reforms and Public Grievances - is the nodal agency.

- The six PRINCIPLES, from the UK charter of 1991 - Quality: improving the quality of services
- Choice: wherever possible, choice for the user
- Standards: specify what to expect, and how to act if standards are not met
- Value: value for the taxpayer's money
- Accountability: of the individual and of the organisation
- Transparency: in rules, procedures, schemes and grievance redressal

- The six **COMPONENTS**, the actual contents of an Indian charter - Vision and mission statement of the organisation
- Details of the business transacted by the organisation
- Details of the clients - who the organisation serves
- Details of the services provided to each client group
- Details of the grievance redress mechanism and how to access it
- Expectations of the organisation from its clients

Do not let the two lists blur - principles vs components

Six PRINCIPLES (UK, 1991)	Six COMPONENTS (contents of a charter)
Quality	Vision and mission statement
Choice	Details of business transacted
Standards	Details of clients
Value	Details of services to each client group
Accountability	Grievance redress mechanism and how to access it
Transparency	Expectations from the clients

ASKED IN RAS

Asked in RAS Pre 2021 and again in RAS Pre 2024 - which one of the following is **NOT** a component of a Citizen's Charter? Answer: provision of penalty and punishment for officials who fail to meet the declared standards. A charter carries no penal provision at all. This is the most repeated question in the entire governance syllabus - do not lose it.

TRAP

Anything that sounds like enforcement is NOT a component - penalty, punishment, disciplinary action, compensation as of right, a right to sue. A Citizen's Charter is voluntary and non-justiciable; a citizen cannot sue on it. Its stated 'expectations' run from the organisation to the client, never as a penalty against the official. The standard criticism, also asked as a statement, is that charters are drafted without consulting the citizens they serve or the staff who must deliver them - which is why the 2nd ARC asked for measurable standards and a real grievance mechanism inside every charter.

Sevottam and the Right to Services Acts - making the promise

bite

Because the Citizen's Charter has no teeth, two things followed. First, DARPG built an assessment framework called Sevottam - from seva and uttam, excellence in service. Second, states began passing laws that actually guarantee delivery within a fixed time, with a penalty attached. Sevottam is the model; the Right to Services Acts are the enforcement.

- Sevottam has three modules: (1) Citizen's Charter, (2) Public Grievance Redress, (3) Service Delivery Capability.
- It is assessed against IS 15700:2005, an Indian Standard of the Bureau of Indian Standards.
- Remember DARPG for all three - the Citizen's Charter, Sevottam and CPGRAMS.
- Madhya Pradesh was the first state with a right-to-services law - the Public Service Guarantee Act, 2010, effective 25 September 2010.

- Bihar followed in 2011.
- Rajasthan enacted the Rajasthan Guaranteed Delivery of Public Services Act, 2011.
- Rajasthan also enacted the Rajasthan Right to Hearing Act, 2012 - the first such law in India.
- These Acts do what a charter cannot: fix a time limit, name a designated officer, allow an appeal and impose a penalty for default.

YAAD RAKHO

Two Rajasthan firsts, learn them as a pair and keep them apart. Right to Hearing Act 2012 - first in India. Guaranteed Delivery of Public Services Act 2011 - NOT the first; that honour is Madhya Pradesh's, 2010. RPSC swaps these two.

Social audit - and the Rajasthan movement behind it

A social audit is an audit done by the people the scheme is meant for. Records are read out in public, in the village, in front of everyone, and the beneficiaries themselves verify whether the muster roll, the measurement and the payment are true. It is not an accountant's audit. It is a public verification, and its legal home in India is one section of one Act.

- Social audit got its first statutory mandate in India through SECTION 17 of the MGNREGA, 2005.
- Section 17 requires the GRAM SABHA to conduct social audits of all works executed in the Gram Panchayat.
- The audit must be conducted at least once in every six months.
- The MGNREGA Audit of Scheme Rules, 2011 were framed in consultation with the Comptroller and Auditor General.

- Social audit SUPPLEMENTS the statutory financial audit by the CAG - it does not replace it.
- Meghalaya was the first state with a dedicated social audit law - the Meghalaya Community Participation and Public Services Social Audit Act, 2017.

The Jan Sunwai, or public hearing, tradition grew out of the Mazdoor Kisan Shakti Sangathan, founded in 1990 at Devdungri in Rajsamand district by Aruna Roy, Nikhil Dey and Shankar Singh. Its slogan was 'Hamara Paisa, Hamara Hisab' - our money, our accounts. Workers demanded to see muster rolls and bills, read them aloud in the village, and asked those present to confirm or deny them. That local demand became the national campaign for the right to information, and eventually the RTI Act, 2005. This is a Rajasthan fact inside a national chapter, so it can appear in either paper.

TRAP

'Social audit was first mandated in India by the RTI Act, 2005' - wrong. It was Section 17 of MGNREGA, 2005. Both are 2005 Acts, which is precisely why RPSC uses this as the incorrectly matched pair.

ASKED IN RAS

The not-correctly-matched version of this question puts social audit against the RTI Act as the wrong pair. The three correct pairs beside it are worth learning in their own right - CPGRAMS with online grievance redress, Citizen's Charter with the United Kingdom 1991, and Sevottam with DARPG.

Grievance redressal - CPGRAMS and the machinery around it

CPGRAMS is the Centralised Public Grievance Redress and Monitoring System - the single online portal on which a citizen lodges a complaint against any central ministry or department. It is run by DARPG, which sits in the Ministry of Personnel, Public Grievances and Pensions. Learn its two numbers and its two nodal agencies; that is the whole question.

- *The redressal timeline was cut from 30 days to 21 DAYS in August 2024.*
- *An appeal against the disposal of a grievance lies to the designated Appellate Authority within 30 days.*
- *Every ministry and department has a designated Public Grievance Officer.*
- *Two nodal agencies at the central level: DARPG in the Ministry of Personnel, and the Directorate of Public Grievances, which functions under the CABINET SECRETARIAT.*
- *Rajasthan runs its own state grievance portal, Rajasthan Sampark, alongside CPGRAMS.*

CURRENT LINK

Current link (as of September 2026): the 21-day CPGRAMS deadline fixed in August 2024 is the figure in force - if an option still says 30 days for disposal, it is the old rule. DARPG's monthly CPGRAMS reports and its ranking of ministries by disposal rate are standard current-affairs material.

RTI Act, 2005 - the sections, in order

The RTI Act is the most heavily examined single statute in this chapter. It replaced the toothless Freedom of Information Act, 2002. It received assent on 15 June 2005 and came fully into force on 12 October 2005 - learn both dates, because they appear as options together. It extends to the whole of India; Jammu and Kashmir had a separate RTI Act, repealed in 2019. Its preamble is quoted almost verbatim in questions: to provide for setting out the practical

regime of right to information for citizens to secure access to information under the control of public authorities, in order to promote transparency and accountability in the working of every public authority.

Section to subject - learn this table cold

Section	Subject
4	Suo motu or proactive disclosure by every public authority
5	Designation of Public Information Officers and Assistant PIOs
6	Request for obtaining information - no reason need be given
7	Disposal of a request - the time limits
8	Exemptions from disclosure - ten grounds
9	Rejection where disclosure would infringe the copyright of a person other than the State
10	Severability - supply the disclosable part of a record
11	Third-party information
12	Constitution of the Central Information Commission
15	Constitution of the State Information Commission
19	Appeals - first and second
20	Penalties
22	Overriding effect over the Official Secrets Act, 1923 and any inconsistent law
24	Intelligence and security organisations in the Second Schedule are exempt

- Section 6(2) - the applicant is NOT required to give any reason for the request; only contact details are needed.
- Section 8(2) - a public interest override: exempt information may still be disclosed if public interest outweighs the harm.
- Section 8(3) - information more than 20 years old is ordinarily to be supplied.
- Section 23 - bar on the jurisdiction of courts.

- Section 24 proviso - even a Second Schedule organisation must give information on allegations of CORRUPTION and HUMAN RIGHTS VIOLATIONS.
- The application fee prescribed under the RTI Rules, 2012 for a central public authority is Rs 10; applicants below the poverty line pay no fee.

ASKED IN RAS

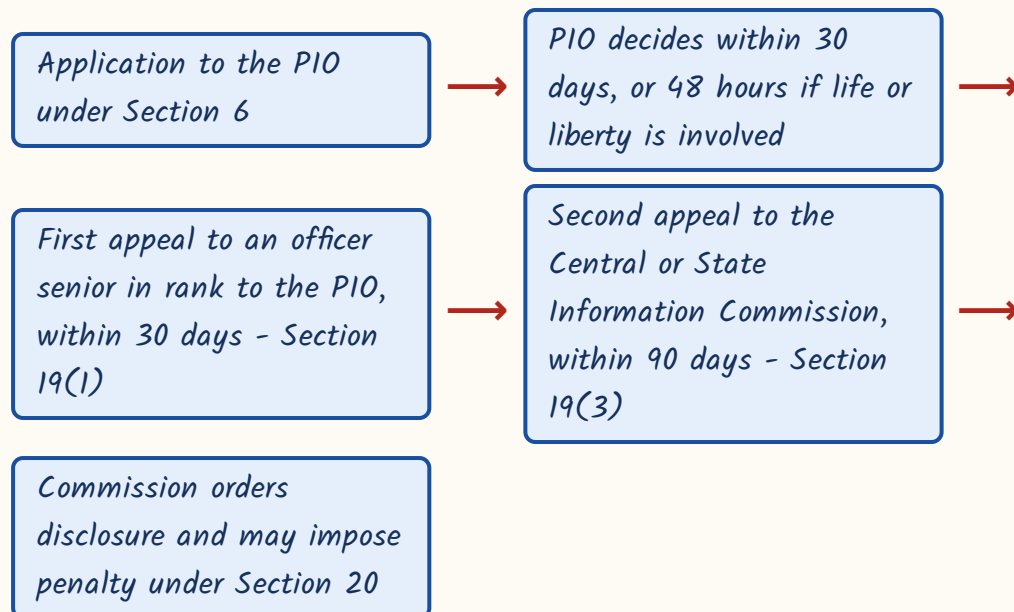
Asked in RAS Pre 2018 - the RTI Act, 2005 came fully into force with effect from? Answer: 12 October 2005. The trap version of the same fact is the statement 'Second Schedule organisations are wholly outside the Act, even for corruption' - that is false, because of the proviso to Section 24.

RTI - time limits, appeals and the penalty

This is the part RPSC has asked in three different years. There are five numbers under Section 7 and four under Sections 19 and 20. Memorise them as two strips and you have covered every numerical RTI question ever set.

- 30 days - the ordinary limit for supplying information under Section 7.
- 48 HOURS - where the information concerns the LIFE OR LIBERTY of a person.
- 35 days - where the application is filed with an Assistant Public Information Officer; the extra five days are for transmission.
- 40 days - where a third party's interest is involved.
- If the deadline is missed, the information must be supplied FREE of charge.

The RTI journey - application to second appeal



- Section 19 - first appeal within 30 days, to an officer senior in rank to the PIO.
- Section 19 - second appeal to the CIC or SIC within 90 days.
- In any appeal, the BURDEN of proving that a refusal was justified lies on the PIO, not on the citizen.
- Section 20 - penalty of Rs 250 PER DAY of delay, imposed on the Public Information Officer.
- The penalty is subject to a MAXIMUM of Rs 25,000.
- For persistent default the Commission may also recommend disciplinary action against the PIO.

ASKED IN RAS

Asked in RAS Pre 2021 - information concerning the life or liberty of a person must be provided within how long? Answer: 48 hours. Asked in RAS Pre 2023 - the maximum penalty on a PIO under Section 20? Answer: Rs 25,000. Two separate papers, two separate numbers from the same Act. The number strips to say out loud: 30 - 48 hours - 35 - 40 - free, then 30 - 90 - 250 - 25,000.

The Information Commissions and the 2019 Amendment

The Central Information Commission is constituted under Section 12 and the State Information Commission under Section 15. Their structures are parallel - the same numbers, but a different appointing authority and a different committee. Learn them side by side and you will never confuse the two.

CIC vs SIC - identical shape, different people

Central Information Commission (Sec 12)	State Information Commission (Sec 15)
Chief Information Commissioner + not more than TEN Information Commissioners	State Chief Information Commissioner + up to TEN State Information Commissioners
Appointed by the PRESIDENT	Appointed by the GOVERNOR
Committee chaired by the Prime Minister	Committee chaired by the Chief Minister
Leader of the Opposition in the Lok Sabha	Leader of the Opposition in the Legislative Assembly
A Union Cabinet Minister nominated by the Prime Minister	A State Cabinet Minister nominated by the Chief Minister
First Chief Information Commissioner: Wajahat Habibullah, 2005	Rajasthan's own SIC is repeatedly asked in the Rajasthan Polity paper

Now the 2019 Amendment, which is asked in its own right. It did not touch the citizen's rights at all - it touched only the officers. It amended Sections 13, 16 and 27 so that the term of office and the salaries of the Chief Information Commissioner, the Information Commissioners and their state counterparts are no longer written into the statute; they are now 'as may be prescribed by the Central Government'. Before 2019 the Act itself fixed the term at five years and pegged the salaries of the CIC and ICs to the Chief Election Commissioner and Election Commissioners.

- Sections amended: 13, 16 and 27. Nothing else.
- The RTI Rules, 2019 fix the term at THREE years - it was five years earlier.

- The upper age limit of 65 years is unchanged.
- The Amendment did NOT remove or alter the right of second appeal to the Information Commission - Section 19 was untouched. That false statement is the standard wrong option.
- The criticism: making tenure and salary a matter of executive prescription weakens the Commissions' independence.

ASKED IN RAS

Asked in RAS Pre 2023 - the Chief Information Commissioner is appointed by the President on the recommendation of a committee consisting of the PM, the LoP in the Lok Sabha, and who else? Answer: a Union Cabinet Minister nominated by the Prime Minister. RAS Pre 2021 asked the post-2019 tenure - answer: three years or until the age of 65 years.

CURRENT LINK

Current link (as of September 2026): Raj Kumar Goyal was sworn in as Chief Information Commissioner in December 2025, and with that round of appointments the Central Information Commission was reported to have returned to its full sanctioned strength of a Chief Information Commissioner plus ten Information Commissioners. Vacancies at the CIC had been a running news story since 2023, so both the vacancy issue and the restored strength are fair current-affairs game.

The ARCs, good governance and e-governance

Two Administrative Reforms Commissions bracket this whole syllabus. Almost everything above - RTI, the Citizen's Charter, e-governance, ethics in public life - was recommended by one of them. Learn the two chairmen, the report counts,

and the four named reports of the 2nd ARC, because the report-number matching question uses exactly those four.

The two Administrative Reforms Commissions

	First ARC	Second ARC
Constituted	1966	31 August 2005
Chairman	Morarji Desai, later K. Hanumanthaiah	Veerappa Moily, later V. Ramachandran
Reports submitted	20	15
Signature recommendation	Setting up of Lokpal and Lokayuktas	Right to Information as the master key to good governance

- 2nd ARC 1st report (2006): 'Right to Information - Master Key to Good Governance'.
- 2nd ARC 4th report: 'Ethics in Governance'.
- 2nd ARC 11th report: 'Promoting e-Governance - The SMART Way Forward'.
- 2nd ARC 12th report: 'Citizen Centric Administration - The Heart of Governance'.
- The report numbers to hold are 1, 4, 11 and 12 - nothing else from the 15 is asked.
- SMART governance = Simple, Moral, Accountable, Responsive and Transparent.
- The World Bank popularised the term 'good governance' in its 1992 report 'Governance and Development'.
- The United Nations lists EIGHT attributes of good governance: participation, rule of law, transparency, responsiveness, consensus orientation, equity and inclusiveness, effectiveness and efficiency, and accountability.
- Centralisation of decision making is NOT one of them - it is the standard wrong option in the negative-framed version.

- *Whistle Blowers Protection Act, 2014 - assent 9 May 2014.*
- *It allows public interest disclosures to the Central or State Vigilance Commission and protects the complainant's identity.*
- *It followed the murder of Satyendra Dubey in 2003 and the 2nd ARC's 'Ethics in Governance' report.*
- *It is still not fully operational - the rules have not been notified and amendments remain pending.*
- *Chronology for the ordering question: Freedom of Information Act 2002 - RTI Act 2005 - Whistle Blowers Protection Act 2014 - Meghalaya Social Audit Act 2017.*

E-governance - initiative to year, a pure matching set

<i>Initiative</i>	<i>Year or date</i>	<i>Detail</i>
<i>National e-Governance Plan</i>	<i>Approved 18 May 2006</i>	<i>27 Mission Mode Projects, later raised to 31</i>
<i>UIDAI set up</i>	<i>January 2009</i>	<i>Made statutory by the Aadhaar Act, 2016</i>
<i>First Aadhaar issued</i>	<i>29 September 2010</i>	<i>Tembhli village, Nandurbar district, Maharashtra</i>
<i>Direct Benefit Transfer</i>	<i>Launched 1 January 2013</i>	<i>Subsidy paid straight into the beneficiary's account</i>
<i>e-Kranti (NeGP 2.0)</i>	<i>Approved March 2015</i>	<i>44 Mission Mode Projects</i>
<i>Digital India</i>	<i>Launched 1 July 2015</i>	<i>Nine pillars and three vision areas</i>
<i>UMANG</i>	<i>2017</i>	<i>Unified Mobile Application for New-age Governance</i>

YAAD RAKHO

Two things to fix before the paper. The four interaction types are G2C, G2B, G2G and G2E - government to citizen, business, government and employee. And do not merge the two 2015 entries: e-Kranti was approved in MARCH 2015 with 44 MMPs, Digital India was launched on 1 JULY 2015 with nine pillars. DBT is 2013, not 2015.

REVISION RECAP

1. Thomas Dye - public policy is 'whatever governments choose to do or not to do'; Harold Lasswell is the father of the policy sciences.
2. Policy stages: agenda setting - formulation - adoption - implementation - evaluation. Implementation is executive work, never legislative.
3. Simon bounded rationality; Lindblom incrementalism or muddling through; Etzioni mixed scanning; Easton systems model; Cohen, March and Olsen the garbage can.
4. Citizen's Charter - UK 1991 under John Major; six principles are Quality, Choice, Standards, Value, Accountability, Transparency.
5. India adopted it at the Conference of Chief Ministers on 24 May 1997 under the Action Plan for Effective and Responsive Government; DARPG is the nodal agency, first charters 1997.
6. The six components: vision and mission, business transacted, clients, services to each client group, grievance redress mechanism, expectations from clients. Penalty for defaulting officials is NOT a component - asked in 2021 and 2024.
7. A charter is voluntary and non-justiciable; the standard criticism is that it is drafted without consulting citizens or staff.
8. Sevottam - three modules, Citizen's Charter, Public Grievance Redress and Service Delivery Capability, assessed against IS 15700:2005.
9. Right to services: Madhya Pradesh first (2010, effective 25 September 2010), Bihar 2011, Rajasthan Guaranteed Delivery of Public Services Act 2011, Rajasthan Right to Hearing Act 2012 - the first in India.
10. Social audit - Section 17 of MGNREGA 2005, by the Gram Sabha, at least once every six months; Audit of Scheme Rules 2011 framed with the CAG; it supplements and does not replace the CAG's audit.
11. Meghalaya Community Participation and Public Services Social Audit Act, 2017 - the first dedicated state social audit law.
12. MKSS founded 1990 at Devdungri, Rajsamand, by Aruna Roy, Nikhil Dey and Shankar Singh; slogan 'Hamara Paisa, Hamara Hisab'; Jan Sunwai grew into the national RTI campaign.
13. CPGRAMS - DARPG's portal; disposal cut from 30 to 21 days in August 2024; appeal within 30 days; the Directorate of Public Grievances sits in the Cabinet Secretariat.
14. RTI Act - assent 15 June 2005, fully in force 12 October 2005, replacing the Freedom of Information Act, 2002.
15. Sections: 4 suo motu, 5 PIOs, 6 request, 7 time limits, 8 exemptions, 9 copyright, 10 severability, 11 third party, 12 CIC, 15 SIC, 19 appeals, 20 penalty, 22 overriding effect, 24 Second Schedule.

16. Time limits: 30 days ordinary, 48 hours for life or liberty, 35 days through an Assistant PIO, 40 days with third-party interest; free if the deadline is missed.
17. Appeals: first within 30 days to an officer senior to the PIO, second within 90 days to the CIC or SIC; the burden of justifying a refusal is on the PIO.
18. Section 20 penalty: Rs 250 a day, maximum Rs 25,000, plus a recommendation of disciplinary action for persistent default.
19. CIC - President, on a committee of the PM, the LoP in Lok Sabha and a Union Cabinet Minister; SIC - Governor, on a committee of the CM, the LoP in the Assembly and a State Cabinet Minister. Each has a chief plus up to ten commissioners.
20. RTI (Amendment) Act 2019 changed only Sections 13, 16 and 27 - term and salary now prescribed by the Central Government; RTI Rules 2019 set the term at three years, age limit 65; the appeal mechanism was untouched.